

Revised State Template for the Consolidated State Plan

The Elementary and Secondary Education Act of 1965, as amended by the Every Student Succeeds Act



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Introduction

Section 8302 of the Elementary and Secondary Education Act of 1965 (ESEA), as amended by the Every Student Succeeds Act (ESSA)¹, requires the Secretary to establish procedures and criteria under which, after consultation with the Governor, a State educational agency (SEA) may submit a consolidated State plan designed to simplify the application requirements and reduce burden for SEAs. ESEA section 8302 also requires the Secretary to establish the descriptions, information, assurances, and other material required to be included in a consolidated State plan. Even though an SEA submits only the required information in its consolidated State plan, an SEA must still meet all ESEA requirements for each included program. In its consolidated State plan, each SEA may, but is not required to, include supplemental information such as its overall vision for improving outcomes for all students and its efforts to consult with and engage stakeholders when developing its consolidated State plan.

Completing and Submitting a Consolidated State Plan

Each SEA must address all of the requirements identified below for the programs that it chooses to include in its consolidated State plan. An SEA must use this template or a format that includes the required elements and that the State has developed working with the Council of Chief State School Officers (CCSSO).

Each SEA must submit to the U.S. Department of Education (Department) its consolidated State plan by one of the following two deadlines of the SEA's choice:

- April 3, 2017; or
- September 18, 2017.

Any plan that is received after April 3, but on or before September 18, 2017, will be considered to be submitted on September 18, 2017. In order to ensure transparency consistent with ESEA section 1111(a)(5), the Department intends to post each State plan on the Department's website.

¹ Unless otherwise indicated, citations to the ESEA refer to the ESEA, as amended by the ESSA.

Alternative Template

If an SEA does not use this template, it must:

- 1) Include the information on the Cover Sheet;
- 2) Include a table of contents or guide that clearly indicates where the SEA has addressed each requirement in its consolidated State plan;
- 3) Indicate that the SEA worked through CCSSO in developing its own template; and
- 4) Include the required information regarding equitable access to, and participation in, the programs included in its consolidated State plan as required by section 427 of the General Education Provisions Act. See Appendix B.

Individual Program State Plan

An SEA may submit an individual program State plan that meets all applicable statutory and regulatory requirements for any program that it chooses not to include in a consolidated State plan. If an SEA intends to submit an individual program plan for any program, the SEA must submit the individual program plan by one of the dates above, in concert with its consolidated State plan, if applicable.

Consultation

Under ESEA section 8540, each SEA must consult in a timely and meaningful manner with the Governor, or appropriate officials from the Governor's office, including during the development and prior to submission of its consolidated State plan to the Department. A Governor shall have 30 days prior to the SEA submitting the consolidated State plan to the Secretary to sign the consolidated State plan. If the Governor has not signed the plan within 30 days of delivery by the SEA, the SEA shall submit the plan to the Department without such signature.

Assurances

In order to receive fiscal year (FY) 2017 ESEA funds on July 1, 2017, for the programs that may be included in a consolidated State plan, and consistent with ESEA section 8302, each SEA must also submit a comprehensive set of assurances to the Department at a date and time established by the Secretary. In the near future, the Department will publish an information collection request that details these assurances.

For Further Information: If you have any questions, please contact your Program Officer at OSS.
[State]@ed.gov (e.g., OSS.Alabama@ed.gov).

Cover Page

Contact Information and Signatures

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By signing this document, I assure that:

To the best of my knowledge and belief, all information and data included in this plan are true and correct.

The SEA will submit a comprehensive set of assurances at a date and time established by the Secretary, including the assurances in ESEA section 8304. Consistent with ESEA section 8302(b)(3), the SEA will meet the requirements of ESEA sections 1117 and 8501 regarding the participation of private school children and teachers.

Authorized SEA Representative (Printed Name) Mark Huntsman, Utah State Board of Education Chair	Telephone: 801-538-7517
Signature of Authorized SEA Representative 	Date: November 21, 2022
Governor (Printed Name) Spencer Cox Governor of Utah	Date SEA provided plan to the Governor under ESEA section 8540:
Signature of Governor 	Date: Nov. 28, 2022

Approved by the Utah State Board of Education on November 3, 2022

Programs Included in the Consolidated State Plan

Instructions: Indicate below by checking the appropriate box(es) which programs the SEA included in its consolidated State plan. If an SEA elected not to include one or more of the programs below in its consolidated State plan but is eligible and wishes to receive funds under the program(s), it must submit individual program plans for those programs that meet all statutory and regulatory requirements with its consolidated State plan in a single submission.

☒ Check this box if the SEA has included all of the following programs in its consolidated State plan.

or

If all programs are not included, check each program listed below that the SEA includes in its consolidated State plan:

- ☐ Title I, Part A: Improving Basic Programs Operated by Local Educational Agencies
- ☐ Title I, Part C: Education of Migratory Children
- ☐ Title I, Part D: Prevention and Intervention Programs for Children and Youth Who Are Neglected, Delinquent, or At-Risk
- ☐ Title II, Part A: Supporting Effective Instruction
- ☐ Title III, Part A: English Language Acquisition, Language Enhancement, and Academic Achievement
- ☐ Title IV, Part A: Student Support and Academic Enrichment Grants
- ☐ Title IV, Part B: 21st Century Community Learning Centers
- ☐ Title V, Part B, Subpart 2: Rural and Low-Income School Program
- ☐ Title VII, Subpart B of the McKinney-Vento Homeless Assistance Act: Education for Homeless Children and Youth Program (McKinney-Vento Act)

Instructions

Each SEA must provide descriptions and other information that address each requirement listed below for the programs included in its consolidated State plan. Consistent with ESEA section 8302, the Secretary has determined that the following requirements are absolutely necessary for consideration of a consolidated State plan. An SEA may add descriptions or other information but may not omit any of the required descriptions or information for each included program.

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Executive Summary

Overview

The State of Utah has long been involved with continually improving its public schools—seeing that each student succeeds. Not only is success vital for each student, but it is also vital to the future of Utah as a whole. For this reason, many have been involved with this improvement process: the Governor’s Office, the State Legislature, Utah’s businesses large and small, non-governmental agencies and organizations (including State and local Parent Teacher Associations), and the public education community. In alignment with the approval of the Elementary and Secondary Education Act of 1965 (ESEA), the Utah State Board of Education sought public comment on the revision of the Utah State Every Student Succeeds Act (ESSA) State plan in October 2022 using a digital feedback tool that was promoted to our media partners, our K-12 Superintendent and Charter School Directors, Utah K-12 Title program directors, Utah Assessment Directors, and published on the front page of our website. Additionally, the USBE hosted an ESSA State Plan Revision Overview for LEA leaders on October 17, 2022, at 10:00 AM. These comments were presented to the Utah State Board of Education as a public document at the November 2022 open and public Board meeting for consideration as part of the final request for approval.

The Utah State Board of Education (USBE) has been at the forefront of this effort. The USBE created its Strategic Plan, with the help of its governing partners at the State and Federal level as well as higher education, school districts and charter schools. Most importantly, school administrators, classroom teachers, counselors, and paraprofessionals also played a part in the Strategic Plan.

The USBE’s Strategic Plan focuses on four areas to allow all students to be able to succeed and lead. They are:

- Early Learning
- Effective Educators and Leaders
- Safe and Healthy Schools
- Personalized Teaching and Learning

The USBE is pleased that the new ESSA aligns with the existing tenants of Utah’s Strategic Plan for public education and that there is sufficient flexibility offered to Utah to use ESSA funding to achieve education equity, improve quality learning, and advance system values. More succinctly, ESSA funding will help Utah improve educational outcomes for its students.

Much of Utah’s proposed uses for ESSA funding will focus on our top goal, education equity. ESSA funding is a vital component of improving equity for low-income students (Title I, Part A), migrant students (Title I, Part C), neglected, delinquent, and at-risk students (Title I, Part D), English learner (EL) students (Title III), rural students (Title V), and homeless students (Title VII).

The USBE’s Strategic Plan provides a shared vision for the future of Utah’s education system. It identifies a vision for Utah students upon completion through a vision statement and the characteristics outlined in the Portrait of a Graduate, as described below. The plan further provides goals that reflect ambitious outcomes we aim for the system to provide for each student and high-leverage strategies to align efforts toward impacting each goal. The plan also orients USBE’s efforts internally as we focus on our mission of creating the conditions for equitable student success.

USBE MISSION

The USBE leads by creating equitable conditions for student success: advocating for necessary resources, developing policy, and providing effective oversight and support.

USBE VISION

Upon completion, all Utah students are prepared to succeed and lead by having the knowledge and skills to learn, engage civically, and lead meaningful lives.

Utah's Portrait of a Graduate

This vision for Utah students is also articulated through the Portrait of a Graduate, which identifies the ideal characteristics of a Utah graduate upon exiting the K-12 system. The Portrait of a Graduate serves as the USBE's compass for system transformation. As school districts and charter schools develop Portraits of a Graduate for their unique communities, we continue working through the implications of this vision for the design of our system at the State level. Our aim is to create the conditions for school systems throughout the State to intentionally deliver on this powerful vision.

Additionally, the USBE has adopted the following definition of equity: "Acknowledging that all students are capable of learning, educational equity is the distribution of resources to provide equal opportunities based upon the needs of each individual student. Equitable resources include funding, programs, policies, initiatives and supports that recognize each student's unique background and school context to guarantee that all students have access to high-quality education."

In alignment with the USBE Strategic Plan, Utah will use ESSA funding as outlined in this plan, to help Utah make a difference in serving these students to achieve Utah's Portrait of a Graduate.

Together, USBE's Strategic Plan for education and ESSA come together to support better systems to produce a more equitable education for Utah's public school students. Student success is not just vital in the classroom, it is important for them to be able to succeed and lead by having the knowledge and skills to learn, engage civically, and lead meaningful lives.

Highlights

Title I Part A: School Accountability and School Improvement

Purpose: To provide financial assistance to local educational agencies (LEAs) for schools identified for improvement.

- The ESSA State plan provides Utah the opportunity to promote our existing strategic planning efforts to set ambitious long-term goals aiming to ensure each student graduates from high school prepared to succeed and lead.
- The school accountability system described in Utah's ESSA State plan is representative of a broad and concerted effort to align Utah's State system of accountability for schools into a single, coherent system of continuous improvement.
- During the 2022–2023 school year, approximately \$74 million was provided to Utah public schools to provide needed services to student populations who are at risk to assist them in meeting State-defined academic standards.

Title I Part C: Education of Migratory Children

Purpose: Identify the academic needs and barriers to achievement and provide supplemental supports so that highly mobile students whose families work in agriculture can achieve at the same level of proficiency as their fellow students and graduate from high school.

- The charge of the Migrant Education Program is to identify and recruit all eligible migratory students in the State.
- During the 2021-2022 school year, the USBE provided professional learning and technical assistance services to 16 districts.
- Utah (lead State) has successfully won a competitive Migrant Parent Empowerment Consortium (MPEC) Incentive Grant since 1995. The current online system (<http://www.migrantliteracynet.com>) provides screening assessments, lessons, and system-guided student tutorials, which allow teachers to archive and track student progress regarding discrete reading skills. It also incorporates parent involvement in academic student activities to help build parent academic support for students.
- Utah is the lead State in the MPEC. This consortium is comprised of nine states, has grown the migrantliteracynet.com platform to include parent components. These components allow parents to work with and help develop string literacy and mathematics skills in their children.
- Utah has participated in collaboration with the Interstate Migrant Education Council (IMEC) to provide a national symposium and subsequent white paper to address declining numbers of migratory families in the United States. The national symposium is titled "A National Symposium: 'The ABC's of Education: Moving Forward Under ESSA to Engage the Agriculture, Business, and Education Communities' 2017" and was held on October 19–20, 2017. Utah continues to participate in IMEC and meetings and symposiums.

Title I Part D: Prevention and Intervention Programs for Children and Youth Who Are Neglected, Delinquent or At-Risk

Purpose: Prevent youth who are at-risk from dropping out of school, provide those who have dropped out a system of support to continue their education, and provide services to youth who are transitioning from institutionalization to further schooling or employment.

- During the 2021-2022 school year seven ETCAs supported 13 Juvenile Justice and Youth Services (JJYS) sites and 290 Youth in Custody (YIC) students in their transitions to the traditional schools. In addition, all five secure care facilities in Utah received fine arts programming not included in their regular school day. One secure care facility provided a six-week summer school program with this funding so students could earn additional high school credits and progress towards graduation.
- Supported regularly by stakeholder input, interagency (Juvenile Justice and Youth Services) collaboration, and external consultation, Neglected and Delinquent services complement the State Youth in Custody program and provide innovative leadership in areas such as short-term, certified, market-sensitive programs for incarcerated youth to increase their employability opportunities.
- Neglected and Delinquent heuristic inter-agency collaboration have reduced redundancies, increased productivity, and reduced aligned costs among state agencies and local school districts.
- The federal Neglected and Delinquent program, in its original design, is not perfectly suited for Utah. Therefore, the USBE obtained a Federal statutory waiver to some of Federal regulations to increase the relevancy of the law to meet the needs of Utah students.

Title II Part A: Supporting Effective Instruction

Purpose: Increase the academic achievement of all students by helping schools and districts improve teacher and principal quality.

- Two new features included are support for teacher leaders and principals and revisions to the USBE licensure policies and practices.
- Additionally, the Title IIA plan supports the USBE's imperative of Educational Equity by supporting the existence of an effective teacher in every classroom.

Title III Part A Subpart I: English Language Acquisition and Enhancement

Purpose: Provide supplemental funding to increase students' annual growth towards English Language Proficiency (ELP).

- During the 2016–2017 school year, 37,010 students who are ELs were served.
- Individually specialized reports will provide an overview of what students can do at all levels of ELP, with individualized targets for annual growth so teachers can better meet the instructional needs of each student.
- A four-year monitoring plan for exited students now includes annual conferences with families and school teams to ensure increased access to challenging academic courses for post-secondary and career success.

Title IV Part A: Student Support and Academic Enrichment Grants

Purpose: Increase educational equity and opportunities for all students by:

- Providing all students with access to a well-rounded education.
- Improving school conditions for student learning.
- Improving the use of technology to support academic achievement and digital literacy.

Title IV Part B: 21st Century Community Learning Centers

Purpose: Provide opportunities outside of the regular school day for academic enrichment, including tutorial services, to help students who attend schools with 40% or higher poverty rates to meet State and local student performance standards in core academic subjects such as reading and mathematics.

- Offer students a broad array of additional services, programs, and activities such as youth development activities; drug and violence prevention programs; counseling programs; art, music, recreation programs; and technology education programs; that are designed to reinforce and complement the regular academic program.
- Offer families of students served by community learning centers opportunities for literacy and related educational development.

Title V Part B Subpart 2: Rural and Low-Income School Program

Purpose: Help rural districts improve services for students attending rural schools serving high numbers of students living in poverty to meet the State's academic standards.

- During the 2016–2017 school year, 753 students received these additional services.
- The flexibility of use of these funds assists rural districts in providing services where they are most needed.
- Three districts were awarded this grant in FY16: South Sanpete, Grand, and San Juan.

Title VII Subpart B: Education for Homeless Children and Youth Program, McKinney-Vento Homeless Assistance Act

Purpose: Support students to meet academic needs and help to create educational stability for a student in a homeless situation.

- During the 2016–2017 school year, 13,006 students were served in 10 LEAs. The total number of students eligible for funds was 16,563.
- This funding source is the only statewide program serving the academic needs of homeless students.
- Under ESSA, there is a stronger tie to working with community partners to ensure that we serve all the needs of homeless children and youth in a way that was not previously systemic.
- The USBE worked very closely with then Lt. Gov. Spencer Cox in the Governor's homeless coordinating committee, as well as with various other county and city homeless coordinating councils, to ensure that homeless students receive the proper supports for their future success.

A. Title I, Part A: Improving Basic Programs Operated by Local Educational Agencies (LEAs)

1. Challenging State Academic Standards and Assessments (ESEA section 1111(b)(1) and (2) and 34 CFR §§200.1–200.8.)²

2. Eighth Grade Math Exception (ESEA section 1111(b)(2)(C) and 34 CFR §200.5(b)(4)):

i. Does the State administer an end-of-course mathematics assessment to meet the requirements under section 1111(b)(2)(B)(v)(I)(bb) of the ESEA?

- ☒ Yes
☐ No

ii. If a State responds “yes” to question 2(i), does the State wish to exempt an eighth- grade student who takes the high school mathematics course associated with the end-of-course assessment from the mathematics assessment typically administered in eighth grade under section 1111(b)(2)(B)(v)(I)(aa) of the ESEA and ensure that:

- a. The student instead takes the end-of-course mathematics assessment the State administers to high school students under section 1111(b)(2)(B)(v)(I)(bb) of the ESEA;
- b. The student’s performance on the high school assessment is used in the year in which the student takes the assessment for purposes of measuring academic achievement under section 1111(c)(4)(B)(i) of the ESEA and participation in assessments under section 1111(c)(4)(E) of the ESEA;
- c. In high school:
 1. The student takes a State-administered end-of-course assessment or nationally recognized high school academic assessment as defined in 34 CFR § 200.3(d) in mathematics that is more advanced than the assessment the State administers under section 1111(b)(2)(B)(v)(I)(bb) of the ESEA;
 2. The State provides for appropriate accommodations consistent with 34 CFR § 200.6(b) and (f); and
 3. The student’s performance on the more advanced mathematics assessment is used for purposes of measuring academic achievement under section 1111(c)(4)(B)(i) of the ESEA and participation in assessments under section 1111(c)(4)(E) of the ESEA.

- ☐ Yes
☒ No

iii. If a State responds “yes” to question 2(ii), consistent with 34 CFR §200.5(b)(4), describe, with regard to this exception, its strategies to provide all students in the State the opportunity to be prepared for and to take advanced mathematics coursework in middle school.

N/A

² The Secretary anticipates collecting relevant information consistent with the assessment peer review process in 34 CFR § 200.2(d). An SEA need not submit any information regarding challenging State academic standards and assessments at this time.

3. Native Language Assessments (ESEA section 1111(b)(2)(F) and 34 CFR §200.6(f)(2)(ii) and (f)(4):

i. Provide its definition for “languages other than English that are present to a significant extent in the participating student population,” and identify the specific languages that meet that definition.

Utah defines “languages other than English that are present to a significant extent in the participating student population” as any native language other than English spoken by five percent or more of the participating student population statewide (i.e., students enrolled in grades for which a statewide assessment is administered). See Exhibit 1 for data on the five most common native languages spoken by participating students. Spanish is the only native language spoken by more than five percent of the participating student population.

Exhibit 1: Native Languages Spoken by Participating (Tested) Students

Native Language	Participating Students Grades 3–10 (N=380,056)
English	88.5%
Spanish	9.5%
Portuguese	0.2%
Navajo	0.2%
Arabic	0.1%

Source: UTREx year-end submissions and Readiness. Improvement. Success. Empowerment. & Utah Aspire Plus Assessment results, Spring 2022 Data

In addition to examining the native language data statewide, the USBE also examined the data by local educational agencies (LEA) to determine whether there are a significant number of LEAs with more than five percent of their student population speaking a language other than Spanish. The USBE found only two LEAs historically have over five percent of their ELs speaking a language other than Spanish: San Juan School District with a high population of students who speak Navajo and Utah International Charter School with a high population of students who speak Somali.

Lastly, the USBE examined the native language data by grade level for the grade levels in which a statewide assessment is administered (grades 3-10). Spanish is the only native language that exceeds the five percent threshold at the State level. See Exhibit 2 for the percent of the participating student population whose native language is Spanish by grade level.

Exhibit 2: Percent of Participating Student Population whose Native Language is Spanish by Grade Level

Grade Level	Spanish (%)
3	8.9%
4	9.5%
5	9.9%
6	10.0%
7	10.5%
8	10.1%
9	9.1%
10	8.0%

Source: USBE, Spring 2021

ii. Identify any existing assessments in languages other than English and specify for which grades and content areas those assessments are available.

The USBE currently offers two State summative assessments in partnership with separate vendors: *Readiness. Improvement. Success. Empowerment* (RISE) for grades 3-8, and *Utah Aspire Plus* (UA+) for grades 9-10.

Utah currently administers a Spanish transadaptive assessment for grades 9 and 10 on the UA+ year-end State summative assessment. Transadaptive was chosen to maintain meaning versus using a direct translation. Spanish transadaptation is available for the UA+ mathematics, science, and reading tests; the English test has Spanish transadaptive directions only. All UA+ Spanish transadaptive tests include Spanish text-to-speech capability. Utah's grades 3-8 State summative assessment, known as RISE, has an on-demand Spanish glossary translation for every subject. In addition, the RISE and UA+ assessments are administered in braille and RISE provides American Sign Language to address the needs of students who are deaf or hard of hearing.

iii. Indicate the languages identified in question 3(i) for which yearly student academic assessments are not available and are needed.

Utah is currently working with its vendor to develop a Spanish transadaptive assessment for RISE in grades 3-8, which is described in further detail below in the narrative discussing the "Plan and timeline for developing assessments in languages other than English".

iv. Describe how it will make every effort to develop assessments, at a minimum, in languages other than English that are present to a significant extent in the participating student population including by providing:

- a. The State’s plan and timeline for developing such assessments, including a description of how it met the requirements of 34 CFR § 200.6(f)(4);
- b. A description of the process the State used to gather meaningful input on the need for assessments in languages other than English, collect and respond to public comment, and consult with educators; parents and families of ELs; students, as appropriate; and other stakeholders; and
- c. As applicable, an explanation of the reasons the State has not been able to complete the development of such assessments despite making every effort.

Plan and timeline for developing assessments in languages other than English

For RISE in grades 3–8, Utah has begun the process of creating Spanish transadaptive mathematics and science assessments. Field testing will occur during the 2022-2023 school year, with operational test administration in 2023-2024. The vendor will adaptively translate the current mathematics and science item banks and all items will be reviewed by a committee of educators. The committee will be composed of fluent Spanish speaking Utah educators that represent the various dialects most commonly used by Utah students and regions throughout the State. The educator committee will accept or revise all content.

In developing assessments in other languages, the USBE will engage in a thoughtful process to produce valid results that are comparable to results for the English versions. Utah will make every effort to ensure that ELs are assessed in the language and form most likely to yield accurate data on their knowledge and mastery of skills in academic content areas. Given that Utah presents all content in Grades K–12 in English, the ability of ELs to read and write in their native language, in addition to speaking their native language, must be considered in the process of implementing statewide assessment. As with any assessment, the USBE will include appropriate accommodations for students with disabilities in accordance with 34 CFR §200.6(f)(4) for the inclusion of all students with disabilities in all assessments.

Process used to gather meaningful input on the need for assessments in languages other than English.

As described in section E of this document, the Title III ESSA workgroup conducted a survey about the key features of ESSA, especially the accountability for English language acquisition. Eighty-five percent (845 of 994) of the respondents agreed that developing assessments in languages other than English is a priority. Respondents to the survey included a wide range of stakeholders from every region of Utah, including community-based organizations, government and business representatives, secondary and elementary teachers, 143 parents, 132 teachers of ELs, and 185 school and LEA administrators.

The USBE continues to gather stakeholder input on the development of assessments in languages other than English from the USBE’s Technical Advisory Committee and Assessment and Accountability Policy Advisory Committee.³ Input was also gathered from Utah LEA Alternative Language Services (ALS) directors in May of 2022 to determine the best platform on which to present the RISE Spanish transadaptive assessment to students.

³ USBE Resolution No. 2016-2. Resolution Establishing The Assessment And Accountability Policy Advisory Committee. Retrieved from

4. Statewide Accountability System and School Support and Improvement Activities
(ESEA section 1111(c) and (d)):

i. Subgroups (ESEA section 1111(c)(2)):

- a. *List each major racial and ethnic group the State includes as a subgroup of students, consistent with ESEA section 1111(c)(2)(B).*

Utah's accountability system disaggregates performance by the following major racial and ethnic groups: American Indian or Alaska Native, Black or African American, White, Native Hawaiian or Pacific Islander, Asian, Hispanic or Latino, and Multiracial students.

- b. *If applicable, describe any additional subgroups of students other than the statutorily required subgroups (i.e., economically disadvantaged students, students from major racial and ethnic groups, children with disabilities, and English learners) used in the Statewide accountability system.*

Utah includes no additional student groups beyond statutorily required student groups in its statewide accountability system.

- c. *Does the State intend to include in the English learner subgroup the results of students previously identified as English learners on the State assessments required under ESEA section 1111(b)(2)(B)(v)(I) for purposes of State accountability (ESEA section 1111(b)(3)(B))? Note that a student's results may be included in the English learner subgroup for not more than four years after the student ceases to be identified as an English learner.*

- ☒ Yes
☐ No

- d. *If applicable, choose one of the following options for recently arrived English learners in the State:*

- Applying the exception under ESEA section 1111(b)(3)(A)(i); or
- ☒ **Applying the exception under ESEA section 1111(b)(3)(A)(ii); or**
- Applying the exception under ESEA section 1111(b)(3)(A)(i) or under ESEA section 1111(b)(3)(A)(ii). If this option is selected, describe how the State will choose which exception applies to a recently arrived English learner.

Utah will assess recently arrived ELs in English language arts (ELA) and mathematics beginning in their first year of enrollment. The exception Utah has selected under ESEA section 1111(b)(3)(A)(ii) allows a State, for the purposes of accountability, to:

- 1) Exclude recently arrived ELs from proficiency and growth calculations in the accountability system in first year of enrollment;
- 2) Include recently arrived ELs in growth calculations in second year of enrollment, and
- 3) Include recently arrived ELs in growth and proficiency calculations in the third year of enrollment and thereafter.

ii. Minimum N-Size (ESEA section 1111(c)(3)(A)):

- a. *Provide the minimum number of students that the State determines are necessary to be included to carry out the requirements of any provisions under Title I, Part A of the ESEA that require disaggregation of information by each subgroup of students for accountability purposes.*

Utah will continue to implement the practice, described in the USBE Accountability Technical Manual, of using an n-size of 10 as the minimum number of students necessary to be included in an all-students group or individual student groups for accountability purposes.

- b. *Describe how the minimum number of students is statistically sound.*

Utah plans to use an n-size of 10 for performance to ensure maximum student group visibility while protecting student privacy and maintaining reliability. The National Center for Educational Statistics indicates that a minimum n-size of 10 is acceptable when applying a population perspective to statistical soundness.⁴

- c. *Describe how the minimum number of students was determined by the State, including how the State collaborated with teachers, principals, other school leaders, parents, and other stakeholders when determining such minimum number.*

The USBE determined the minimum n-size by convening stakeholder groups (including educators, principals, and parents) to consider the tradeoffs between inclusion, privacy, and statistical soundness. The USBE explored minimum n-sizes of 10 to 30. If the USBE were to use a minimum n-size of 30, the number of indicators and student groups that could be reported on drops from 33 percent (using a minimum n-size of 10) to 25 percent. Ultimately, stakeholder groups and the USBE selected a minimum n-size of 10 to maximize the number of schools and student groups included in accountability determinations and reporting while maintaining statistical soundness and protecting student privacy.

- d. *Describe how the State ensures that the minimum number is sufficient to not reveal any personally identifiable information.*

Utah recognizes that protecting the privacy of students and their personally identifiable information is of the utmost importance. Utah ensures the minimum number is sufficient to not reveal any personally identifiable information by using a system of primary and complementary controls to protect the information. As defined by the National Center for Education Statistics, primary suppression “refers to the process of withholding data values in public reporting data that do not meet the threshold rule—in other words, removing data to protect the identity of individual students.”⁵ Complementary suppression is used to prevent the reconstruction of the missing count or percentage by, for example, summing the counts in unsuppressed categories and subtracting that amount from the total. The

⁴ National Center for Education Statistics. (2010, December). SLDS Technical Brief. Retrieved from <https://nces.ed.gov/pubs2011/2011603.pdf>.

⁵ National Center for Education Statistics. (2017). Best Practices for Determining Subgroup Size in Accountability Systems While Protecting Personally Identifiable Student Information. Retrieved from <https://nces.ed.gov/pubs2017/2017147.pdf>.

primary and complementary controls that the USBE applies to ensure student data privacy are described below.

Primary controls

- 1) Underlying counts for group or student group totals are not reported.
- 2) If a reporting group has one or more groups with 10 or fewer students, the results of the group(s) with 10 or fewer students are re-coded as “N<10”.

Complementary controls:

- 1) For groups with 300 or more students, apply the following suppression rules:
 - a. Values of 99% to 100% are recoded to $\geq 99\%$
 - b. Values of 0% to 1% are recoded to $\leq 1\%$
- 2) For groups with 100 or more than but less than 300 students, apply the following suppression rules:
 - a. Values of 98% to 100% are recoded to $\geq 98\%$
 - b. Values of 0% to 2% are recoded to $\leq 2\%$
- 3) For groups with 41 or more but less than 100 students, apply the following suppression rules:
 - a. Values of 95% to 100% are recoded to $\geq 95\%$
 - b. Values of 0% to 5% are recoded to $\leq 5\%$
- 4) For groups with 21 or more but less than 40 students, apply the following suppression rules:
 - a. Values of 90% to 100% are recoded to $\geq 90\%$
 - b. Values of 0% to 10% are recoded to $\leq 10\%$
- 5) Recode the percentage in all remaining categories in all groups into intervals as follows (11–19, 20–29, . . . 80–89)
 - a. For groups with 11 or more but less than 20 students, apply the following suppression rules:
 - i. Values of 80% to 100% are recoded to $\geq 80\%$
 - ii. Values of 0% to 20% are recoded to $\leq 20\%$
 - iii. Recode the percentage in all remaining categories in all groups into intervals as follows (21–29, 30–39, . . . 70–79)

The USBE will also ensure that personally identifiable information is protected by conducting a quality control check of the accountability reports, with data and privacy experts, prior to public release.

- e. *If the State’s minimum number of students for purposes of reporting is lower than the minimum number of students for accountability purposes, provide the State’s minimum number of students for purposes of reporting.*

Utah’s minimum number of students for reporting is the same as the minimum number of students for accountability.

- iii. Establishment of Long-Term Goals (ESEA section 1111(c)(4)(A)):

a. Academic Achievement. (ESEA section 1111(c)(4)(A)(i)(I)(aa))

1. Describe the long-term goals for improved academic achievement, as measured by proficiency on the annual statewide reading/language arts and mathematics assessments, for all students and for each subgroup of students, including: (i) baseline data; (ii) the timeline for meeting the long-term goals, for which the term must be the same multi-year length of time for all students and for each subgroup of students in the State; and (iii) how the long-term goals are ambitious.

USBE has engaged with the Governor and the State Legislature to set long-term goals for education in Utah. Utah's long-term goals, described in the USBE's Strategic Plan and other joint strategic planning efforts, are a reflection of our expectations of excellence for each student and equity in educational outcomes. The goals are ambitious, and they will require USBE to stretch beyond what we would predict based on current trends. We believe we can achieve these ambitious goals if we make changes to current practice and implement strategies for improving student outcomes.

Utah's academic achievement goal is to reduce by one-third the deficit between 100 percent and the State's proficiency rate for all students and student groups by 2024. Utah's ELA proficiency rate in 2016 was 46 percent (rounded), which represents a proficiency deficit of 54 percent. Cutting the proficiency deficit by one-third would mean reaching a proficiency rate of 64 percent by 2024. Utah's mathematics proficiency rate in 2016 was 48 percent (rounded), which represents a proficiency deficit of 52 percent. Cutting the proficiency deficit by one-third would mean reaching a mathematics proficiency rate of 65 percent by 2024. This revision is based on the approved ESEA of 1965 COVID-19 State Plan Addendum for Utah in 2021-2022, approved by the Department in April 2022, which provided an extension to state long term goals and measures of interim progress by two years, through 2024.

Utah's long-term goals for science are not described in this document because ESSA does not require states to set long-term goals for improved academic achievement in science. Utah is incorporating the long-term goals for science into the USBE's performance measures.

See Exhibits 3 and 4 for the baseline and long-term ELA and mathematics goals for all student groups (rates are extended to one decimal point for increased accuracy and transparency).

Exhibit 3: ELA Proficiency Goal by Student Group (Grades 3–10)

Student Group	Baseline⁶ (2016) (%)	Long-term Goal (2024) (%)
All students	45.7	63.8
Economically disadvantaged students	30.2	53.4
Students with disabilities	12.3	41.6
English learners	11.4	41.0
African American/Black	23.7	49.1
Asian	52.9	68.6
Hispanic/Latino	24.8	49.8
American Indian/Alaska Native	19.8	46.5
Multi-race, non-Hispanic	48.3	65.5
Native Haw./Pacific Islander	27.2	51.5
White	51.1	67.4

Source: USBE, Spring 2017

⁶ Extended to one decimal point.

Exhibit 4: Mathematics Proficiency Goal by Student Group (Grades 3–10)

Student Group	Baseline⁷ (2016) (%)	Long-term Goal (2024) (%)
All students	48.2	65.4
Economically disadvantaged students	32.3	54.9
Students with disabilities	16.9	44.6
English learners	15.1	43.3
African American/Black	22.6	48.4
Asian	56.7	71.1
Hispanic/Latino	24.7	49.8
American Indian/Alaska Native	20.1	46.7
Multi-race, non-Hispanic	48.4	65.6
Native Hawaiian/Pacific Islander	27.9	52.0
White	54.3	69.5

Source: USBE, Spring 2017

Reducing the proficiency deficit by one-third for all students and student groups by 2024 is ambitious. Based on 2015–2016 school year student performance on the ELA assessment, a school with a 64 percent proficiency rate is in the 92nd percentile of schools.

Therefore, to achieve Utah’s long-term goal for ELA of 64 percent proficiency by 2024, Utah will need to increase our proficiency rate as a State to the level of performance that the school at the 92nd percentile is currently achieving. In other words, 92 percent of schools will need to improve to achieve this goal whereas 8 percent of schools have demonstrated that this level of performance is possible. To achieve the long-term goal for mathematics of 65 percent proficiency by 2024, we will need to increase our proficiency rate as a State to the level of performance that the school at the 89th percentile is currently achieving. Strategic planning efforts in the State, including USBE’s Strategic Plan, will provide a theory of action to this end.

⁷ Extended to one decimal point.

2. Provide the measurements of interim progress toward meeting the long-term goals for academic achievement in Appendix A.
3. Describe how the long-term goals and measurements of interim progress toward the long-term goals for academic achievement take into account the improvement necessary to make significant progress in closing statewide proficiency gaps.

Reducing the deficit between 100 percent and the current rate by one-third for all students and student groups sets the same goal for all students but requires greater rates of improvement for student groups that reach proficiency at lower rates. For example, the deficit for ELA proficiency between all students group (46 percent proficient) and those students in the economically disadvantaged student group (30 percent proficient) was 16 percentage points in the 2015–2016 school year. If each group were to cut their proficiency deficit by one-third in six years, the resulting gap between the all-students group (64 percent proficient) and the economically disadvantaged group (53 percent proficient) would then be 11 percentage points (one-third of the current gap).

b. Graduation Rate. (ESEA section 1111(c)(4)(A)(i)(I)(bb))

1. Describe the long-term goals for the four-year adjusted cohort graduation rate for all students and for each subgroup of students, including: (i) baseline data; (ii) the timeline for meeting the long-term goals, for which the term must be the same multi-year length of time for all students and for each subgroup of students in the State; and (iii) how the long-term goals are ambitious.

Utah's graduation rate goal is to reduce by one-third the graduation deficit between 100 percent and the State's graduation rate for all students and student groups by 2024. Utah's graduation rate for the 2016 school year was 85 percent (rounded), which represents a graduation deficit of 15 percent (rounded). Reducing the graduation deficit by one-third would mean reaching a graduation rate of 90 percent by 2024.

See Exhibit 5 for the baseline and long-term goals for graduation for all student groups (rates are extended to one decimal point for increased accuracy and transparency).

Exhibit 5: Utah's Graduation Rate Goal by Student Group

Student Group	Baseline⁸ (2016) (%)	Current Results (2021) (%)	Long-term Goal (2024) (%)
All students	85.2	88.1	90.1
Economically disadvantaged students	75.6	77.8	83.7
Students with disabilities	70.2	73.1	80.1
English learners	65.7	75.3	77.1
African American/Black	74.1	76.8	82.7
Asian	89.7	91.7	93.1
Hispanic/Latino	75.1	80.6	83.4
American Indian/Alaska Native	71.4	78.4	80.9
Multi-race, non-Hispanic	81.5	80.5	87.7
Native Hawaiian/Pacific Islander	84.6	83.7	89.7
White	87.9	90.3	91.9

Source: USBE, Spring 2017 and Summer 2022

This goal is ambitious. If Utah were to achieve a State graduation rate of 90 percent, it would place Utah's graduation rate in the top 5th percentile of states compared with 2015 nationwide state graduation rates. Moreover, current nationwide graduation trends show a slowing in the increase of graduation rates.⁹ If Utah follows this national trend, the 2022 graduation rate would be predicted to be in the range of 85.5 to 88.5 percent. Achieving a graduation rate of 90 percent by 2024 will require USBE and LEAs to implement changes and initiatives that would increase the percentage of graduates above the current trajectory.

⁸ Extended to one decimal point.

⁹ U.S. Department of Education. (2016, September). Public high school 4-year adjusted cohort graduation rate, by race/ethnicity and selected demographics for the United States, the 50 states, and the District of Columbia. Retrieved from https://nces.ed.gov/ccd/tables/ACGR_RE_and_characteristics_2014-15.asp.

Strategic planning efforts in the State, including the USBE's Strategic Plan, will provide a theory of action to this end.

2. If applicable, describe the long-term goals for each extended-year adjusted cohort graduation rate, including (i) baseline data; (ii) the timeline for meeting the long-term goals, for which the term must be the same multi-year length of time for all students and for each subgroup of students in the State; (iii) how the long-term goals are ambitious; and (iv) how the long-term goals are more rigorous than the long-term goal set for the four-year adjusted cohort graduation rate.

Several ESSA stakeholder working groups, including the Students with Disabilities workgroup, Accountability workgroup, and EL workgroup, recommended setting long-term goals for extended-year adjusted cohort graduation rates in the original development of the Utah ESSA plan in 2017-2018. Those goals are not described here as ESSA does not require states to set long-term goals for extended-year cohort graduation rates. Extended-year graduation rate goals will be incorporated into USBE's performance measures as part of the agency redesign in 2023.

3. Provide the measurements of interim progress toward the long-term goals for the four-year adjusted cohort graduation rate and any extended-year adjusted cohort graduation rate in Appendix A.
4. Describe how the long-term goals and measurements of interim progress for the four-year adjusted cohort graduation rate and any extended-year adjusted cohort graduation rate take into account the improvement necessary to make significant progress in closing statewide graduation rate gaps.

Cutting the graduation deficit by one-third for all students and student groups sets the same goal for all students but requires greater rates of improvement for student groups that graduate from high school at lower rates. For example, the gap between the all-students group (approximately 85 percent graduation rate) and those students in the economically disadvantaged student group (approximately 76 percent graduation rate) was nine percentage points in the 2015–2016 school year. If each group were to cut their graduation deficit by one-third in eight years, the resulting gap between the all-students group (90 percent graduation rate) and the economically disadvantaged group (84 percent graduation rate) would then be six percentage points (one-third of the current gap).

c. *English Language Proficiency. (ESEA section 1111(c)(4)(A)(ii))*

1. Describe the long-term goals for English learners for increases in the percentage of such students making progress in achieving English language proficiency, as measured by the statewide English language proficiency assessment including: (i) baseline data; (ii) the State-determined timeline for such students to achieve English language proficiency; and (iii) how the long-term goals are ambitious.

Long-term goals were established based on a grade level analysis of the 2016 rates for reclassifications as English proficient determined by achieving a 5.0 composite score as measured by performance on the WIDA ACCESS. The method of analysis used two factors to identify a trajectory toward becoming English proficient within five years: the student's age and the level of ELP at the time they entered Utah's education system. Based on that data and consultation across the SEA with feedback from selected LEAs, the student grouping for monitoring growth have been designated as three grade bands: 1) Grade K-3 to align with State literacy initiatives and dual language programs, 2) Grade 4-7 to support effective and innovative transitions from elementary to middle school; and 3) Grade 8- 12 to focus resources on long-term ELs. Utah's refugee and immigrant student populations who often enter into Utah's schools at the secondary level, students who are ELs with disabilities as well as an effective transition to high school. These long-term goals are ambitious because the analysis to determine the trajectory ranged from 2-7 years and the decision to use five years as the expected timeline for ELP was set by Utah's Data and Statistics section in consultation with the individuals over federal programs at the USBE. Measurements of interim progress toward the long-term goal for increases in the percentage of ELs making progress in achieving ELP are provided in Appendix A.

The measurements of interim progress toward the long-term goal for increases in the percentage of ELs making progress in achieving ELP are presented in Appendix A.

iv. Indicators (ESEA section 1111(c)(4)(B))

- a. *Academic Achievement Indicator. Describe the Academic Achievement indicator, including a description of how the indicator (i) is based on the long- term goals; (ii) is measured by proficiency on the annual Statewide reading/language arts and mathematics assessments; (iii) annually measures academic achievement for all students and separately for each subgroup of students; and (iv) at the State's discretion, for each public high school in the State, includes a measure of student growth, as measured by the annual Statewide reading/language arts and mathematics assessments.*

Consistent with Utah's long-term goals, Utah measures academic achievement according to proficiency on the State's annual ELA and mathematics assessments. Utah's statewide assessments are currently administered to students in grades 3 through 10 to measure academic achievement in the areas of ELA and mathematics.

The achievement indicator will measure proficiency on the statewide assessments in ELA and mathematics for students in grades 3–10 and will include all students and student groups.

The achievement indicator measures a school's performance against a certain standard of performance at one point in time. This indicator evaluates the performance of a school's students relative to a certain standard of proficiency. In accordance with State law, points are allocated for this indicator in proportion to the percentage of students who score proficient or above on a statewide assessment (UCA section 53E-5-207). In accordance with ESEA section 1111(c)(4)(E)(ii), the percentage is calculated out of the greater of all the school's students participating in the assessment or 95 percent of enrolled students. Proficiency levels for current statewide assessments were established through a rigorous standard-setting process involving educators and stakeholders that represent the diversity of the State.

For each public high school in the State, USBE includes a measure of student growth, as measured by annual statewide assessments using the same method as the Other Academic Indicator for non-high schools, described in section A.4.iv.b of this document.

- b. Indicator for Public Elementary and Secondary Schools that are Not High Schools (Other Academic Indicator). Describe the Other Academic indicator, including how it annually measures the performance for all students and separately for each subgroup of students. If the Other Academic indicator is not a measure of student growth, the description must include a demonstration that the indicator is a valid and reliable statewide academic indicator that allows for meaningful differentiation in school performance.*

As the Other Academic Indicator, for elementary schools and secondary schools that are not high schools, Utah will continue the practice of including student growth in the State accountability system for all schools. As opposed to the proficiency measure described above, the student growth indicator measures a school's performance as compared to the academic peers and the amount of students' academic progress between two points in time. This recognizes a school's success in producing sizable performance gains with their students and encouraging schools to distribute their effort more broadly across the entire student body.

To balance transparency and validity/reliability, and in accordance with State law, points will be indexed for this indicator based on each student's Student Growth Percentile (SGP).

Utah utilizes SGP methodology for determining the amount of growth students make on a statewide assessment compared to their academic peers. The SGP describes how typical or atypical a student's growth is by examining the students' current achievement relative to the students' academic peers—those students who had similar performance on statewide assessments in the previous year.¹⁰ This score is reported as a percentile on a scale from 1–99.

Points for the growth indicator are indexed as outlined in Exhibit 6.

¹⁰ Betebenner, D.W. (2011). A technical overview of the student growth percentile methodology: student growth percentiles and percentile growth projections/trajectories. Retrieved from https://ksde.org/Portals/0/Research%20and%20Evaluation/SGP_Technical_Overview.pdf

Exhibit 6: Indexing of Points for Student Growth Indicator

Student SGP	Index Score
≥ 80	1
60-79	.75
40-59	.5
20-39	.25
0-19	0

Utah's State assessments will be used to calculate growth for grades 4 through 10 in ELA and mathematics. Student performance on the growth indicator can be disaggregated and reported for each student group to the extent that 10 or more students in each student group participate in the assessment.

Growth of the lowest performing 25% in a school will receive additional weight in the calculation of the growth indicator. Specifically, growth for students in the lowest performing 25% in a school will receive additional weight of .65 in the growth indicator.

- c. *Graduation Rate. Describe the Graduation Rate indicator, including a description of (i) how the indicator is based on the long-term goals; (ii) how the indicator annually measures graduation rate for all students and separately for each subgroup of students; (iii) how the indicator is based on the four-year adjusted cohort graduation rate; (iv) if the State, at its discretion, also includes one or more extended-year adjusted cohort graduation rates, how the four-year adjusted cohort graduation rate is combined with that rate or rates within the indicator; and (v) if applicable, how the State includes in its four-year adjusted cohort graduation rate and any extended-year adjusted cohort graduation rates students with the most significant cognitive disabilities assessed using an alternate assessment aligned to alternate academic achievement standards under ESEA section 1111(b)(2)(D) and awarded a State-defined alternate diploma under ESEA section 8101(23) and (25).*

Consistent with Utah's long-term goals, Utah includes the four-year cohort graduation rate in the State's accountability system. Our long-term graduation goal is to increase our graduation rate from 85 percent to 90 percent by 2024. By including graduation rates as an indicator in the accountability system, schools will be encouraged to increase their graduation rates. This in turn will help to increase Utah's overall graduation rate and thus to reach its long-term graduation goal, which is based on the same calculation method.

Utah's accountability system incorporates graduation rate for high schools as an indicator of student postsecondary readiness. Points are awarded in proportion to the percentage of students who graduate within four years. To recognize a school's success in graduating students in five years, in accordance with State law, up to 10 percent of the points allocated for high school graduation (2.5 out

of 25 points) may be awarded to a school for the school's five-year cohort graduation rate.¹¹ A school may not earn more than the total number of points possible for the graduation rate indicator.

$(4\text{-year graduation rate \%} \times 22.5) + (5\text{-year graduation rate \%} \times 2.5)$

Graduation rates for each public high school in the State are calculated annually using the standard Federal 4-year and 5-year adjusted cohort guidelines and up to 10% of the total points possible for the 5-year adjusted cohort rate. Using a combination of the Federal 4-year and 5-year adjusted rate definitions keeps the graduation rates consistent from year to year as well as from school to school. This ensures the reliability of the graduation rate indicator. Validity is achieved through USBE Rules that outline the minimum standards for a student to be considered a graduate (USBE Rule 277-700). Graduation rates can be disaggregated for each student group to the extent that 10 or more students in each student group participate in the assessment. Calculations are consistent for all high schools throughout the State.

Schools report final graduation rates for a given cohort in October of the following school year. For this reason, this indicator acts as a delayed or lagged indicator, and the graduation rate assigned for any given year is determined by the graduation rate from the prior year. For example, the accountability report for the 2017–2018 school year will reflect the graduation rate from the 2016–2017 school year.

In accordance with USBE Rule 277-705, students with the most significant cognitive disabilities who take the State's alternate assessment aligned with Utah's alternate academic achievement standards are eligible to receive an alternate diploma. Students are eligible to earn an alternate diploma until the student is age 22, in accordance with the Individuals with Disabilities Education Act (IDEA). Utah's Alternate Diploma for students with significant cognitive disabilities is a standards-based diploma aligned to Utah's alternate standards, the Essential Elements for ELA, mathematics, and science as well as the State's requirements for the regular high school diploma. USBE's alternate diploma meets the requirements of ESEA sections 8101(23)(A)(ii)(I)(bb) and 8101(25)(A)(ii)(I)(bb) and 612(a)(1) of the IDEA.

If an eligible student earns the alternate diploma in their expected year of graduation, they will be included in the graduation rate as a regular graduate from their school. Any eligible student who does not graduate with their cohort, is on track for earning an alternate diploma, and will continue to attend school as a retained senior will be removed from the denominator of their four-year graduating cohort as they continue to work toward completing all requirements for the alternate diploma. In the year the student earns an alternate diploma the student will be added to the numerator and denominator for graduation and be counted as a graduate. If the student does not complete the requirements for the alternate diploma before age 22, they will be considered a non-graduate (they will be counted in the denominator for graduation in their final year and excluded from the numerator).

¹¹ State law authorizes USBE to award up to 10 percent of the points allocated for high school graduation to a school for the five-year cohort graduation rate (UCA section 53E-5-207).

- d. *Progress in Achieving English Language Proficiency (ELP) Indicator. Describe the Progress in Achieving ELP indicator, including the State's definition of ELP, as measured by the State ELP assessment.*

Utah's accountability system includes progress in achieving ELP as an indicator across all schools in the State with at least 10 ELs consistent with the State-determined minimum n-size. Utah defines ELP as earning an overall proficiency level of 4.2 or greater and a 3.5 or greater in speaking as measured by the WIDA ACCESS for EL assessment, which is administered annually to all ELs in the State. This assessment measures academic language development in the domains of reading, writing, listening, and speaking.

ELP level and grade level at the time of entry factor into Utah's definition of making adequate progress towards ELP and moves away from the one-size-fits-all approach for determining growth targets for adequate progress. The following variables underlie Utah's model for measuring EL progress toward ELP:

- Initial ELP in the year of identification;
- Grade level at the time of initial enrollment and entrance into effective language instruction programs; and,
- Time enrolled in Utah schools, receiving supportive instruction in English language development and grade-level content.

Based on these three variables, individual annual growth targets for determining adequate progress toward ELP are set to determine the change expected annually in each ELs composite proficiency level (comprised of speaking, listening, reading, and writing) on the annual ACCESS assessment.

The percentage of points for a school is determined by the number of current EL students who meet or exceed their adequate progress target OR reach proficiency divided by the total number of EL students in the school. This percentage is multiplied by the 13 points possible for this indicator to determine the number of points allocated to a school (note: EL students in their first year are excluded from the calculation because they do not have a prior year score; their ACCESS score in their first year is needed to establish baseline):

$$\text{Points} = \left(\frac{\text{Number of ELs making adequate progress} + \text{ELs reaching proficiency}}{\text{Total number of current EL students} - \text{first year ELs}} \right) \times 13$$

Exhibit 7: Initial Grade 1-3 EL Adequate Progress Targets

Initial ELP Level	Time in EL Program						
	Baseline	1	2	3	4	5	6
	1.0-1.7	1.0	1.0	0.9	0.8	0.7	0.6
	1.8-2.5	0.8	0.7	0.7	0.6	0.5	0.4
	2.6-3.3	0.7	0.5	0.5	0.4	0.4	0.3
	3.4-4.1	0.5	0.3	0.3	0.2	0.2	0.1

Exhibit 8: Initial Grade 4-7 EL Adequate Progress Targets

Initial ELP Level	Time in EL Program					
	Baseline	1	2	3	4	5
	1.0-1.7	1.0	1.0	0.9	0.8	0.7
	1.8-2.5	0.8	0.7	0.7	0.6	0.6
	2.6-3.3	0.6	0.5	0.5	0.4	0.3
	3.4-4.1	0.4	0.3	0.3	0.2	0.2

Exhibit 9: Initial Grade 8-12 EL Adequate Progress Targets

Initial ELP Level	Time in EL Program					
		1	2	3	4	5
	1.0-1.7	1.0	0.9	0.8	0.7	
	1.8-2.5	0.8	0.6	0.5	0.4	
	2.6-3.3	0.6	0.4	0.3	0.3	
	3.4-4.1	0.3	0.2	0.1	0.1	

*Gray cells indicate years after the student should have met exit criteria.

- e. *School Quality or Student Success Indicator(s). Describe each School Quality or Student Success Indicator, including, for each such indicator: (i) how it allows for meaningful differentiation in school performance; (ii) that it is valid, reliable, comparable, and statewide (for the grade span(s) to which it applies); and (iii) of how each such indicator annually measures performance for all students and separately for each subgroup of students. For any School Quality or Student Success indicator that does not apply to all grade spans, the description must include the grade spans to which it does apply.*

In addition to the school quality indicators described here, State law also provides schools the opportunity to select other indicators local communities value. Such indicators will be highlighted on the school's report card but not factored into accountability system calculations (UCA section 53E-5-211).

School Quality and Student Success

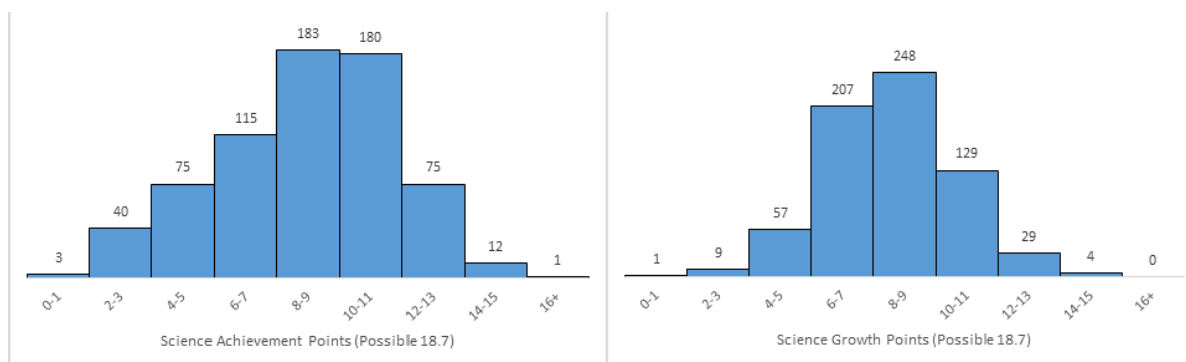
Science Achievement Indicator: Utah's accountability system includes achievement as measured by statewide assessments of science as an indicator of student success for all schools. For this indicator, points are awarded for science achievement proportional to the percentage of students who score proficient or above on annual State-administered science assessments. This indicator is assigned a maximum 18 points for all students, or a weight of 12 percent for elementary and middle schools and eight percent for high schools (See section A.4.v.a)

Science Growth Indicator: Utah’s accountability system includes growth as measured by statewide assessments of science as an indicator of student success for all schools. Points are awarded for growth in science assessments using the same method described in section A.4.iv.b Other Academic Indicator for Non-High Schools. The indicator is assigned a weight of 18 points or 12 percent in the overall accountability system. (See section A.4.v.a)

Science Growth of the lowest performing 25% in a school will receive additional weight in the calculation of the science growth indicator. Specifically, growth of the lowest 25% in a school will receive an additional weight of .65 for grades 4-10.

Science Achievement and Growth Indicators allow for meaningful differentiation in school performance: The Science Achievement and Science Growth Indicators are applied to all schools in the State. As demonstrated in Exhibit 10, the Science Achievement and Science Growth Indicators meaningfully differentiate schools by demonstrating varied results across schools in the system.

Exhibit 10: Estimation of Point Distribution for Science Achievement (2015–16)



Source: USBE, Spring 2017

Indicators are valid, reliable, comparable, and statewide: The science achievement and science growth indicators are applicable to all schools with students in any of grades 4 through 10 in the state. The same method for calculating achievement and growth in ELA and mathematics is applied to the science achievement and growth indicator, described in section A.4.iv.b ensuring the indicator is valid and reliable.

Indicators annually measure performance for all students and separately for each student group: The science achievement indicator and science growth indicator measure performance for all students to which the indicators apply and can be measured separately for each student group.

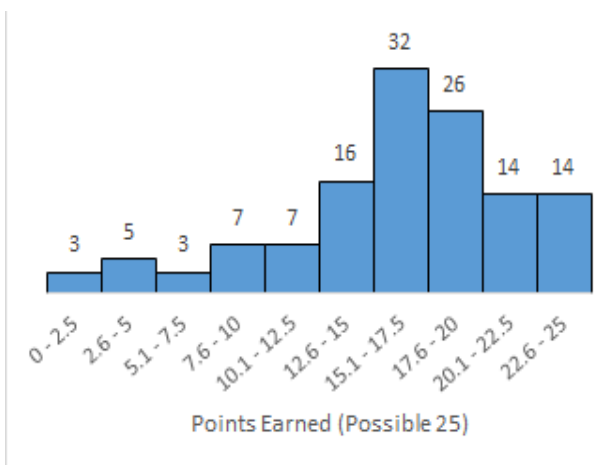
Postsecondary Readiness: Utah’s accountability system includes a postsecondary readiness indicator as measured by readiness coursework completion and American College Testing (ACT) performance. The postsecondary readiness indicator is included to promote preparation for the transition from high school to the multiple pathways after graduation. Points are allocated for the readiness coursework metric in proportion to the percentage of students who complete at least one of the following:

- A “C” grade or better in an Advanced Placement (AP) course;
- A “C” grade or better in an International Baccalaureate (IB) course;
- A “C” grade or better in a concurrent enrollment course; or
- A career and technical education (CTE) pathway completer or concentrator. (The Utah State Board of Education recognizes the definition of CTE concentrator contained in the federal Perkins V law. A concentrator is a secondary student who has completed specific requirements in a single CTE program area of study. To receive the designation of CTE completer, a student needs to successfully complete at least 3 credits in a single career pathway that progress from introductory to advanced. The addition of “completer or concentrator” provides increased clarity to how the career and technical education pathway element of Utah’s Postsecondary Readiness indicator is measured.)

Points are allocated for the ACT metric in proportion to the percentage of students who achieve a composite score of 18 or higher.

This indicator allows for meaningful differentiation in school performance. The postsecondary readiness indicator meaningfully differentiates schools by demonstrating varied results across schools in the system. Modeling the distribution of points earned for the readiness coursework metric show that schools’ performance on the readiness coursework metric ranges from 1.3 out of 25 to 25 out of 25 and does not simply represent a constant within the system (see Exhibit 11).

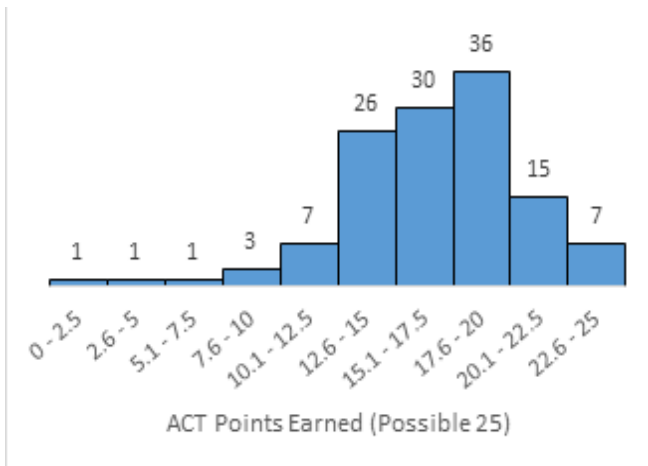
Exhibit 11: Estimation of Points Distribution for Readiness Coursework Metric for Utah High Schools (2015–2016)



Source: USBE, Spring 2017

Similarly, modeling the distribution of points earned for the ACT metric show that schools’ performance on the ACT metric ranges from 2.5 out of 25 to 25 out of 25 and does not simply represent a constant within the system (see Exhibit 12).

Exhibit 12: Estimation of Points Distribution for ACT metric (2015–2016)



Source: USBE, Spring 2017

Indicator is valid, reliable, comparable, and statewide. The postsecondary readiness indicator, including the ACT and readiness coursework metrics, is a valid measure of postsecondary readiness. A composite score of 18 on the ACT is a valid measure of college readiness because a composite score of 18 is recognized as the minimum score required for entrance by most two-year colleges or four-year universities. Also, research indicates that students who took AP courses performed better academically in their first year in college and had higher probabilities of graduating college within five years when compared with students who did not take AP courses.¹² Research also indicates that students who take occupation-specific vocational courses for at least one-sixth of their courses in high school earned approximately 12 percent more one year after graduating from high school compared to those students who took less or no occupation-specific courses. This was found true for both students who did and did not pursue post-secondary education.¹³

This indicator is reliable as coursework data and ACT performance is reported to the State. This allows the State to validate and audit the data for consistency. Moreover, the State calculates the indicator the same for each school allowing for uniformity from school to school. The ACT is administered statewide, so the indicator is applicable for each high school with at least the minimum n-size of students.

Indicator annually measures performance for all students and separately for each student group. The postsecondary readiness indicator measures performance for all students and can be measured

¹² Dougherty, C., Mellor, L., & Jian, S. (2006, February). The Relationship Between Advanced Placement and College Graduation. National Center for Educational Accountability. Retrieved from MSPnet.

Ewing, M., & Howell, J. (2015). Is the Relationship Between AP Participation and Academic Performance Really Meaningful? Retrieved from research.collegeboard.org.

Morgan, R., & Ramist, L. (1998). Advanced Placement Students in College: An investigation of Course Grades at 21 Colleges. Princeton: Educational Testing Service.

¹³ Bishop, J. H., & Mane, F. (2004). The impacts of career-technical education on high school labor market success. Economics of Education Review, 23, 381–402.

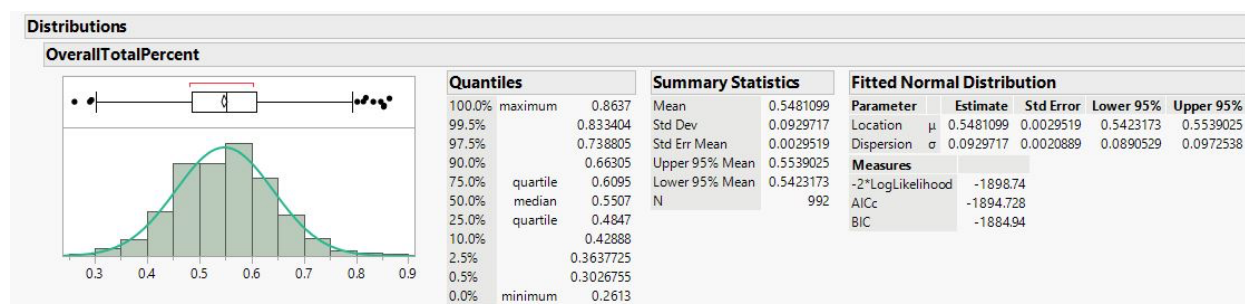
separately for each student group. The readiness coursework metric is calculated using a cohort that has graduated to ensure that students included in the calculation have had four years of high school to complete the readiness coursework. As a result, the readiness coursework metric is lagged one year, similar to the graduation indicator. The ACT metric is also lagged to align with the readiness coursework metric and graduation metric.

v. Annual Meaningful Differentiation (ESEA section 1111(c)(4)(C))

- a. Describe the State's system of annual meaningful differentiation of all public schools in the State, consistent with the requirements of section 1111(c)(4)(C) of the ESEA, including a description of (i) how the system is based on all indicators in the State's accountability system, (ii) for all students and for each subgroup of students. Note that each state must comply with the requirements in 1111(c)(5) of the ESEA with respect to accountability for charter schools.*

The USBE will meaningfully differentiate all schools, including charter schools, using all the indicators in the State's accountability system. Student performance on each of the indicators is aggregated at the school and district levels to determine school performance on each indicator. Each indicator is then multiplied by its appropriate weighting, then all indicators are added to determine a total.

Exhibit 13: Evidence of Meaningfully Differentiating Schools Performance Through State's Accountability System (Estimation Using 2022 Overall Percentage Data)



Source: USBE, Spring 2022

- b. Describe the weighting of each indicator in the State's system of annual meaningful differentiation, including how the Academic Achievement, Other Academic, Graduation Rate, and Progress in ELP indicators each receive substantial weight individually and, in the aggregate, much greater weight than the School Quality or Student Success indicator(s), in the aggregate.

Utah assigns substantial weight to each indicator in its statewide school accountability system. The weightings described here are consistent with State law (UCA Title 53E, Chapter 5, Part 2, School Accountability System).

Academic Achievement: As described in section A.4.iv.a of this document, points are allocated to schools for academic achievement in proportion to the percentage of the school's students who score at or above the proficient level on a statewide assessment of ELA and mathematics. This percentage is calculated out of the greater of all the school's students participating in the assessment or 95 percent of enrolled students, in accordance with ESEA section 1111(c)(4)(E)(ii). The maximum number of total points possible for academic achievement is 37 points, which is 25 percent of the total points awarded for elementary and middle schools (grades 3–8).

For high schools, the academic achievement indicator includes both academic achievement and growth. Points are allocated to schools for achievement proportional to the percentage of the school's students who score at or above the proficient level on statewide ELA and mathematics assessments. Points are allocated for growth based on a student's performance on statewide assessments as compared to other students within the State with similar prior assessment scores. The maximum number of total points possible for academic achievement and growth in ELA and mathematics for high schools is 75 points, which is 33 percent of the total points awarded for high schools (grades 9–12).

Other Academic Indicator for Non-High Schools: Growth. As described in section A.4.iv.b of this document, points are allocated to elementary and middle schools for growth based on a student's performance on a statewide assessment of ELA or mathematics in comparison to other students with similar, prior assessment scores. The maximum number of total points possible for academic growth in ELA and mathematics is 38 points, or 25 percent of the total points awarded for elementary and middle schools (grades 3–8).

Growth of the lowest performing 25% in a school will receive greater weight in the calculation of the growth indicator. Specifically, growth for students in the lowest performing 25% in a school will receive an additional weight of .65 (or an additional 25 points) in the growth indicator.

Graduation Rate. High schools may earn points in the State accountability system for the four-year cohort graduation rate and up to 10 percent of the total points possible for graduation (2.5 points) may be awarded for the five-year graduation rate. This indicator is assigned 25 points within the accountability system accounting for 11 percent of the total points possible for high schools. Up to 10 percent of the total points possible (2.5 points) may be awarded for five-year graduation rate. A school may not earn more than the total points possible for this indicator.

Progress Towards ELP. As described in section A.4.iv.d of this document, points for this indicator are allocated proportional to the percentage of ELs making adequate progress toward fluency in English as measured by the annual assessment given to all ELs. The maximum number of points possible for this indicator is 13 points, or 9 percent of the total points awarded for elementary and middle schools and 6 percent of the total points possible for high schools (defined as a school that serves 12th grade students). This indicator applies to all schools with 10 or more ELs. For schools with less than 10 ELs, these points are removed from the total number of points possible (denominator) resulting in the other indicators accounting for greater weight in the overall determination.

School Quality/Student Success Indicators. The School Quality and/or Student Success indicator is defined by the State as: 1) Science Achievement 2) Science Growth; and 3) Postsecondary Readiness for high schools. Weighting of each of these indicators is described below.

Science Achievement. As described in section A.4.iv.e, points for this indicator are allocated to a school proportionate to the percent of students who score proficient on a science assessment. The maximum number of total points possible for science achievement is 19, or 13 percent of the total points possible awarded for elementary and middle schools (grades 4–8) and 11 percent of the total points possible for high schools (grades 9–10).

Science Growth. Points for this indicator are allocated to a school proportionate to the percent of students who demonstrate sufficient growth on statewide science assessments. The maximum number of total points possible for science growth is 18, or 11 percent of the total points possible awarded for elementary and middle schools (grades 4–8) and 8 percent of the total points possible for high schools (grades 9–10). Science Growth of the lowest performing 25% in a school will receive greater weight in the calculation of the science growth indicator. Specifically, growth of the lowest 25% in a school will receive an additional weight of .65 for grades 4-8 and .65 for high school.

Postsecondary Readiness. High schools may earn additional points in the State accountability system for postsecondary readiness based on two metrics: 1) performance on a college readiness assessment (as described in section A.4.iv.e of this document), and 2) performance in readiness coursework (as described in section A.4.iv.e of this document).

Each of the postsecondary readiness indicators are equally weighted, having 25 total points possible and accounting for 11 percent of the total points possible awarded for high schools. The combined maximum number of total points possible for postsecondary readiness is 50 points, or 22 percent of the total points possible.

*Exhibit 14: Weighting of Indicators
Elementary and Middle School Indicators*

Indicator	Points	Percentage
Academic Achievement	38	25.33%
Other Academic - Growth	38	25.33%
Other Academic - Growth of the Lowest 25% Additional Weight	25	16.67%
School Quality - Science Achievement	18	12.00%
School Quality - Science Growth	18	12.00%
EL Progress	13	8.67%
Total	150	100.00%

High School Indicators

Indicator	Points	Percentage
Academic Achievement	38	16.89%
Academic Growth	38	16.89%
Academic Growth of the Lowest 25% Additional Weight	25	11.11%
School Quality - Science Achievement	18	8.00%
School Quality - Science Growth	18	8.00%
School Quality - ACT	25	11.11%
School Quality - Coursework	25	11.11%
EL Progress	13	5.78%
Graduation	25	11.11%
Total	225	100%

- c. *If the State uses a different methodology or methodologies for annual meaningful differentiation than the one described in 4.v.a. above for schools for which an accountability determination cannot be made (e.g., P-2 schools), describe the different methodology or methodologies, indicating the type(s) of schools to which it applies.*

All public schools will be included in the school accountability system. Schools for which an accountability determination cannot be made will be reviewed on an individual basis to determine if a comprehensive school improvement or targeted school improvement designation is appropriate. Schools that meet this criteria consist of schools who do not meet the minimum n-size for multiple indicators.

For any school that does not meet the minimum n-size for one or more indicators, the points for the indicator(s) will be removed from the denominator in the overall score calculation. The school will be flagged as having fewer than all points possible in the denominator, but the school will still be rank ordered among all schools in the State. If a flagged school falls within the range for identification for CSI or TSI the USBE may examine additional points of data to evaluate school performance, including local assessment performance, attendance, credits earned, successful completion of program (e.g., General Educational Development (GED)), transfer to post-secondary setting, transfer from a special school to a general education setting), school climate survey results, or other criteria.

In accordance with State law (UCA section 53E-5-203), newly opened schools are not included in the State's accountability system until the school has completed the school's first year of operation for elementary schools or second year of operation for high schools. Schools serving high school grades, together with grade 7 or lower (e.g., 7-12 or K-12 schools) will receive two accountability ratings, one for high schools, which includes all high school indicators, and one for non-high schools.

vi. Identification of Schools (ESEA section 1111(c)(4)(D))

- a. *Comprehensive Support and Improvement Schools. Describe the State's methodology for identifying not less than the lowest-performing five percent of all schools receiving Title I, Part A funds in the State for comprehensive support and improvement, including the year in which the State will first identify such schools.*

Utah will identify, for comprehensive support and improvement (CSI), any Title I school that performed in the lowest performing five percent of Title I schools according to the school's performance on the indicators in the State's accountability system for three school years, on average. The USBE made these identifications beginning in the 2018-19 school year and is continuing to identify once every three years thereafter.

- b. *Comprehensive Support and Improvement Schools. Describe the State's methodology for identifying all public high schools in the State failing to graduate one third or more of their students for comprehensive support and improvement, including the year in which the State will first identify such schools.*

Utah will identify public high schools for CSI by identifying any public high school with a four-year adjusted cohort graduation rate of less than or equal to 67 percent for three school years, on average. Utah identified schools for this category beginning in the 2018-19 school year and is continuing to identify once every three years thereafter.

- c. *Comprehensive Support and Improvement Schools. Describe the methodology by which the State identifies public schools in the State receiving Title I, Part A funds that have received additional Comp support under ESEA section 1111(d)(2)(C) (based on identification as a school in which any subgroup of students, on its own, would lead to identification under ESEA section 1111(c)(4)(D)(i)(I) using the State's methodology under ESEA section 1111(c)(4)(D)) and that have not satisfied the statewide exit criteria for such schools within a State- determined number of years, including the year in which the State will first identify such schools.*

Title I schools that have received additional targeted support under ESEA section 1111(d)(2)(C) (i.e., schools that are identified as having low performing student groups) that have not satisfied the statewide exit criteria described in section A.4.viii.b within four years will be identified for CSI for low performance. The USBE will identify such schools annually beginning in the school year 2024–2025 based on prior school year data. This revision is based on the approved Elementary and Secondary Education Act of 1965 (ESEA) COVID-19 State Plan Addendum for Utah in 2021-2022.

- d. *Frequency of Identification. Provide, for each type of school identified for comprehensive support and improvement, the frequency with which the State will, thereafter, identify such schools. Note that these schools must be identified at least once every three years.*

See Exhibit 15 for timeline and frequency with which schools will be identified for CSI.

Exhibit 15: Identifying CSI Schools Timeline

Types of Schools	Description	Frequency of Identification	Initial year of identification
Lowest-Performing (Title I Schools)	Any Title I school performing in the lowest 5 percent of Title I schools for three years, on average.	Once every three years	2018-2019
Low High School Graduation Rate	Any high school in the State with a 4-year adjusted cohort graduation rate at or below 67 percent for three years, on average.	Once every three years	2018–2019
Consistently Low- Performing Student Group	Any Title I school with a consistently underperforming student group that does not improve within four years.	Annually	2024–2025

Timeline for Identification and Implementation of CSI Schools

September–October 2018

- Lowest performing schools were identified.
- Notification to local education agencies (LEA).
- The USBE held meetings with LEAs and schools to discuss school improvement process and requirements.
- LEAs and schools notified parents regarding the school’s improvement status.

November 2018–March 2019

- Comprehensive needs assessment and root cause analysis were completed for each school.
- Needs assessment and root cause analyses were used to develop a school improvement plan with input from all stakeholder groups that includes evidence-based interventions.

April–May 2019

- LEAs submitted school improvement plans to the USBE.
- The USBE convened a cross-section team to review and approve plans and provide specific feedback to LEAs.

May–August 2019

- LEAs and schools planned and prepared for implementation.

August 2019–June 2021

- Schools implemented improvement plans.
- The USBE and external consultants engaged with schools in quarterly progress checks and provided technical assistance.

- e. *Targeted Support and Improvement. Describe the State’s methodology for annually identifying any school with one or more “consistently underperforming” subgroups of students, based on all indicators in the statewide system of annual meaningful differentiation, including the definition used by the State to determine consistent underperformance. (ESEA section 1111(c)(4)(C)(iii))*

USBE’s Strategic Plan includes a commitment to ensuring equitable educational opportunities for each student. Identifying schools with one or more consistently underperforming student groups will encourage the State, LEAs, and schools to focus more attention on underperforming student groups and will help the State meet its education goals for each student.

A school is identified as having a “consistently underperforming” student group if, for two consecutive years, any of its student groups falls below the percentage of points (cut score) associated with the lowest performing five percent of Title I schools in the State’s accountability system. Student groups include economically disadvantaged students, students with disabilities, students who are ELs, and students by major racial and ethnic groups (i.e., American Indian or Alaska Native, Black or African American, White, Native Hawaiian or Other Pacific Islander, Asian, Hispanic or Latino, and Multiracial students). Schools identified must have a total N size of 10 enrolled students each year being considered for targeted support and improvement (TSI) identification. This identification occurs annually beginning in the 2018–2019 school year (except for approved exceptions resulting from the COVID-19 disruptions). Schools already identified for CSI will not be identified for TSI.

- f. *Additional Targeted Support. Describe the State’s methodology, for identifying schools in which any subgroup of students, on its own, would lead to identification under ESEA section 1111(c)(4)(D)(i)(I) using the State’s methodology under ESEA section 1111(c)(4)(D), including the year in which the State will first identify such schools and the frequency with which the State will, thereafter, identify such schools. (ESEA section 1111(d)(2)(C)-(D))*

ATSI Schools will be identified if a student group’s 3-year average performance is below the 5% of the highest performing CSI bottom 5% cut of Title I schools which is also calculated once every three years. The schools identified for ATSI will be identified once every three years following the same cycle of identification as CSI.

Schools identified must have a total N size of 10 in each year of the accountability indicator of the years used in the three-year average, and they must be currently identified as a TSI school.

- g. Additional Statewide Categories of Schools. If the State chooses, at its discretion, to include additional statewide categories of schools, describe those categories.*

The USBE has two additional designations of statewide categories of schools, Elevate and Springboard. The USBE beginning in the 2022-2023 school year, will invite schools that are not Title I and who are implementing TSI and/or ATSI activities under 20 U.S.C. Sec. 6311; to apply to be designated as an Elevate school and receive dedicated support including, but not limited to: a needs assessment, root cause analysis, resources, and support to address needs to improve the school's previous performance of TSI and/or ATSI student groups. Elevate schools will be selected every year that the USBE does not designate a Springboard school. Any of the non-Title I schools that are identified as Elevate or Springboard schools will be held to the same ESEA requirements outlined for TSI and ATSI schools. This includes Resource Allocation Reviews (RAR), improvement plans, and any additional support activities and progress monitoring required for TSI and/or ATSI schools, respectively.

Beginning in the 2025-2026 school year, The USBE will designate a school as a Springboard school based on school accountability results from the same school year. A Springboard school is not a Title I school; and when ranked according to the percentage of possible points averaged over three school years is: one of the five lowest performing elementary, middle, or junior high schools statewide; or one of the two lowest performing high schools statewide for a total of seven schools. Springboard schools will be designated every four years.

- vii. Annual Measurement of Achievement (ESEA section 1111(c)(4)(E)(iii)): Describe how the State factors the requirement for 95 percent student participation in statewide mathematics and reading/language arts assessments into the statewide accountability system.*

In accordance with State law, Utah factors the requirement for 95 percent student participation in statewide assessments into the accountability system by publishing the school's participation rate on a school's report card (UCA section 53E-5-211). The participation rate calculated for reporting purposes will include students who do not participate in an assessment due to parent opt-out provisions prescribed in State law (UCA section 53G-6-803).

Utah law authorizes a parent to excuse a student from taking a statewide assessment (U.C.A. § 53G-6-803). Compliance with this provision of State law makes it impossible for the USBE to ensure compliance with the 95 percent requirement. However, as required by ESSA, the achievement indicator calculations for Federal accountability will differ from the State calculations. Specifically, Utah will calculate the achievement indicator in accordance with ESEA section 1111(c)(4)(E)(ii), effectively counting non-tested students in excess of five percent as non-proficient for purposes of accountability and identification of schools for support and improvement under ESSA. The achievement indicator is one indicator within accountability system that accounts for 25% of a high school's overall accountability score and 37% of an elementary or middle school's overall accountability score.

Because State law conflicts with the 95% achievement indicator calculation requirement (ESEA section 1111(c)(4)(E)(ii)), complying with this requirement means that accountability scores calculated for Federal accountability will differ from accountability scores calculated for State accountability, essentially bifurcating our accountability system for reporting purposes and school improvement identification.

viii. Continued Support for School and LEA Improvement (ESEA section 1111(d)(3)(A))

- a. Exit Criteria for Comprehensive Support and Improvement Schools. Describe the statewide exit criteria, established by the State, for schools identified for comprehensive support and improvement, including the number of years (not to exceed four) over which schools are expected to meet such criteria.*

To exit CSI Low Performance (Academic Growth) designation, the school shall demonstrate, in the third or fourth year after which the school was identified as a CSI school, that the school:

1. meets individualized exit criteria that is calculated by reducing the gap by one-third in performance between the school's baseline performance and 55% of all points possible, (if the school is an elementary, middle school, or junior high school), and 57% of all points possible, (if the school is a high school), using the accountability indicators found in the Utah ESSA State Plan.

AND

2. exceeds the lowest 5% of Title I Schools from the year they were identified.

To exit Comprehensive Support and Improvement (CSI) Low Graduation (Graduation Growth) designation, the school will be required to have a graduation rate above 67 percent in either their third or fourth year of designation.

To exit Comprehensive Support and Improvement Additional Targeted Support and Improvement (CSI ATSI) (Targeted CSI) designation, the school shall demonstrate, in the third or fourth year after which the school was identified as a CSI school, that the school:

1. meets individualized exit criteria that is calculated by reducing the gap for all designated TSI student groups by one-third in performance between the student group(s) baseline performance and 55% of all points possible, (if the school is an elementary, middle school, or junior high school), and 57% of all points possible, (if the school is a high school), using the accountability indicators found in the Utah ESSA State Plan. The baseline and targets for each designated TSI group is to be reset upon identification as Targeted CSI.

AND

2. each designated targeted student group exceeds the lowest 5% of Title I Schools from the year they were identified.

This methodology provides clear targets for schools to set goals for improvement and aligns exit criteria with how schools are identified. Stakeholders emphasized the importance of clear, achievable expectations as a key to building trust, which is a necessary condition for successful school improvement.

- b. Exit Criteria for Schools Receiving Additional Targeted Support. Describe the statewide exit criteria, established by the State, for schools receiving additional targeted support under ESEA section 1111(d)(2)(C), including the number of years over which schools are expected to meet such criteria.*

To exit Additional Targeted Support and Improvement (ATSI) designation, the school shall demonstrate, in the third or fourth year after which the school was identified as an ATSI school, that the student group:

1. meets individualized exit criteria that is calculated by reducing the gap by one-third in performance between the ATSI Student Group baseline performance and 55% of all points possible, (if the school is an elementary, middle school, or junior high school), and 57% of all points possible, (if the school is a high school), using the accountability indicators found in the Utah ESSA State Plan.

AND

2. exceeds the lowest 5% of Title I Schools from the year they were identified.

Schools are expected to make the necessary improvements to exit within four years. This timeline for exiting ATSI status is intended to allow schools at least two years to implement changes in practice and two years to demonstrate improvement. Any Title I school that does not meet the exit criteria will be identified for CSI. Any Title I ATSI school that has a student group's 3-year average performance at or below the 5% cut of Title I schools when ranked will be designated as a CSI ATSI (Targeted CSI) school.

Schools are expected to make the necessary improvements to exit within four years. This timeline for exiting ATSI status is intended to allow schools at least two years to implement changes in practice and two years to demonstrate improvement. Any Title I school that does not meet the exit criteria will be identified for CSI.

- c. More Rigorous Interventions. Describe the more rigorous interventions required for schools identified for comprehensive support and improvement that fail to meet the State's exit criteria within a State-determined number of years consistent with section 1111(d)(3)(A)(i)(I) of the ESEA.*

Utah will employ a diverse set of school improvement strategies in schools that do not meet exit criteria described in section A.4.viii.a. State law requires the USBE to establish implications for schools designated for State school improvement that do not meet exit criteria (UCA 53E-5-306). As described in section 4.vi.g of this document, moving forward, the State will have one accountability and school improvement system to avoid confusion in overlapping, often conflicting requirements and initiatives. Therefore, USBE will align exit criteria and implications for not meeting exit criteria for both programs. If a school designated for improvement does not meet exit criteria, State law authorizes the USBE to intervene by:

- Restructuring a district school, which may include contract management, conversion to a charter school, or State takeover;
- Restructuring a charter school by terminating a school's charter, closing the school, or transferring operation and control of the charter school; or
- Other appropriate action as determined by the USBE (UCA 53E-5-306).

The USBE has adopted Rules establishing implications and more rigorous interventions for schools that do not meet the exit criteria (R277-920). The USBE will prescribe more rigorous interventions for such schools based on recommendations from a State review panel, composed of experts in various fields, and the local school board, with input from the community. The State review panel is required to evaluate the root causes of the school's persistent underperformance and recommend a strategy for improvement based on the specific needs of the school.

d. Resource Allocation Review. Describe how the State will periodically review resource allocation to support school improvement in each LEA in the State serving a significant number or percentage of schools identified for comprehensive or targeted support and improvement.

To support LEAs and schools in achieving excellence for each student, USBE staff will conduct a systematic and collaborative resource allocation review for all newly identified CSI schools. Additionally, any LEA that serves significant numbers or percentages of student groups that are identified for improvement will be required to participate in a resource allocation review. Because LEA size varies considerably across the State, the definition of "significant numbers or percentages of student groups" will be set at 20%. This means that any LEA that has 20% or more of their existing student groups identified for targeted improvement will be identified for a resource allocation review.

Utah law requires the USBE to study the feasibility of reporting school-level expenditures on the USBE website. Accordingly, the USBE has developed a school-level expenditures report that will be used to review resource allocation in support of school improvement. The school-level expenditures report includes school-level information on per-pupil expenditures, a breakdown of expenditures by category (e.g., instruction, administration, transportation) and average staff salaries.

Resource allocation reviews will not be limited to only the amount of financial support the LEA provides to schools in improvement status. USBE will also be looking at additional resources such as human resources, instructional time, and programs and materials. As described in the following section A.4.viii.e of this document, USBE will also conduct an LEA-level comprehensive needs

assessment for LEAs serving a significant number or percentage of schools identified for CSI or TSI.

Resource allocation reviews will not be limited to only the amount of financial support the LEA provides to schools in improvement status. As described in the following section A.4.viii.e of this document, USBE will also conduct an LEA-level comprehensive needs assessment for LEAs serving a significant number or percentage of schools identified for CSI or TSI.

- e. *Technical Assistance. Describe the technical assistance the State will provide to each LEA in the State serving a significant number or percentage of schools identified for comprehensive or targeted support and improvement.*

The USBE will provide the tool for a comprehensive needs assessment at the LEA level for all LEAs including LEAs serving a significant number or percentage of schools identified for CSI. The needs assessment is organized around the Four Domains of Rapid School Improvement and includes qualitative and quantitative LEA level data, a root cause analysis protocol, and a summary where the LEA leadership team develops key goals in response to the identified needs. The USBE will differentiate support and technical assistance provided to LEAs based on the results of the comprehensive needs assessment, which will include an LEA's capacity to implement and sustain change, commitment to improvement efforts, and whether the LEA has a clear and compelling vision and strategy for prioritizing the levels of local support for schools in improvement status.

The LEA-level comprehensive needs assessment will include:

- Dynamic and centralized visualization tools for State collected student achievement and growth data;
- Qualitative and quantitative data related to leadership, talent, instruction, and culture/engagement;
- Priority for teacher recruitment and retention, hiring, and staffing;
- Flexibility in determining school schedules, including the provision of extended school days and/or school year;
- Flexibility to determine professional learning opportunities for teachers and staff that are directly related to identified school-specific needs;
- Flexibility in budgeting at the school level to meet students' needs as identified by a school-level comprehensive needs assessment and root cause analysis;
- Opportunity for coaching teachers and leaders; and
- Opportunity for more consistent and frequent onsite support from LEA-level content specialists and administrators; and
- Enhanced capability to see how funding from various Federal and State sources can be used to support the identified goals.

Additionally, the USBE provides various supports to all LEAs with any number of schools identified for CSI or TSI. The USBE provides professional learning opportunities for LEA leaders on data-driven instruction, leadership, instructional coaching, co-teaching, core content, and evidence-based meaningful parent engagement strategies. Also, LEAs and schools will be provided technical assistance

in the selection of evidence-based practices that meet specific needs identified through the comprehensive needs assessment and root cause analysis during the development of required school improvement plans.

The USBE Center for Continuous School Improvement has been created within the USBE to align State school improvement efforts, and one of their tasks is to gather information and vet resources on evidence-based practices for inclusion in an online repository that all LEAs and schools can readily access during the school improvement planning and implementation process.

f. Additional Optional Action. If applicable, describe the action the State will take to initiate additional improvement in any LEA with a significant number or percentage of schools that are consistently identified by the State for comprehensive support and improvement and are not meeting exit criteria established by the State or in any LEA with a significant number or percentage of schools implementing targeted support and improvement plans.

Not Applicable.

5. Disproportionate Rates of Access to Educators (ESEA section 1111(g)(1)(B)): Describe how low-income and minority children enrolled in schools assisted under Title I, Part A are not served at disproportionate rates by ineffective, out-of-field, or inexperienced teachers, and the measures the SEA will use to evaluate and publicly report the progress of the SEA with respect to such description.¹⁴

Recognizing that access to an effective teacher is a critical element in assuring student success, Utah's effort to ensure equitable access to effective teachers has resulted in a small increase in the number of qualified classroom teachers as shown in Exhibit 16. While there are not large differences between the rate at which students who are identified as economically disadvantaged (low-income) or are members of an ethnic group other than white are taught by out-of-field or ineffective teachers. There are small differences in the rates at which such students are taught by inexperienced teachers. There are significant differences in the rates at which students in charter schools are taught by out-of-field or inexperienced teachers.

It is noted that the USBE updated the licensing system requirements at the start of the 2020-21 school year. This led to teachers that were previously identified as qualified to become underqualified if they did not meet the new licensure standards. The consolidation of licensing was designed to simplify the licensure process and provide more transparency about teacher qualifications to the schools and greater community. Previous data gathered is not comparable to the current data due to this transition of the greater system.

¹⁴ Consistent with ESEA section 1111(g)(1)(B), this description should not be construed as requiring a State to develop or implement a teacher, principal, or other school leader evaluation system.

Exhibit 16a: Rates of Access to Educators (2021-22)

	Rates at which students are taught by a qualified teacher	Rates at which students are taught by an inexperienced teacher	Rates at which students are taught by an unqualified teacher	Rates at which students are taught by out of field educators
Title I Schools Schoolwide	88.7%	23.4%	6.9%	--
Title I Schools Targeted	76.9%	31.2%	14.1%	--
Low-Income Title I	87.4%	24.2%	7.8%	--
Low-Income Non-Title I	87.6%	19.1%	5.2%	--
Non-Low-Income	88.6%	20.0%	6.6%	--
Minority Title I	85.2%	26.0%	9.4%	--
Minority Non-Title I	86.5%	20.1%	8.1%	--
Non-Minority	90.1%	18.4%	6.6%	--
Charter	72.1%	33.9%	17.8%	--
District	89.7%	19.14%	6.1%	--
STATE	87.3%	21.4%	7.8%	3.2%

Exhibit 16b: Percentages of Students in Title I Schools Served by an Ineffective Educator

	N Size	Percentage Served by at Least 1 Educator Not fully Qualified for their Position (Considered Ineffective)
Students in Title I schools	157524	25%
Students who Qualify for Free and Reduced Lunch	77262	25%
Students Identified as Minority Race/Ethnicity	68607	28%
Students who do not Qualify for Free and Reduced Lunch	80262	25%
Students not Identified as Minority Race/Ethnicity	88917	23%

Definitions:

- Low-Income Title I Schools include schools with greater than 45% low-income students. (Fourth quartile)
- Low-Income Non-Title I schools include schools with greater than 45% low-income students. (Fourth quartile)
- Non-Low-Income Schools include those with less than 15.5% low-income students. (First quartile)
- High Minority Schools include those with more than 40% of students from minority populations. (19% of schools)
- Low Minority Schools include those with less than 11% of students from minority populations. (19% of schools)
- Unqualified educators are teachers who are unqualified for their assignment and not in a teacher preparation program (this includes the out-of-field, unlicensed, and educators on a temporary credential). This includes ineffective educators.
 - Ineffective educators: Educators identified as ineffective are those who are not professionally licensed and fully qualified for the positions they are assigned. This includes professionally licensed educators teaching out of field, educators teaching while in an educator preparation program and educators on a Local Education Agency's Restricted License. Any student with one or more educators who was not fully qualified is considered to be served by an ineffective teacher. It may be noted that statewide 85% of educators of Title I educators are considered fully qualified and effective. Statewide 88% of all educators are considered fully qualified.
- Out-of-field educators are the percentage of professionally licensed teachers that are teaching a grade or subject for which they are not licensed.

- Inexperienced teachers are those with three or less years of experience.

Utah's definition of an effective educator at the individual educator level is demonstration of principles highlighted in the Utah Effective Teaching Standards and as evaluated by trained administrative evaluators at the local level. Estimates indicate that fewer than 50 teachers (0.1 percent) of teachers statewide have been deemed ineffective by Utah's educator evaluation system.

Recognizing the importance of establishing a measure that differentiates among educators, Utah has defined effectiveness for purposes of assessing equitable distribution at the system level using student growth on statewide assessments.

The USBE publicly reports these measures on the USBE website (<https://schools.utah.gov/licensing/humanresources?mid=5270&tid=1>). The USBE has supported and will continue to support LEAs in disaggregating their unique data to examine the distribution of their teachers.

One example of this support is the USBE hosting of equity labs. The equity labs are designed to empower districts and charter schools to identify local solutions to overcome inequitable circumstances in their educational communities. Agency staff use stakeholder surveys and feedback as a guide in the planning and implementation of the equity labs. Based on the feedback the USBE staff identified potential areas to increase equitable learning opportunities for each Utah student, in particular students who experience barriers in accessing learning opportunities. The equity lab process and focus is determined through peer-reviewed research and applicable USBE Rules and State laws that align with the USBE's mission, vision, goals, and portrait of a graduate framework. For the equity labs, districts and charter schools sent leadership teams to participate. The equity lab experience is an interactive, collaborative, and iterative process where LEA teams analyze data connected to their student population, examine root causes of the disparities in access to educational opportunities that they identify, and they create action plans to address these disparities. The USBE hosted equity labs in January 2019 and January 2022.

In addition, the USBE will make data on educator distribution and equity available to LEAs within their annual stakeholder reports.

Other State-Funded Initiatives

During the 2016 General Session, the Utah State Legislature passed Senate Bill 14 American Indian and Alaskan Native Amendments, which created a five-year pilot program to provide funding for teacher recruitment, retention, and professional development in high-poverty schools that serve high percentages of American Indian and/or Alaskan Native students. The first round of funding is serving a rural K–8 school in the eastern part of the State that serves American Indian students from the Ute-Ouray Reservation. Funding provided through the initiative allowed the district to recruit teachers from other areas of the district and from outside the district. Part of the funding has enabled the district to provide transportation for teachers to and from the school. Initial feedback from the teachers, principal, and district administrators indicates that teacher retention for the 2017–2018 school year has increased substantially, with 100 percent of teachers planning to return in 2017–2018. Utah moved this to ongoing funding in the amount of \$250,000. This had never occurred previously. Additional funding was provided during the 2017 General Session through House Bill 43 in the San Juan School District to initiate a similar

pilot program in a remote and a very high poverty rural schools located on the Navajo Reservation in the southeastern region of the state. The programs have been combined into Senate Bill 124 in the amount of \$250,000 for each school district.

In 2017, the Utah State Legislature established the Incentive for Effective Teachers in High Poverty Schools. The program authorizes the USBE to award salary bonuses to eligible teachers who are deemed highly effective as demonstrated by student growth on the State's assessments with bonuses if they currently teach or move to teach in one of the State's highest- poverty schools.

On January 25, 2018, the Utah Education Policy Center released a report entitled "Why Do Teachers Choose Teaching and Remain in Teaching?" which identifies several reasons that teachers remain in teaching. USBE will use this report to work with stakeholders to identify specific actions that can be taken to improve teacher retention in all fields and in all locations, thus improving the overall access to excellent teachers for all students.

6. School Conditions (ESEA section 1111(g)(1)(C)): Describe how the SEA agency will support LEAs receiving assistance under Title I, Part A to improve school conditions for student learning, including through reducing: (i) incidences of bullying and harassment; (ii) the overuse of discipline practices that remove students from the classroom; and (iii) the use of aversive behavioral interventions that compromise student health and safety.

Utah law, USBE Rules and policies reflect Utah's belief that every student in public schools should have the opportunity to learn in an environment that is safe, conducive to the learning process, and free from unnecessary disruption. The USBE will support LEAs in improving school conditions for student learning by providing technical assistance and implementing and monitoring USBE Rule, State laws and legislative initiatives.

Utah's Least Restrictive Behavioral Interventions (LRBI) policy states that efforts to improve school climate, safety, and learning are integrated endeavors. These efforts must be designed, funded, and implemented as a comprehensive school-wide approach that facilitates interdisciplinary collaboration and builds on a multi-tiered system of supports. The LRBI summarizes the State and Federal laws and USBE Rules and policies for discipline- and behavior-related issues that apply to all students in public schools in Utah. It also provides a comprehensive set of best practices and provides information on several comprehensive approaches to achieving safe and successful schools for Utah students.

Reducing incidences of bullying, hazing and harassment. Utah law and USBE Rule require LEA policies to address bullying conduct, including cyber-bullying, harassment, hazing, and retaliation (UCA Title 53G, Chapter 9, Part 6 and R277-613). The policies must include strong responsive action against retaliation and describe the imposition of disciplinary sanctions and ongoing staff training. State law requires parental notification of incidents of bullying (UCA section 53G-8-204). State law also requires LEAs to conduct a yearly parent seminar regarding bullying, mental health, depression, suicide awareness and prevention, and substance abuse (UCA 53G-9-703). Also, State law requires licensed educators to receive a two-hour suicide prevention training at re-licensure (UCA 53G-9-704).

The USBE currently provides training and model policies to LEAs on reducing incidences of bullying, hazing and harassment, and supports LEAs to provide annual parent seminars and required trainings. The USBE is working to improve the fidelity of statewide data collection on bullying incidences. Also, the USBE is collaborating with community partnerships to implement the SafeUT app, a statewide service that provide real-time crisis intervention to youth through text or phone call and a confidential tip program.

Reducing overuse of discipline practices that remove students from the classroom. Utah law and USBE Rule require each LEA to establish conduct and discipline policies (UCA 53G-8-202 and USBE Rule 277-609), and policies and alternatives to suspension or expulsion (UCA 53G-8-207).

The USBE currently provides professional learning on the LRBI policy to create successful behavioral systems and supports within Utah’s public schools. The LRBI policy outlines the purpose and appropriate uses of suspension from school, which are to protect other students and school staff and to impose an individual disciplinary consequence on a student in an attempt to reduce problem behaviors in the future. The LRBI policy provides recommended practices and technical assistance to LEAs related to State and Federal requirements with the specific purpose of emphasizing prevention of behavior and conduct problems and provides a continuum of least restrictive behavior interventions. Evidence-based practices for establishing safe and successful schools, implementation of multi-tiered systems of support, positive behavior support and interventions, effective classroom management, and functional behavior assessment are all included in the LRBI policy as effective practices that prevent the overuse of discipline procedures that remove students from the classroom.

The LRBI policy regional professional learning assists educators in restorative practice and trauma informed practices. A restorative practice school culture that welcomes students is essential for a foundation of restorative practices. Trauma-informed schools establish a positive school culture through clearly defined and effectively communicated discipline policies. USBE has hired new staff to provide support to LEAs who provide training and program supports on behalf of student success. These initiative support 2017 House Concurrent Resolution 10, Encouraging Identification and Support of Traumatic Childhood Experiences Survivors.

Other trauma-informed supports to LEAs include monthly school-based mental health webinars, newsletters, conferences, summits, and email blasts to school counselors, administrators, and LEA leadership.

USBE staff collaborate with other state agencies and community partners to provide supports to schools on trauma-informed practices. These collaborative efforts have resulted in statewide suicide prevention plans, research evaluation on prevention programs, structural models for student success, Trauma Informed Collaborative and a statewide safety and crisis tip line for students K–12.

7. School Transitions (ESEA section 1111(g)(1)(D)): Describe how the State will support LEAs receiving assistance under Title I, Part A in meeting the needs of students at all levels of schooling (particularly students in the middle grades and high school), including how the State will work with such LEAs to provide effective transitions of students to middle grades and high school to decrease the risk of students dropping out.

The USBE recognizes the importance of effective transitions at all levels of schooling. To meet the needs of Utah's students and families, the USBE will support LEAs in providing effective transitions by implementing and monitoring USBE Rule, State laws, and legislative initiatives, and providing technical assistance.

USBE Rule requires LEAs to conduct individualized education and career planning meetings with students and parents at least once in grade 7 or grade 8, once in grade 9 or 10, and once in grade 11 or 12 (USBE Rule 277-462-4). These meetings facilitate transitions and reduce the risk of students dropping out of school.

The USBE will assist LEAs in implementing the State's Partnerships for Student Success Grant Program (UCA 53F-5-4). Four grants were awarded to eligible partnerships in 2016–2017 aimed at improving educational outcomes for low-income students through the formation of cross-sector partnerships that use data to align and improve efforts focused on student success. The partnerships must include a school feeder pattern. School feeder patterns designate the schools that students follow as they graduate from one level to the next. One of the goals of organizing schools into school feeder patterns and partnering with community partners is to assist in transitions between elementary to middle school and middle school to high school. Partners are required to establish shared goals, outcomes, and measurement practices across several domains, including grade 3 reading, grade 8 mathematics, high school graduation, and postsecondary education attainment.

Utah law requires LEAs to provide dropout prevention and recovery services to students who have dropped out or are at risk of dropping out (UCA 53G-9-802). If an LEA does not meet key improvement metrics each year, the LEA is required to contract with a third-party provider to provide dropout prevention and recovery services. USBE will monitor and assist LEAs in implementing these requirements.

Recent legislation requires the USBE to enhance Utah's online data reporting tool, the Data Gateway, to provide functionality as an early warning system. Early warning systems enable states, LEAs, and schools to identify students at-risk of failing to meet key educational milestones such as reading at grade level, on-time graduation, or college readiness and college persistence. By identifying students early, educators can target interventions and supports to help students to achieve readiness and success. The legislation also requires the USBE to contract with a provider to create a program enabling LEAs to pilot the early warning system.

The USBE will continue to train McKinney-Vento LEA liaisons to ensure homeless students in transition are supported. This will include transitions that occur from school to school, elementary to secondary, and junior high to high school. The USBE will continue to work with the Utah Higher Education

Authority to expand that support into post-secondary education and career paths for homeless students.

The USBE also makes use of Check & Connect, an evidenced-based comprehensive intervention designed to enhance student engagement at school and with learning for marginalized, disengaged students in K–12, through relationship building and persistence. Check & Connect mentors work one-on-one with students and families, checking school data, implementing timely interventions, and engaging with families. In Utah, Check & Connect has been implemented for all students who are in foster care and those who are involved in the juvenile justice system if the students are in a mainstream school environment. Utah will be expanding Check & Connect for students with disabilities who are at risk for dropping out of school as determined through transition planning. A goal of Check & Connect is to foster school completion with academic and social competence.

Finally, transition support is a critical and integral part of the services offered to K–12 students who are in the care of JJYS and the Division of Human Services (DHS). In addition to supporting the services provided through Title ID, USBE has undertaken the efforts to facilitate transitions for students in the care of JJYS and DHS. Led by USBE staff and supported by JJYS staff, short-term, market-sensitive, easily acquired, credential-creating classes are offered to students who are in the care of JJYS for a longer term. The goal of these offerings is to enable each exiting student to acquire positive skill sets that will aid the student in acquiring employment and money-earning capacities beyond custody.

To decrease the risk of students dropping out, the USBE is developing, using mostly Title 1D funds, an online course consisting of 12 modules that result in three credit hours from Southern Utah University. This course, designed for school administrators and teaching staff, addresses the characteristics, and needs of nontraditional students, including students who are in foster care, students who are refugees, adult students, or students with other risk factors. This course will provide professional learning credits for licensed educators.

B. Title I, Part C: Education of Migratory Children

1. Supporting Needs of Migratory Children (ESEA section 1304(b)(1)): Describe how, in planning, implementing, and evaluating programs and projects assisted under Title I, Part C, the State and its local operating agencies will ensure that the unique educational needs of migratory children, including preschool migratory children and migratory children who have dropped out of school, are identified and addressed through:
 - i. The full range of services that are available for migratory children from appropriate local, State, and Federal educational programs;

The full range of services available for students who are migratory from appropriate local, State, and Federal educational programs use data to establish and identify specific areas of academic low performance to determine barriers to students' achievement in the identified areas of academic low performance. The data includes State assessment test scores, teacher-rating cut scores based on standards taught, surveys (parent, teacher, and student), focus groups, and interviews with students and their respective families. LEAs consider what programs currently exist to support the Migrant Education Program and match those programs with the needs of the students to ensure that eligible migrant students have access. The State conducts a Migrant Education comprehensive needs assessment, which is inclusive of preschool migratory students and migratory students who have dropped out of school. Additionally, each LEA's Migrant Education Program conducts its own local comprehensive needs assessment to determine the specific unique educational needs of the migratory students in its program.

Under the guidance of Utah Migrant Education Program Stakeholder Committee, the USBE completes a State migrant education comprehensive needs assessment, evaluated by a third-party vendor (Applied Learning Technology Associates), as required by the Department's Office of Migrant Education (OME). Based on that needs assessment, the USBE Service Delivery Plan is created. The Service Delivery Plan includes the following components: performance targets, needs assessment, measurable program outcomes, service delivery strategies, and an evaluation plan that describes Migrant Education Program effectiveness in relation to the performance targets and measurable outcomes. The unique needs of preschool migratory children and migratory children who have dropped out of school are included in the State Migrant Education comprehensive needs assessment, Service Delivery Plan, and Evaluation. The Utah Migrant Education Program committee of stakeholders, including relevant local, State, and Federal educational programs serving migratory children, and language instruction educational programs under Title III, Part A., review the Service Delivery Plan annually. LEAs that receive Migrant Education Program sub-grants will be required to give parents and guardians notice of services it is currently providing as delineated in the Service Delivery Plan. Notice to parents will be given regarding how to work with the LEA's Migrant Education Program Identification and Recruitment specialist to address options for any additional needed services that may fall outside the targeted services as delineated in the Service Delivery Plan. Additionally, a parent/guardian conversation guide has been developed to facilitate an understanding of services provided and to help parents/guardians advocate for their student's access to those services. The conversation guide also facilitates how to work with the LEA Migrant

Education Program Identification and Recruitment specialist to address additional needed services that may fall outside the targeted services as delineated in the Service Delivery Plan. The guide provides a glossary of terms, timelines, etc. These materials are made available in a language and format understandable to migrant parents and guardians.

The Service Delivery Plan purpose is to ensure migratory students have access to existing programs and services to eliminate barriers to academic achievement. In the event programs and services do not exist, the Migrant Education Program may refer to other agencies or design and implement a program or service to address that identified need. Again, the full range of services available for migratory children from appropriate local, State, and Federal educational programs are dependent upon the results of the State Migrant Education comprehensive needs assessment and the implementation of the Service Delivery Plan to access existing programs and services or to design programs and services.

The process is specific to addressing an identified barrier to an identified academic need at the local level. For example, a needs assessment that identifies language acquisition as a barrier to migrant students, is then provided funding to enhance access for migrant students to the existing LEA language acquisition services. Another example would be utilizing the needs assessment to identify health services such as supporting a student who needs eyeglasses to access the classroom content. These examples represent the range of supported services.

- ii. [Joint planning among local, State, and Federal educational programs serving migratory children, including language instruction educational programs under Title III, Part A;](#)

The Utah Migrant Education Program conducts a State Migrant Education comprehensive needs Assessment every three years. This is completed with direction from the Department's Office of Migrant Education, and in joint planning with a Utah Migrant Education Program committee of appropriate stakeholders (i.e., local, State, and Federal educational programs serving migratory children, including language instruction educational programs under Title III, Part A). In addition, a Utah Migrant Education Program committee of appropriate stakeholders reviews the outcomes of the State Migrant Education comprehensive needs assessment every program year. The State Migrant Education comprehensive needs assessment determines areas of concern from State assessment results, teacher ratings of student performance on State standards, and survey responses from students, parents, teachers, administrators, and community stakeholders. Additionally, responses are collected for determining concern statements from focus group interviews with students, parents, teachers, administrators, and community stakeholders (i.e., local, State, and Federal education program representatives serving migratory children, including language instruction educational programs under Title III, Part A). Under the current State Migrant Education comprehensive needs assessment, the concern statements are the following:

- 1) The identified highest needs in language arts for migrant students are Standard 6: Assess point of view and purpose in text; Standard 7: Integrate and evaluate content in text; and, Standard 8: Evaluate the argument and claims in text.
- 2) 9: Analyze two or more texts and compare. The USBE is concerned instruction for migrant students in language arts may not be effectively targeting the skills necessary to facilitate

success at the appropriate grade levels to ensure students are acquiring the basic building blocks necessary to master reading and writing.

- 3) The identified highest needs in mathematics for students who are migratory were Standard 2: Reason abstractly and quantitatively; Standard 3: Construct viable mathematics arguments; Standard 4: Model mathematics in everyday life; and, Standard 6: Calculate accurately and efficiently. The USBE is concerned that instruction for migrant students in mathematics may not be effectively targeting the foundational skills necessary to facilitate success at the appropriate grade levels to ensure that students are acquiring the basic building blocks necessary to master mathematics.
- 4) Under the current State Migrant Education comprehensive needs assessment, for EL students who are migratory the identified highest areas of need in language arts and mathematics. The USBE is concerned that English instruction for students who are migratory may not link students' native language in a way that supports English language acquisition or considers students' skill levels in reading, writing, and mathematics in their native languages. In planning, implementing, and evaluating programs and projects assisted under Title I, Part C, the USBE will address the unique educational needs of students who are migratory, including preschool students who are migratory and migratory children who have dropped out of school. The Utah Migrant Education Program will implement a comprehensive needs assessment, a Service Delivery Plan, and a Program Evaluation. The full range of services that are available to Utah migrant students is dependent upon the State comprehensive needs assessment, Service Delivery Plan, and Utah Migrant Education Program Evaluation process (ESSA Title I, Part C, sections 1304(b) and 1306(a), 34 CFR §200.83).

iii. The integration of services available under Title I, Part C with services provided by those other programs;

The services available under Title I, Part C, including the integration of services provided by other programs (i.e., language instruction educational programs under Title III, Part A) are determined under the leadership of the USBE staff over this program through consultation with local recruiters in the fall and spring meetings. These meetings are also open to parents. The 2021 Utah Migrant Education Program performance targets in response to the State Migrant Education comprehensive needs assessment are the following:

- Performance Target #1—Language Arts Achievement: By the 2024-2025 academic year, 70 percent of all students who are migratory enrolled in Utah migrant programs for at least three years will score at the proficient level (rubric score of three or higher) in language arts based on teacher ratings or State assessment scores.
- Performance Target #2—Mathematics Achievement: By the 2024-2025 academic year, 70 percent of all students who are migratory enrolled in Utah migrant programs for at least three years will score at the proficient level (rubric score three or higher) in mathematics based on teacher ratings or available State assessment scores.
- Performance Target #3—English Language Acquisition: By the 2024-2025 academic year, 70 percent of all students who are migratory enrolled in Utah migrant programs for at least one year will increase from an initial baseline on the WIDA ACCESS for ELs assessment by at least .5 toward English language fluency.

iv. Measurable program objectives and outcomes.

The current measurable program objectives and outcomes for the Utah Migrant Education Program as identified in the current Service Delivery Plan are the following:

- Measurable Outcome #1—Evaluate Claims in Text: 60 percent of all students targeted for reading instruction will demonstrate proficiency in this Utah State Content Standard based on assessment scores and/or teacher ratings of student performance.
- Measurable Outcome #2—Integrate and Evaluate Content in Text: 60 percent of all students targeted for reading instruction will demonstrate proficiency in this Utah State Content Standard based on assessment scores and/or teacher ratings of student performance.
- Measurable Outcome #3—Assess Point of View in Text: 60 percent of all students targeted for reading instruction will demonstrate proficiency in this Utah State Content Standard based on assessment scores and/or teacher ratings of student performance.
- Measurable Outcome #4—Construct Viable Mathematics Arguments: 60 percent of all students targeted for mathematics instruction in Utah migrant programs will demonstrate proficiency in this Utah content standard based on assessment scores and/or teacher ratings.
- Measurable Outcome #5—Reason Abstractly and Quantifiably: 60 percent of all students targeted for mathematics instruction in Utah migrant programs will demonstrate proficiency in this Utah content standard based on assessment scores and/or teacher ratings.
- Measurable Outcome #6—Calculate Accurately and Efficiently: 60 percent of all students targeted for mathematics instruction in Utah migrant programs will demonstrate proficiency in this Utah content standard based on assessment scores and/or teacher ratings.
- Measurable Outcome #7—English Language Acquisition Staff Development: Based on a staff development survey, at least 70 percent of Migrant Education Program staff will report that staff development has helped them to more effectively meet the needs of limited English proficient students using research-based ELP strategies to facilitate reading and mathematics achievement and progress toward high school graduation.
- Measurable Outcome #8—English Language Acquisition: 70 percent of all migrant students enrolled in Utah migrant programs for at least one year will increase from an initial baseline on the WIDA ACCESS for ELs assessment by at least .5 toward English language fluency.

In addition, the USBE will include the following two measurable outcomes:

- Measurable Outcome #9—Preschool Age Student Identification Through MAPs: The MIS2000 system is used to report preschool aged children in families to LEAs. This data is used to alert LEAs of possible preschool age children entering their LEA. Other identifiers of preschool-age migrant children will be sought and used based on LEA need, resources, and capacity.
- Measurable Outcome #10—Dropout Prevention: Students who are migratory recruiters and counselors prioritize migrant student dropouts and actively engage them to reintegrate them back into school. Where not possible, students are advised to seek their GED through their LEA programs and supports. These numbers are reported annually to the USBE in end of year reports.

2. Promote Coordination of Services (ESEA section 1304(b)(3)): Describe how the State will use Title I, Part C funds received under this part to promote interstate and intrastate coordination of services for migratory children, including how the State will provide for educational continuity through the timely transfer of pertinent school records, including information on health, when children move from one school to another, whether or not such move occurs during the regular school year.

Section 1304(b)(3) of the ESSA requires SEAs to promote interstate and intrastate coordination of Migrant Education Program services by providing for educational continuity through the timely transfer of pertinent school records (including health information) when children move from one school to another. In addition, section 1308(b)(1) requires SEAs provide for the electronic transfer of those students who are migratory records.

The USBE Migrant Education Program utilizes MIS2000 for the timely transfer of pertinent migrant student records for intrastate moves. For interstate moves, the Utah Migrant Education Program facilitates the transfer of pertinent students who are migratory records through the national Migrant Education Program data system, or the Migrant Student Information Exchange (MSIX). Concerning both the Utah MIS2000 and MSIX, student data disclosure is only to authorized representatives of State and LEAs for purposes of the enforcement of or compliance with Federal legal requirements, which relate to the Migrant Education Program (34 CFR §99.35). Additionally, eligibility for the Migrant Education Program is documented on the National Certificate of Eligibility (COE). The COE is signed by the parents/guardians of students who are migratory agree to the following statement: “I understand that my student’s information may be shared with other Migrant Education Programs.”

3. Use of Funds (ESEA section 1304(b)(4)): Describe the State’s priorities for the use of Title I, Part C funds, and how such priorities relate to the State’s assessment of needs for services in the State.

At least every three years, a committee is coordinated of appropriate Utah Migrant Education Program stakeholders (i.e., local, State, and Federal educational programs serving migratory children, including language instruction educational programs under Title III, Part A). The committee’s purpose is to review data from the comprehensive needs assessment and provide recommendations to be considered as priorities for the use of Title I, Part C funds and to serve as the basis of Migrant Education Program service delivery. The goal is to produce the corresponding Measurable Program Outcomes and the assessment of needs as delineated above in Question #1. The following are the committee’s 2021 Migrant Education Program recommendations for priority for use of funds:

- Priority 1: Incorporate tutoring and small group instruction in reading and mathematics for students who are migratory into regular academic year classrooms, summer programs, pre-school, after-school, or before-school programs, or in services provided to Out of School Youth.
- Priority 2: Utilize instructional materials and online tutorials specifically designed for students who are migratory (e.g., materials from the Migrant Parent Empowerment Consortium (MPEC) Incentive Grant website at www.migrantliteracynet.com).

- Priority 3: Develop individual learning plans for all priority for service students who are migratory (e.g., materials from the Migrant Parent Empowerment Consortium (MPEC) website at www.migrantliteracynet.com).
- Priority 4: Utilize bilingual and bicultural staff whenever possible for instruction, including in pre-school settings when possible.
- Priority 5: Target reading instruction in Standard 8: Evaluate the argument and claims in text; Standard 7: Integrate and evaluate content in text; and, Standard 6: Assess point of view and purpose in text for priority for service students who are migratory.
- Priority 6: Target mathematics instruction in Standard 3: Construct viable mathematics arguments; Standard 2: Reason abstractly and quantitatively; and, Standard 6: Calculate accurately and efficiently for priority for service students who are migratory.
- Priority 7: Create programs and ensure opportunities for parents to become engaged in the academic achievement of their children (e.g., pre-schools, Academic Parent Teacher Teams, Parent Literacy Nights, and Take Home Book Bags, utilizing the parent resources in English and Spanish from the Migrant Parent Empowerment Consortium website at www.migrantliteracynet.com).
- Priority 8: Implement EL and cultural awareness training for all teachers and staff working with students who are migratory.

Utah does not have mandatory preschool. However, based on needs, the USBE will work with LEAs to provide needed support for students through the MEP grant awards. The USBE will also work closely with Head Start programs throughout the State to meet the needs of migratory children in areas where preschool is unavailable through the LEA. The USBE will also create a better system of collaboration with GED appropriate programs for students who may benefit from such.

- Priority 9: Prioritize pre-school services for families of students who are migratory with preschool age children. This will be accomplished by ensuring recruiters who identify families of students who are migratory enter data for all children in the family. This allows LEAs to be alerted to possible migrant preschool age children entering the school system and provide appropriate services and supports. Other ways of identifying pre-school age migrant children will also be established so that the maximum number of students can be found and provided these services.
- Priority 10: Regular school year recruiters and counselors will actively seek out, and provide appropriate services, to drop out students. Services will include, but not be limited to credit recovery, summer programs, tutoring services and other services that help reintegrate drop out students in a timely and efficient manner. Where that is not possible, students will be guided to completing their GED and supported by counselors to ensure they have the same opportunities for continuing into college and or career studies after graduation.

C. Title I, Part D: Prevention and Intervention Programs for Children and Youth who are Neglected, Delinquent, or At-Risk

1. Transitions Between Correctional Facilities and Local Programs (ESEA section 1414(a)(1)(B)): Provide a plan for assisting in the transition of children and youth between correctional facilities and locally operated programs.

Background

Utah has a unique approach (compared to other states) for using Title I, Part D funds due to Utah's significant usage of State YIC funds that, for approximately 30 years, annually provide nine months of regular public education to youth who are in State custody and in State care. YIC-supported schools, all independently accredited by Cognia, offer most of the rigorous school academic and some CTE credit-bearing programs students would expect to find in any high-quality traditional schools. The opportunities include a complement of music and art in addition to the students' academic instruction.

State YIC funding, supported by Title I, Part D funding during summer school, provides students access to concurrent enrollment for those advanced enough to pursue academic rigor at that level. Additionally, State YIC funds provide additional post high school classes for those who have graduated from high school and/or received high school equivalent credits.

State YIC funds provide no transition services; rather, transition services are funded by Title I, Part D. (See USBE Rule 277-709 at <https://rules.utah.gov/publicat/code/r277/r277-709.html> for more YIC information.) In addition, Title I, Part D funds provide supplementary supports at selected, eligible sites with the JJYS and the HHS in the following three ways:

- 1) Annually, a 25-to-35-day extended, academic school year (summer school) is offered, which is a continuation of the services offered by State YIC funds during the regular 9-month school year;
- 2) CTE classes that are not offered by State YIC funding; and
- 3) Ongoing leadership, support, and advocacy for education transition and career advocacy services not provided by State YIC funding.

From YIC to Non-custodial care

Education transition services to eligible Utah YIC are primarily provided through Federal Title I, Part D funds. To achieve this service, the USBE provides funding to LEAs to hire staff who provide education transition and career advocacy services to eligible students found in LEAs. The staff positions are called Education Transition and Career Advocates (ETCAs).

As described in the Multiagency Statewide Transition Alignment document (Exhibit 17), education-related transition roles and services align with JJYS staff roles and services who include, but are not limited to, JJYS Transition Services specialists, JJYS Case Managers, clinicians, etc. Usage of this document, jointly created and "owned" by all levels of JJYS and education staff, predictably stabilizes the quality and impact of services regardless of who is serving in the various levels of staff positions.

Starting in November 2015, with stakeholder input, the main goals and roles associated with successful transitioning of students into and out of State care are clearly outlined, collaboratively implemented, systematically reported, and regularly evaluated. This evaluation is conducted by JJYS, USBE staff, and LEA staff in meetings that are held semi-annually.

The matrix in Exhibit 19 distributes all the key transition services among relevant Utah agencies, thereby eliminating redundancies and service gaps while creating self-regulating, cross-agency accountability processes, and systematized transition services to eligible students. In the matrix, a number “1” indicates which position and agency has primary responsibility for a particular transition function for students and a “2” indicates who has secondary responsibility while “X” indicates a persons’ supportive roles.

Summative Reporting

Additionally, the USBE requires LEAs to support students and to report on individual transition outcomes including all variables of the Consolidated State Performance Report (CSPR) as well as the following:

- 1) Enrollment in public school two weeks after release from State custody/care;
- 2) Follow-up on each student 90 days post release (where permitted) that report the CSPR data and the following data:
 - a. Academic credit earned (split out from CTE credits earned),
 - b. Number of earned skill/employability certificates earned, and
 - c. If current released student employment is related to a skill certificate(s) a student gained while in State care/custody.

Between “Non-Custodial Care and State Custody/Care”

The USBE is the sole provider of public education in this State through LEAs. Inside Utah’s (student information and) Record Exchange (UTREx) system, student transcripts are updated by, available to, and exchanged among all LEAs daily. Schools, including all YIC and Title I, Part D-funded schools, update daily and have full access to these transcripts and other relevant student information pieces. In short, records seamlessly move between YIC/Title I, Part D-accredited schools, and other public accredited schools.

The benefits of UTREx include, among others, relevant records of what each student is currently studying, what each student has for accumulative subject-by-subject credits—regardless of which school (including YIC schools in LEAs) helped students to gain credits. Between public non-custodial and custodial care schools, records are constantly updated, accurate and shared.

Statutory Waiver

On June 22, 2017, the USBE received a statutory waiver to exempt the State from the ratio for spending academic and transition funds—70 percent to 30 percent respectively—to be at yearly levels

that meet the State's strategic goals. This favorable Federal waiver enables the State to create plans for additional outreach to eligible youth who are currently not receiving transition services.

2. Program Objectives and Outcomes (ESEA section 1414(a)(2)(A)): Describe the program objectives and outcomes established by the state that will be used to assess the effectiveness of the Title I, Part D program in improving the academic, career, and technical skills of children in the program.

As explained above, Title I, Part D funds represent a small part of and function as a supplement to State funds for YIC. However, the program is outlined below.

Program Objectives

To meet the listed program objectives and outcomes, the USBE is using and will continue to use the following:

- Dual agency, State-level strategic planning and guidance;
- Student outcomes data collection;
- External analysis and consultation; and
- Onsite monitoring.

Dual-Agency, State-Level Strategic Planning and Guidance

Along with designated local-level educators and JJYS staff, the State's senior staff from YIC, Federal Title I, Part D and JJYS director, deputy director and senior staff meet annually for strategic planning and then, regularly address progress, alignment, training, outcomes, etc. Since YIC and Title I, Part D staff hired by LEAs must work well together in JJYS sites, the two agencies have and continue to work hard to assure that educators and JJYS local-level staff know each other's vocabulary, key goals, aspirations, weak spots, strengths, challenges, measurables, etc., and work collaboratively to assure the success of achieving each other's desired outcomes. With this dualistic approach of unified vision, a single mission statement for all entities has been developed and guides them; combined oversight and regular review of goals' measurable progress lead the way; ongoing sharing of goals, roles, procedures, struggles, and successes occurs; and monitored alignments and adjustments are regularly employed, with the combined efforts improving all outcomes, including academic, career and technical measurables.

Student Outcomes Data Collection

Student-level education data are collected via UTREx. However, because Utah uses Title I, Part D funds to support the existing State YIC system it is difficult to attribute and/or measure cause-and-effect usage of Title I, Part D funds in the academic areas. Title I, Part D academic funds primarily support 25-to- 35- day summer LEA programs; this length of time is too short to implement valid pre/post testing. Each LEA does set goals for each student, including that each student will earn at least some credit during summer schools towards high school graduation, summer school may include:

- 1) A finishing school in which students have been given the gift of extended days to complete subjects that they did not complete during the 9 months of YIC-supported classes;
- 2) An early start school to give students an early start on some subjects that interest them;
- 3) A tutoring school to intensify skills that have challenged them;
- 4) A credit recovery school, in some circumstances, to aid students to catch up on classes and credits that have eluded them.

As part of the dual agency efforts to achieve academic, career and technical goals, Utah seeks to have every student leave custody with positive marketable skills in area(s) that may interest each student and is feasible to be offered to each student. Therefore, the two agencies measure (by using a two-agency, online, student-by- student, LEA-by-LEA, live document) the number of short-term, market-sensitive, skill certificates that each student earns, among other variables. Please see Exhibit 17, Secure Care Programming, School and Transition Outcomes, below.

For the report, Columns A, B, and C are completed by JJYS, columns 1–13 are completed by LEA ETCAs, and the balance are completed mostly by JJYS with some ETCA support.

Exhibit 17: Secure Care Programming, School and Transition Outcomes

Secure Care Programming, School and Transition Outcomes		Site: Ogden Mill Creek Youth Center	
A	B	C	D
Student Names and Case Numbers	Placement Date	Entry Status	School Related
Student #1 55543-98		Credit deficient at	1
Example #2 4338388		On track for graduation at release	1
		School Related	2
		Earned HS Credits	1
		Earned HS Diploma	1
		Enrolled in Public K-12	1
		Enrolled in ATC	1
		Earned ATC Hrs & Completed ACT	1
		Enrolled in	1
		Earned college credits	1
		Voc Rehab	1
		WIOA Registration	1
		Short-Term Certs	4
		Alive at 25	1
		Fire Extinguisher	1
		First Aid / CPR	1
		Flagger (18)	1
		Food Handlers Permit	1
		OSHA	1
		ServSafe	1
		WorkKeys / Key Train	1
		NCRC - National Career Readiness	1
		CTE/Voc Programs	3
		Bicycle Repair	1
		Carpentry/Constructio	1
		Culinary	1
		Green House /	1
		Microsoft Certs	1
		Multimedia / Spy Hop	1
		Work-Based Learning & Job Training	1
		Talents & Interests	1
		Academic Awards	1
		Competitive Sports	1
		Creative Arts & Music	1
		School Leadership	1
		Soft Skills	1
		Why Try?	1
		WAGES / Employability Class	1
		DBT	1
		EPIC	1
		Seeking Safety	1
		Other	1
		Lift Truck (18)	1
		Sums of Rows	11
		Received Employment	1
		Received Employment Directly Related to classes, certifications, etc. (please list column #s from top line)	16, 17, 19, 22, 31

Source: USBE, 2017

Fourth, annually, as one method to assess program effectiveness, the State requires LEAs to report all variables required by the Department in the annual CSPR. Please see Exhibit 18 below.

Exhibit 18: Accountability Report—Program Activity and Outcomes

	A	B	C	D	E	F	G	H	I	J	K
66	STUDENT OUTCOMES (2.4.1.3.2)										
67	Students' Outcomes While in the State Agency Program/Facility/Site <u>AND</u> Within 180 Calendar Days After Each Student's Exit										
68	In the table below, for ND programs offered from the <u>beginning of your normal school year of August XX, 2016 to the end of your school year in August XX(-1), 2017</u> , provide the unduplicated number of students who attained outcomes while in (a) specific program/facility and (b) 180 days after exiting the program. Please follow the guidance on each row.										
69	Section 8: NUMBER OF STUDENTS Please enter the <u>UNDUPLICATED count</u> of students.		Oak Springs School		Observation and Assessment		Juvenile Corrections		Adult Corrections /At Risk		
70			While in site	180 days after exit	While in site	180 days after exit	While in site	180 days after exit	While in site	180 days after exit	
71	1a	Number of students who <u>enrolled</u> in any district school AFTER EXIT. (Do NOT count students in "1b" if counted here.)									
72	1b	Number of students who <u>planned to enroll</u> in any district school AFTER EXIT. (Do NOT count students in "1a" if counted here.)									
73	2	Number of students who earned CTE credits									
74	3	Number of students who earned high school NON-CTE course credits									
75	4	Total # of Students who earned any credits (CTE or non CTE) (This is NOT the sum of above lines 2 and 3.)									
76	5	Number of students who earned employability credential/certificate like "Food Handlers Permit, Flagging, OSHA, etc."									
77	6	Number of students who enrolled in a GED [®] preparation program									
78	7	Number of students who earned GED [®] (earned while in a facility OR by 90 days after exit)									
79	8	Number of students who obtained a high school diploma (earned while in a facility OR by 90 days after exit)									
80	9	Number of students who accepted and/or enrolled in post-secondary education									
81	10	Number of students who enrolled in job training course(s)/program(s)									
82	11	Number of students who obtained employment									
83	12	Number of students who earned postsecondary credits									
84	13	Number of students who obtained employment related to skill certificates earned									
85	14	Number of students who attended school consecutively for 2 weeks after release.	Two Weeks after release								
86											
87	STUDENT ACADEMIC PERFORMANCE										

Source: USBE, 2017

Fifth, student portfolios and transcripts are given to each student in hard copy and electronic copy. Additional copies are available with the LEAs for each student for the times when former custodial students require replacement copies.

Onsite Monitoring

Onsite monitoring occurs at selected JJYS facilities that use YIC/Title I, Part D funds USBE YIC and Title I, Part D staff conduct thorough reviews in connection with the three-year cyclical monitoring of all LEA YIC programs. These reviews examine pedagogy, all aspects of finance, collaboration with other agencies, program implementation, teacher qualifications/licensures, cross agency supports, quality of instruction, transition services, etc. In addition, special education service delivery and results are monitored by USBE staff and reported to each facility/school district providing the services. See the details of the monitoring by referring to Exhibit 19.

Exhibit 19: Multi-Agency Statewide Transition Alignment Form

	A	B	C	D	E	F	G	H	I	J	K	L	M
1	1=Most Resp. 2=2nd Resp. X=Particip	Multi-Agency Statewide Transition Alignment											
		STUDENT NEEDS (* = future considerations)	TS S	ETC A	SC STA FF	CM /C W	Adv oca te	C&C Meato r	Educ ation	Clin icia n	Voc Reh ab	WIOA	POs
2	TRANSITION PLANNING	Interagency Collaboration/Team	1	X		1	x		x	x			
3		Transition Plan/Exit Plan/CCR	X	x		1							
4		TSS Weekly Group Class	1										
5	ASSESSMENTS	TABE Scores		1									
6		Career Assessments/Utah Futures		1									
7		Identify Stability	2			1			X				
8		Mental Health Assessment								1			
9		Youth has taken College Entrance Exam (ACT)/SAT/ACCUPLACER		2					1				
10		Special Education Child Find		1					1				
11		Work Keys*	X	x	1	X							
12	SKILL TRAINING	Interviewing/Role Playing	2	1	3						x	x	
13		Resume Writing/building	2	1	3						x	x	
14		Criminogenic Needs	X		1								
15		Job Certifications			1						x	x	
16		Job placement and preparation (job fair, work-based learning, business partnership)*	2	1		2					x	x	
17		Social skills & Independent Living	X		1				2		x	x	
18		Financial Planning/Literacy		1					1		x	x	
19		Job Experience*		2	1						x	x	
20		Reading/Writing/Communication		2	X				1		x	x	
21	SCHOOL	High School Diploma / GED*		2				3	1				
22		SPED Referral	X	X	X	X	X	X	1	X			
23		Transfer of school records to Public ed./Education plan	2	1		2							
24		Public Ed. Enrollment/ YIC Intake (Sending & Receiving)	X	X		1							
25		Monitor Grades	X	1	X	X	2	1	2				
26		Monitor Attendance	X	1		X	2	1	2				
27		Monitor Behavior		1			2	1	2				
28		Monitor Credits toward	X	1		X	2	1					
29		Enroll in Applied Tech Program	X	1									
30		Enroll in Job Corp	X	1									
31		Apply for Financial Aids Scholarships FAFSA	X	1	X								
32		Apply for Pell Grant		1									
33		Apply for College/Post-Secondary		1									
34		Connect with Pub. Ed. Check & Connect Mentor		1				X					
35	EMPLOYMENT	Apply for on-the-job Training /	1	2		1					X	X	
36		Apply for Voc Rehab	1	2		1					X	X	
37		Apply for LYFE Program/ WIOA	1	2		1					X	X	
38		Register for Selective Service	1	2		1					X	X	
39		Apply for jobs	1	2		1					X	X	X
40		Employment monitoring	1	2		1					X	X	
41	COMMUNITY & FAMILY RESOURCES	Housing	2			1							
42		Connect with Community Resources (Health department, LDS, TAL)	1			1							
43		Citizenship Status	1			1							
44		Transportation	2			1							
45		ID/License	1			1							
46		Family Support/Guardian (CFTM)	X	X	X	1	X		X				
47		Medical/Mental Health Treatment	X	X	1	1				1			
48		Connect with JJS Mentoring			1								
49	Transition Monitoring	School Monitoring/Scheduling	1	2		1		1					
50		Employment monitoring	1			1							
51		Placement Progress/Obstacles	1			1							
52		Relapse	X		X	1	X			X			

Source: USBE, 2017

D. Title II, Part A: Supporting Effective Instruction

1. Use of Funds (ESEA section 2101(d)(2)(A) and (D)): Describe how the State educational agency will use Title II, Part A funds received under Title II, Part A for State-level activities described in section 2101(c), including how the activities are expected to improve student achievement.

In alignment with Goal 2 of the USBE's Strategic Plan, Effective Educators and Leaders (<https://www.schools.utah.gov/file/4289afc9-7939-4805-9d1b-1314a800a4d9>), the USBE uses on Title II, Part A funding to support various State-level activities designed to build the capacity and effectiveness of teachers as well as school leaders. This section describes the nature of existing and anticipated activities supported by Title II, Part A funding in alignment with this goal.

Certification, Recertification, and Licensing

The USBE transitioned to a new licensure and endorsement system, revised the Utah Effective Teaching Standards, and revised the Utah Effective Leadership Standards since the submission of the previously approved July 2018 Utah ESSA plan. To support educators in obtaining original licensure under the revised structure and to encourage educator growth through the pursuit of additional endorsement(s) in various content areas, the USBE creates, monitors, and administers competency-based pathways (including microcredentials) that allow educators to become qualified to teach in areas and grade levels beyond their original licensure.

Equitable Access to Effective Teachers

The USBE uses Title II, Part A funds assist in supporting equitable access to effective teachers by providing school-based as well as system wide professional learning support to educators and teams from LEAs to:

- understanding formative assessment design, including issues related to assessment item bias; developing skills for providing evidence-based pedagogy and leveraging asset-based strategies for instruction, and support statewide Equity Labs for LEAs as described earlier in our plan.

Professional Learning and Growth

Title II, Part A funding supports the USBE in providing multiple professional learning opportunities for teachers and leaders across the Utah. These opportunities are based on data-demonstrated needs and the USBE efforts to personalize ongoing supports for teachers, which include:

- supporting core standards implementation institutes;
- offering initiatives to improve student literacy outcomes;
- supporting State and local systems for providing learner-centered instruction;
- building capacity of local education agencies (LEAs) to prepare cohorts of instructional coaches, including literacy coaches, mathematics coaches, and STEM specialists to support recruitment and retention;
- creating professional learning communities that explore problems of practice related to instructional coaching, mentoring, and induction; and,
- fostering teacher leadership opportunities in Utah schools.

Similar professional learning and growth opportunities are provided for administrators, including:

- orientating administrators to content-specific programs;

- facilitating professional learning communities that explore problems of practice related to school leadership;
- supporting improved student literacy outcomes;
- developing competency with implementing leadership standards;
- providing supports and building capacity for mentoring and coaching of school leaders;
- improving collaboration to build coherent principal pipelines; and,
- offering certification opportunities for educator evaluation.

Expected Student Achievement Outcomes

Effective teachers and school leaders are critical in the teaching and learning process. A meta-analysis of 35 years of research indicates that teachers and school leaders have a strong significant effect impact on student achievement. To the extent that school leaders and educators build positive and supportive learning environments, schools are well positioned to realize the positive effects associated with collective efficacy¹⁵ A cycle of continuous improvement benefits both seasoned and newly hired teachers and administrators. As the USBE continues to create and adapt professional learning and growth opportunities to meet the needs of teachers and leaders, we prepare our teachers and leaders to develop the skills necessary to improve their effectiveness in practice. This, in turn, guides our teachers and administrators toward developing the capacities mentioned above. Thus, providing meaningful professional learning for teachers and school leaders leads to the development of positive learning environments and opportunities that support increased student achievement.

2. Use of Funds to Improve Equitable Access to Teachers in Title II, Part A Schools (ESEA section 2101(d)(2)(E)): If an SEA plans to use Title II, Part A funds to improve equitable access to effective teachers, consistent with ESEA section 1111(g)(1)(B), describe how such funds will be used for this purpose.

The USBE uses Title II, Part A funds to assist in supporting equitable access to effective teachers by providing school-based as well as system wide professional learning support to educators and teams from LEAs in (a) understanding formative assessment design, including issues related to assessment item bias, (b) developing skills for providing evidence based pedagogy and leveraging asset-based strategies for instruction, and (c) supporting statewide Equity Labs for LEAs as described earlier in our plan.

3. System of Certification and Licensing (ESEA section 2101(d)(2)(B)): Describe the State's system of certification and licensing of teachers, principals, or other school leaders.

The USBE is responsible for setting the qualifications for educator licenses. A Utah educator's license may be obtained through traditional university preparation programs, or through alternative routes as defined in Utah law and USBE Rule.

¹⁵ Collective teacher efficacy. Corwin Visible Learning plus. (n.d.). Retrieved September 16, 2022, from https://www.visiblelearningmetax.com/influences/view/collective_teacher_efficiency

Our system is outlined in the following Utah law and USBE Rule:

- USBE Rules 277-301, 277-303, 277-304, and 277-305
- UCA 53E-6-201
- UCA 53E-6-302

4. Improving Skills of Educators (ESEA section 2101(d)(2)(J)): Describe how the SEA will improve the skills of teachers, principals, or other school leaders in order to enable them to identify students with specific learning needs, particularly children with disabilities, English learners, students who are gifted and talented, and students with low literacy levels, and provide instruction based on the needs of such students.

To improve the skills of teachers, principals, or other school leaders, all professional learning supports noted above in D1 are designed to enable our educators to identify and meet the needs of students with specific learning needs, particularly students with disabilities, students who are ELs, students who are gifted and talented, and students with low literacy levels. The USBE relies upon Utah's Professional Learning (PL) Standards to design these opportunities to model elements of personalized learning. The Professional Learning Standards help clarify relevant and necessary aspects of designing professional learning and Utah relies upon the PL Standards to (1) provide PD to agency staff and LEAs associated with understanding and implementing the PL Standards in the PD they develop and provide for teachers, and (2) develop state-sponsored PL that models the use of the PL Standards. This modeling in turn supports our LEAs in designing professional learning to meet the needs of all students.

Additionally, Utah has invested time and resources in developing a robust multi-tiered system of supports (MTSS) framework and a High-Quality Instructional Cycle while utilizing principles of Universal Design for Learning within these structures to meet the needs of all students.

5. Data and Consultation (ESEA section 2101(d)(2)(K)): Describe how the State will use data and ongoing consultation as described in ESEA section 2101(d)(3) to continually update and improve the activities supported under Title II, Part A.

The USBE tracks the trend data of percentages of State-qualified teachers and student achievement. If an LEA's percentages are decreasing in either area or both, the USBE consults with the LEA and encourages the LEA to use funds to increase the number of State-qualified teachers and improve student achievement.

Additionally, the USBE administers an ongoing educator exit survey to provide insight into factors affecting teacher retention. This is supplemented by an educator engagement survey administered in even numbered years. Quantitative and qualitative data obtained from these surveys informs statewide response to provide appropriate supports and professional learning to LEAs.

Consultation with internal USBE staff as well as with external stakeholders is a critical part of ensuring that Title II, Part A funds are used effectively and decisions about resource allocation are fully informed by the full range of stakeholders required by section 2101(d)(3) of the ESEA. Use of state Title II, Part A funds are informed by input from content and grade level teachers, school principals, and other school district, charter, and teacher leaders (e.g., curriculum directors, charter school directors, and the Utah Hope Street Fellows). Through their engagement in regular stakeholder meetings, these stakeholders provide USBE staff with perspectives of needs based on local conversations with classroom teachers, parents, and school communities. Agency staff, relying upon the perspectives obtained, compiles relevant data to inform annual funding decisions associated with prioritizing the use of state Title II, Part A funds.

As an example of USBE engagement of the full range of stakeholders required by section 2101(d)(3) of the ESEA beyond these settings, USBE staff:

- leverage feedback from the field, obtained through stakeholder consultation, surveys, and/or student achievement data, to determine relevant activities to support advancing areas of opportunity;
- ensure a diverse representation and seek varying perspectives of educators within stakeholder groups from across the State, especially those who work in high-need schools and in early education; and,
- as much as possible, ensure that stakeholders engaged are representative of the State or LEA.

6. Teacher Preparation (ESEA section 2101(d)(2)(M)): Describe the actions the State may take to improve preparation programs and strengthen support for teachers, principals, or other school leaders based on the needs of the State, as identified by the SEA.

The USBE is engaging stakeholders, including educator preparation programs, LEAs, and teachers, to clearly articulate the competencies required to be an educator. The defined knowledge, skills, and dispositions for each license area and content endorsement must be demonstrated by each candidate to qualify for their educator license. The educator preparation programs will align coursework and program requirements to these competencies; the demonstrated competencies will ensure that teachers, principals, and other educators are adequately prepared to perform their professional duties in schools.

The educator evaluation system is being revised to provide personalized and targeted support for educators. The new system will require each educator to focus their professional learning and coaching on educator standards aligned with evidence-based practices that increase opportunities for educator growth. School leaders will support educators in their individual needs to be more effective educators. Additional support will be provided to educators who are in their first three years of service in Utah through formal mentoring programs administered in LEAs. These early-career educators will be provided trained mentors who are experienced and professionally licensed educators; the mentors will be formally trained to support new educators through local professional learning and/or State-provided teacher mentor professional learning modules that prepare mentors for the work and build capacity for assisting early-career educators acclimate to the profession and improve instructional practice.

E. Title III, Part A, Subpart I: English Language Acquisition and Enhancement

1. Entrance and Exit Procedures (ESEA section 3113(b)(2)): Describe how the SEA will establish and implement, with timely and meaningful consultation with LEAs representing the geographic diversity of the State, standardized, statewide entrance and exit procedures, including an assurance that all students who may be English learners are assessed for such status within 30 days of enrollment in a school in the State.

Consultation for Utah's Title III State plan and input into its development was elicited from every LEA during meetings for ALS directors held on September 1, 2016; October 12, 2016; November 9, 2016; and February 17, 2017. An ESSA workgroup for Title III convened in September 2016 with representation from rural, urban, and suburban regions along with teachers, university professors, and resettlement agencies (Catholic Community Services, International Rescue Committee, and Asian Association of Utah). Bi-weekly webinars began in August 2016 to update all stakeholders on ESSA and the best practices implemented in LEAs that would affect the development of the State plan. All meetings and webinars were live-streamed and recorded with support materials on the media channel designated for the USBE Student Support and Title III sections' communications.

The Title III ESSA workgroup developed a survey about the key features of ESSA, especially the accountability for Title III as included in Title I. There were 994 responses to the survey, which included a wide range of stakeholders from every region of Utah, including both community-based organizations, government and business representation, secondary and elementary teachers, 143 parents, 132 teachers of ELs, and 185 school and LEA administrators. Over 72–80 percent of survey respondents agreed to the following:

- Statewide standardized entrance and exit procedures for ELs;
- Assessments in non-English languages that will most likely yield accurate information of what students already know and can do;
- Development of long-term goals and interim performance measures for all student groups, including ELs and ELs with special needs, to track increases in the percentage of ELs making annual progress in achieving ELP as measured by the State ELP assessment, academic achievement as measured by proficiency on State academic assessments, and high school graduation; and,
- A statewide procedure for attainment of ELP within a period of time that takes into consideration (at time of the student's identification): 1) student's initial ELP level; 2) student's grade level; 3) amount of time in language education programs; 4) primary language literacy; and 5) background of ELs, whether refugee, immigrant, unaccompanied minor, students whose parents have been deported, or students with limited or interrupted formal education (SIFE).

Based on the survey data described above and regular consultation with LEAs, both of which represent the geographic diversity of Utah, the entrance, classification, reclassification, monitoring, and exit procedures are applied statewide and aligned to the strategic priorities of the USBE.

The USBE prioritizes the educational rights and equitable educational opportunities of “national origin-minority children” as established in Title VI of the Civil Rights Act of 1964 (Public Law 88-352), Section 601 and by the Equal Educational Opportunities Act of 1974 (Public Law 93-380) which requires states to ensure that an education agency “take(s) appropriate action to overcome language barriers that impede equal participation by its students in its instructional programs” (Sec. 1703(f)).

Entrance Procedures

Students, new to Utah or returning to Utah after leaving, must be identified, and assessed for services within 30 days of the first day of school. Students returning to a Utah school, within the same school year, do not need to be screened if they have a Utah administrated WIDA Screener or WIDA ACCESS score from the same school year. Those students who enroll after the first month at the beginning of the school year must be assessed during the first 10 school days of enrollment. Parent(s) or guardians must be notified of placement in a language instruction education program within the 30-day window at the beginning of the year or the 10-day window thereafter, whichever applies for identification. LEAs shall keep record of all EL documentation to verify the correct process is in place.

-Page 78 - The standardized Utah Home Language Survey (HLS) is translated into six languages commonly spoken in Utah for the enrollment process. It is the responsibility of the LEA to provide a translated HLS if needed in any other languages.

At the time a student first enrolls, Utah uses a standard HLS¹⁶ that identifies a student with a native language other than English, or who comes from an environment where a non-English language either is dominant or may have affected a student’s ELP. Required questions to target the most relevant information include the following:

- What is the primary language used in the home, regardless of the language spoken by the student?
- What is the language most often spoken by the student?
- What is the language that the student first acquired?
- What language do you prefer for school-to-home information?
- Does your family come from a refugee background?

The purpose of the HLS is to identify those students who may be potentially designated as ELs. Potential EL students, as determined by the HLS, must be assessed in the domains of listening, speaking, reading, and writing through the State-adopted ELP assessment currently WIDA Screener. The WIDA Screener for Kindergarten students assesses only the domains of speaking and listening during the first semester of the school year. Kindergarten students who enroll during the second semester of the school year must be assessed in all four domains. The result of the assessment determines if, in fact, the student is an EL and in need of specialized language and academic support services to which they are entitled. To ensure that students are not wrongly identified as potential

¹⁶ Office of English Language Acquisition, U.S. Department of Education, 2016. “English Learner Toolkit, Chapter 1: Tools And Resources For Identifying All English Learners.” Retrieved from <https://www2.ed.gov/about/offices/list/oela/english-learner-toolkit/chap1.pdf>

ELs, technical assistance is provided by the USBE. Including refugee background and preferred home-to-school communication in the HLS helps LEAs determine appropriate services for EL and refugee families, but it does not trigger language screener administration.

Technical assistance to LEAs is provided by the USBE through an annual August webinar to ensure the purpose of the HLS is clearly understood by those who will administer it and those who will complete it. This survey cannot be used to confirm citizenship status or predetermine educational services. Consequently, to obtain accurate information, LEAs shall inform parents and families that the information provided by them will not be used to determine legal status or for any immigration purpose.

The standardized Utah HLS is translated into six languages commonly spoken in Utah for the enrollment process. It is the responsibility of the LEA to provide a translated HLS if needed in any other languages.

Classify (Confirm/Disconfirm) a Student as an EL

Utah is a member of WIDA Consortium and as a member uses the initial ELP screener (WIDA Screener) to confirm EL Status (students who score a composite of ELP level 1–4.9). Those who receive a composite score between 5.0 and 6.0 on the WIDA Screener do not qualify for English language services.

Individuals who administer the WIDA Screener receive training on administering and scoring the screener/assessment. The composite score of level 5.0 is used for kindergarten through twelfth grade to determine fluency.

Parents shall be notified annually by LEAs of a student's ELP status within 30 calendar days of the first day of school or within 10 school days after enrollment for students who are identified after the first month of school through a standard letter, adhering to the Federal Title III requirements, provided in the preferred language requested by the parent(s)/guardian(s) for school communication. Examples are provided in multiple languages by the USBE on the Utah Title III website. Through this letter, parents are informed that even if their child qualifies for EL services, they have the right to decline such services. However, the school is still responsible to ensure that students learn English in every educational setting, which includes after school, summer school, or other opportunities for evidence-based interventions, which are discussed with ALS directors at quarterly meetings and in monthly webinars.

Exit Procedures

In Utah, reclassification, or exit criteria, is based on the following two criteria: 1) ELs receive a minimum overall composite score of 4.2 and 2) a minimum score of 3.5 in the speaking domain on the annual WIDA ACCESS for ELs assessment. The LEA must notify parent(s) and/or guardian(s) of student scores within three weeks of receiving WIDA ACCESS results, in accordance with the Utah Testing Ethics Policy. LEAs shall notify the parent(s) and/or guardian(s) through the standard parent

notification letter that the individual student has been exited from EL status and active language instruction services and will be monitored for a period of four years. The LEA shall initiate a teacher-student-parent conference, within 30 days of the LEA receiving the WIDA ACCESS for ELs scores, to discuss the necessary support for the student's ability to make continuous progress.

Monitoring of Reclassified EL/Exited

After the annual WIDA ACCESS for ELs assessment, students who meet the exit criteria enter a four-year period of monitoring. Reclassification as ELP is based on performance on the WIDA ACCESS for ELs assessment and is not based on reaching proficiency on the academic end-of-level State assessment.

Monitoring ensures that former EL students are making appropriate progress with respect to acquiring English and content knowledge while in the regular educational setting.¹⁷

LEAs that serve EL students are required to establish policies and procedures to ensure that former ELs in monitoring status are provided access to equal educational opportunities offered to peers and have access to grade level content. If a former EL student in monitoring status is not progressing academically as expected and monitoring suggests a persistent language need, LEAs may re-test the student using WIDA Screener to see if the student must be offered additional language assistance services. In no case should re-testing of an exited, former EL student be prohibited. If the student is reentered into EL services, however, the LEA should document the reasons why and the parent's consent to active EL language services.¹⁸

Language Assistance Services Programs

Language assistance services and programs must be provided to qualifying students unless parents opt out of such identified programs. Special education services must also be provided to ELs with identified and qualifying disabilities through the school's Individualized Education Program (IEP) team and as articulated by the IDEA and the USBE Special Education Rules. Appropriate EL services allow students to access curriculum in English within a reasonable period, generally from five to seven years based on multiple variables such as initial ELP level at entrance, grade level, age, literacy in the native language, and interrupted formal education.

Programs are chosen based on educational theory recognized by experts in the field and are administered by individuals who are trained to use the program(s) effectively. Evidence is reviewed to determine the program(s) results in students overcoming language barriers within a reasonable amount of time and allows the student to participate equally in the schools' curricular and extracurricular programs as outlined in the joint guidance from the Office of Civil Rights in the Department and the Civil Rights Division of the U. S. Department of Justice.

¹⁷ U.S. Department of Education, Office of Civil Rights, 2016. "English Learner Fact Sheet." Retrieved from <https://www2.ed.gov/about/offices/list/ocr/docs/dcl-factsheet-el-students-201501.pdf>

¹⁸ Office of English Language Acquisition, U.S. Department of Education, 2016. "English Learner Toolkit: Chapter 8; Tools and Resources for Monitoring and Exiting English Learners from EL Programs and Services." Retrieved from <https://www2.ed.gov/about/offices/list/oela/english-learner-toolkit/chap8.pdf>

The 2016 Fact Sheet reaffirms the Title VI of the Civil Rights Act of 1964 which states: “Public schools must ensure that EL students can participate meaningfully and equally in educational programs.”

2. SEA Support for English Learner Progress (ESEA section 3113(b)(6)): Describe how the SEA will assist eligible entities in meeting:

- 1) The State-designed long-term goals established under ESEA section 1111(c)(4)(A)(ii), including measurements of interim progress towards meeting such goals, based on the State’s English language proficiency assessments under ESEA section 1111(b)(2)(G);

Long-term goals were established based on a grade-level analysis of the 2016 rates for reclassifications as ELP determined by achieving a 5.0 composite score as measured by performance on the WIDA ACCESS. The method of analysis used two factors to identify a trajectory toward becoming ELP within five years: the student’s age and the level of ELP at the time they entered Utah’s education system. Based on that data and consultation across the SEA with feedback from selected LEAs, the student grouping for tracking adequate progress have been designated as three grade bands: 1) Grades K-3 to align with State literacy initiatives and dual language programs, 2) Grades 4-7 to support effective and innovative transitions from elementary to middle school; and 3) Grades 8- 12 to focus resources on Utah’s refugee and immigrant student populations who often enter into Utah’s schools at the secondary level, and ELs with special needs as well as an effective transition to high school. These long-term goals are ambitious because the analysis to determine the trajectory ranged from two to seven years and the decision to use five years as the expected timeline for ELP was set by USBE’s Data and Statistics section in consultation with the USBE Federal Programs section.

Exhibit 21: Long-Term Goals for Progress in Achieving ELP

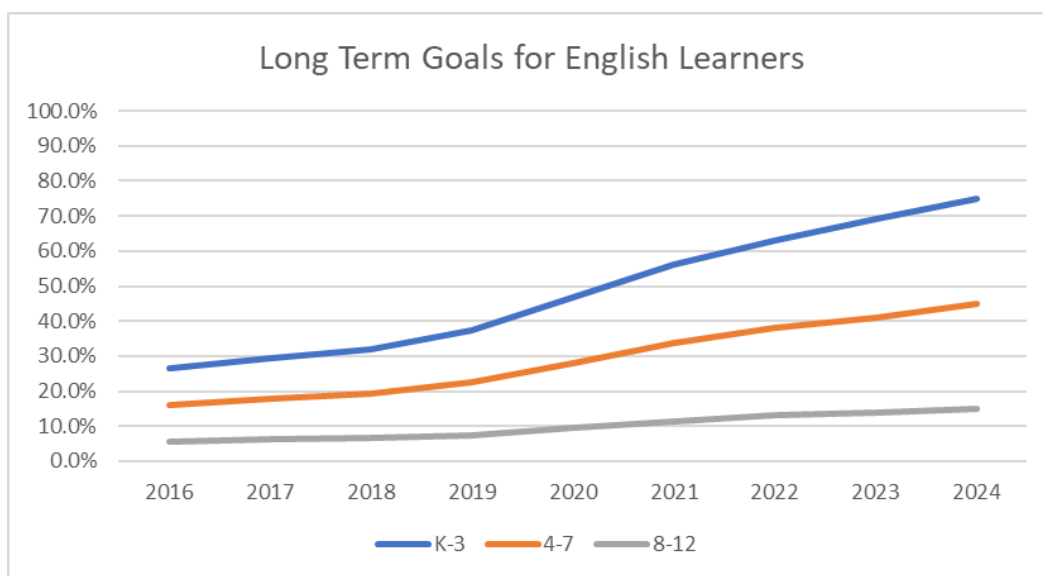


Exhibit 22: Long-Term Goals for Progress in Achieving ELP

Student Group	Baseline 2016	Interim Goals 2017	Interim Goals 2018	Interim Goals 2019	Interim Goals 2020	Interim Goals 2021	Long-Term Goal 2024
K-3	26.5	29.3	32.0	37.5	46.9	56.3	75.0
4-7	16.1	17.7	19.3	22.5	28.1	33.8	45.0
8-12	5.7	6.2	6.6	7.5	9.4	11.3	15.0

Source: USBE, 2018

i. [Assisting LEAs in Meeting Measurements of Interim Progress \(section 1111\(b\)\(2\)\(G\)\).](#)

USBE's Title III team and Data and Statistics section, in consultation with and incorporating feedback from all LEAs, have developed annual progress reports which are provided to each LEA by school, grade, and teacher through the USBE Data Gateway. Exhibit 23 is a sample progress report. Currently these individual student reports show:

- 1) Overall Composite scaled scores for expected annual growth at each ELP;
- 2) WIDA performance definitions for what each student is in the process of developing (Example: expanded sentences in oral interactions or written paragraphs);
- 3) A graph for yearly progress based on the scale score with a target score projected for the next year;
- 4) Proficiency levels for each of the four language domains (Listening, Reading, Speaking, and Writing);
- 5) The Can Do Descriptors under each domain to be used by teachers for planning instruction; and,
- 6) A longitudinal chart showing the following data:

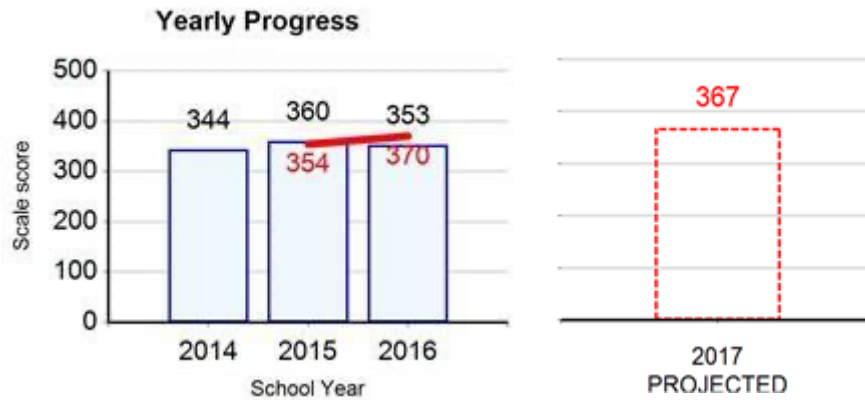
Exhibit 23: Sample of Utah's Progress Report

Year	Composite		Listening		Reading		Speaking		Writing		Literacy		Oral		Comprehension	
	Scale Score	Prof Level	Scaled Score	Prof Level	Scaled Score	Prof Level	Scaled Score	Prof Level	Scaled Score	Prof Level	Scaled Score	Prof Level	Scaled Score	Prof Level	Scaled Score	Prof Level
2014	344	4.2	367	5.4	351	5.5	307	2.3	344	4.1	348	4.6	337	3.8	356	5.5
2015	360	4.6	358	4.5	341	3.6	403	6.0	360	4.3	351	4.1	381	5.4	346	3.9
2016	353	3.8	356	3.9	357	3.9	319	2.3	363	4.1	360	3.9	338	3.2	357	3.9

Source: USBE, Spring 2017

Exhibit 24 shows a sample of the progress chart that teachers can use with students and families to graph yearly progress in setting goals based on the next year's WIDA performance definitions.

Exhibit 24 Goals Based on WIDA Performance Definitions



Source: USBE, Spring 2017

The LEA reports available in the Data Gateway show whether each student, by school and grade, has met the annual growth goal by ELP level. Consequently, each LEA can identify schools and/or grades that have been successful with students at each ELP level. The rationale is to provide LEAs with the kind of information that can support both recognition and dissemination of effective instructional practices across schools.

Reports were developed with input from ALS directors to support LEAs in their annual improvement planning process to:

- 1) Meet the needs of individual schools,
- 2) Allocate resources more effectively to those schools showing the greatest need; and,
- 3) Recognize effective practices in schools that show growth with students at different ELP levels.

ii. [The challenging State academic standards.](#)

Growth targets toward increased academic proficiency on Utah's standards-based content assessments are calculated by each school's Growth indicator by student groups for ELA, mathematics, and science in Utah's Data Gateway. These data are requested in each LEA's application for Title III funding. Utah's academic content standards as assessed by Utah's assessment system in ELA, mathematics, and science are aligned to Utah's ELP standards (WIDA) and the requirements set by the ESEA in section 1111(b)(1)(F).

The USBE has provided technical assistance to all LEAs through live- streamed, recorded, and archived meetings for Title III coordinators and ALS directors as well as district- and school-wide professional learning to support educators, teachers, and principals, to:

- 1) Align the individual student WIDA reports with the Key Uses in the WIDA standards;
- 2) Align Key Uses to the content literacy standards (spiraled from the College and Career Readiness Anchor Standards) and the assessment blueprints (Depth of Knowledge (DOK) levels) to support instructional decisions in each grade level, prekindergarten to grade twelve.

Exception for Recently Arrived ELs

Exhibit 25 provides example scenarios of exception for recently arrived ELs in accountability determinations in Title I on annual standards-based content assessments (Exception for Recently Arrived ELs section 1111 (L)(3)(A)(II)(aa–cc)):

Exhibit 25: Examples of Exceptions for Recently Arrived ELs

Year of Enrollment	Statewide Academic Assessment Required	Consideration in Accountability
Recently arrived: Enroll during current school year, on or after April 15	None	N/A
Recently Arrived: Enroll during current school year, before April 15	ELA, Mathematics, Science	Excluded from accountability determination
Year 1–2: Enrolled in the previous school year, on or after April 15	ELA, Mathematics, Science	Excluded from accountability determination; counted in participation
Year 1–2: Enrolled in previous school year, before April 15	ELA, Mathematics, Science	Included in growth calculations only; counted in participation
Year 2: Student enrolled in school anytime during the school year two years ago	ELA, Mathematics, Science	Included in growth and proficiency accountability calculations; counted in participation

Source: USBE, Spring 2017

Examples in Exhibit 25 are interpreted to mean:

- Row 1—Student has recently arrived in the United States; enrolled in school April 28 of the current school year
- Row 2—Student has recently arrived in the United States; enrolled in school November 17 of the current school year
- Row 3—Student enrolled in school May 7 in the previous school year
- Row 4—Student enrolled in school December 9 in the previous school year
- Row 5—Student enrolled in school April 26 two years ago

Additional Transition Support for Recently Arrived ELs

In response to feedback from the 30-day public comment period, Utah will develop a transition plan for recently arrived ELs who enter high school and are at risk of not graduating or successfully transitioning into post-secondary education, including a career pathway or job training. The Refugee Youth Services Collaborative at the USBE includes representation from the three resettlement agencies: Asian Association of Utah, Catholic Community Services of Utah, and the International Rescue Committee; the Refugee Services Office at the Department

of Workforce Services, as well as representation across the section of Student Support Services, which includes School Counseling and Title III in Federal Programs. This collaborative has focused on supporting effective transition and enrollment procedures for recently arrived ELs into Utah's schools, as well as problem solving based on the USBE's priority of educational equity in Utah's Strategic Plan. An ongoing goal is to focus efforts to develop a transition plan and include representation from Adult Education and CTE at the USBE, the Utah Refugee Education and Training Center, and Salt Lake Community College.

3. Monitoring and Technical Assistance (ESEA section 3113(b)(8)): Describe: How the SEA will monitor the progress of each eligible entity receiving a Title III, Part A subgrant in helping English learners achieve English proficiency; and

The USBE will monitor the progress of each eligible entity receiving a Title III, Part A Subgrant in helping ELs achieve ELP with all LEAs at the fall ALS directors meeting. This meeting begins the cycle of continuous improvement with scheduled onsite visits by both the Title I Fiscal Compliance specialist and the Title III specialist.

During this meeting, each eligible entity, in teams and across LEAs, will review relevant data provided by the USBE Data and Statistics section. The data review will include the following:

- 1) The number and percentage of ELs who have not attained ELP within 5 years of initial classification as an EL and first enrollment in the local educational agency;
- 2) The number and percentage of ELS in the programs and activities who are making progress toward achieving ELP as described in section 1111(c)(4)(9)(A)(ii), in the aggregate and disaggregated, at a minimum, by ELs with a disability;
- 3) The number and percentage of ELs in the programs and activities attaining ELP based on the ELP standards as described in section 1111(b)(1)(G) by the end of each school year, as determined by the State's English language proficiency assessment under section 1111(b)(2)(G);
- 4) The number and ELP;
- 5) The number and percentage of ELs meeting challenging State academic standards each of the 4 years after such children are no longer receiving the services under this part, in the aggregate and disaggregated, at a minimum, by ELs with a disability; and,
- 6) The number and percentage of reclassified ELs, based on course taking patterns, who have successfully taken college preparatory courses like AP, Concurrent Enrollment, and IB.

By November 1, each LEA revises and submits an Annual Improvement Plan. This plan includes the following:

- 1) The Title III Monitoring Self-Assessment Tool used as an electronic portfolio with supporting evidence, based on ESSA and Utah's State plan;
- 2) The indicators enumerated in the ELs Fact Sheet, "Ensuring English Learner Students Can Participate Meaningfully and Equally in Educational Programs," issues jointly by the Civil Rights Division of United States Department of Justice and the Office of Civil Rights by the Department; and,

- 3) The number of students awarded the Bi-literacy Seal as supported by the USBE Rule, 277-499 (October 2016).

Utah's plan for increased academic achievement for ELs is to provide systemic online professional learning to better support educators in both understanding the research on the importance of literacy in a student's first language and the relevant strategies and practices for schools. This plan includes an increased focus on literacy in a student's first language.

The plan increases support from Utah's refugee communities, the Title III section at the USBE in collaboration with the Refugee Services Offices in the Department of Workforce Services and Utah's three resettlement agencies: 1) International Rescue Committee, 2) Catholic Community Services, and 3) the Asian Association. The steps USBE will take to further assist eligible entities if the strategies funded under Title III, Part A are not effective include providing technical assistance and modifying such strategies.

The purpose of the USBE's process is twofold:

- 1) Ensuring educational equity by providing access and participation in educational opportunities through quality instruction by qualified teachers for success in college and career; and,
- 2) Supporting LEAs in evaluating the effectiveness of their language instruction educational program (LIEP) and adjusting the use of supplemental funds in the Annual Improvement Plan to better meet the goals of the Title III Subgrant.

LEAs at a meeting on February 17, 2017, agreed that the Title III LEA Self-Assessment Tool has been revised to align with ESSA and used in all future USBE program reviews which will be conducted on site as well as documented in each LEA's electronic portfolio, evaluated by October 30 of each year (ESEA section 3113(b)(8)). The USBE, through quarterly interactive webinars, which are then recorded and archived, provides ongoing technical assistance. These webinars focus on both policy and processes for LEAs to monitor the effectiveness of their LIEP, outlined in the Non-regulatory Guidance of September 16, 2016, as well as ensuring the Title III funds are used effectively to supplement State and local funds (ESEA section 3115(g)).

Providing Technical Assistance and Modifying Ineffective Strategies

When LEAs do not meet growth goals as indicated by the data from the LEA's plan, the USBE provides the following support:

- 1) Model practices from other LEAs through quarterly ALS directors' Meetings with an emphasis on policies, procedures and strategies to use resources more effectively for increasing student growth toward ELP.
- 2) Online professional learning modules and/or courses, through Title III at the USBE, focusing on evidence-based practices in high need topics. Each topic (example: language acquisition) will be differentiated according to the data for each ELP level as identified in the annual improvement plans for funding through the Utah Consolidated Plan for Title III.

- 3) Dissemination of online resources with the Utah Education Network to showcase exceptional programs, including online ESL Endorsement courses, modules for educators and administrators on models of mentoring refugee students, middle school advocacy/advisory programs that create effective transition to high schools, and diverse partnerships across organizations and stakeholders, including the resettlement agencies in Salt Lake City.
- 4) Revision of the Annual Improvement Plan, electronically monitored in the Utah Grants Management System, supports the use of student data for program evaluation and the effective allocation of resources for increased student growth in meeting annual targets for ELP and Utah's challenging academic standards in mathematics, ELA, and science.
- 5) Technical assistance, through monitoring visits that include content specialists from the USBE in mathematics, ELA and science, to provide supports for quality instruction in meeting the State's grade level academic content standards.
- 6) Monitoring visits are scheduled based on LEAs not meeting annual growth targets in ELP and the end of level academic assessments for challenging State standards, that include the following timelines:
 - a. Commendations and findings/recommendations submitted to the LEA within two weeks of the visit.
 - b. Response to findings/recommendations: The LEA has 30 days to respond to their choice of recommendations that align to the LEA's strategic plan with concrete actions integrated into their Annual Improvement Plan and submitted to the Title III specialist at the USBE.

Monitoring Fiscal Compliance

An important aspect to this process is monitoring fiscal compliance related to allowable expenditures to ensure the allocation of funds to LEAs is used to support the purposes as delineated (ESSA, section 3102 (20 U.S.C. 6812)):

- 1) To help ensure that ELs, including immigrant children and youth, attain ELP and develop high levels or academic achievement in English so that all ELs meet the same challenging academic standards that all children are expected to meet (1)(2);
- 2) To assist teachers (including preschool teachers), principals and other school leaders, local education agencies, and schools in establishing, implementing, and sustaining effective language instruction educational programs designed to prepare ELs, including immigrant children and youth, to enter all-English instructional settings (3)(4); and,
- 3) To promote parental, family, and community participation in language instruction educational programs for parents, families, and communities of ELs.

Fiscal compliance to support LEAs in financial decisions for allowable expenditures is the subject for ALS directors' Meetings and webinars. Random audits of LEAs are initiated by the Title I Fiscal Compliance specialist, in conjunction with the Title III specialist, when LEA reimbursement requests are submitted at the end of each quarter. When discrepancies occur, the request for supporting documentation is reviewed by both the Compliance Analyst and the Title III specialist. Ongoing issues with any LEA are referred to the Assistant Superintendent of Operations and, in conjunction with the USBE leadership team, recommendations for further action are determined through a risk assessment in the Utah Grants Management System.

F. Title IV, Part A: Student Support and Academic Enrichment Grants

1. Use of Funds (ESEA section 4103(c)(2)(A)): Describe how the SEA will use funds received under Title IV, Part A, Subpart 1 for State-level activities.

Utah's Title IV, Part A use of State funds aligns with the USBE Strategic Plan that highlights the priorities of educational equity and system values and was developed through consultation with multiple stakeholders.

LEA Subgrants

As stated in ESEA section 4106, the USBE will award subgrants to LEAs for the purpose of:

- 1) Activities to support well-rounded educational opportunities.
- 2) Activities to support safe and healthy students.
- 3) Activities to support effective use of technology.

The term “well-rounded” education refers to courses, activities, and programming which may include:

- a. College and career guidance and counseling programs.
- b. Programs and activities that support the arts.
- c. Programs and activities to improve student engagement in STEM.
- d. Improve student achievement through accelerated learning.
- e. Promote programs to teach social studies, foreign languages, environmental education, volunteerism, and community involvement.
- f. Support activities that integrate multiple content areas, such as combining literacy and health or mathematics and art.
- g. Any subject, as determined by the State or LEA, with the purpose of providing all students access to an enriched curriculum and educational experience.

The term “safe and healthy” refers to a school culture that fosters a safe and supportive environment for learning, student physical and mental health, and any other activity that promotes all students’ access to a safe and healthy educational experience which may include:

- a. Evidence-based substance abuse prevention, suicide prevention, child sex abuse prevention, and violence prevention programs.
- b. School-based mental health services and awareness training for staff.
- c. Programs and activities that integrate health and safety practices into school or athletic programs.
- d. Programs and activities that support a healthy, active lifestyle, including nutritional education and regular structured physical activity programs.
- e. Evidence-based bully and harassment prevention programs.
- f. Providing mentoring and school counseling to all students, including those at risk of academic failure, dropping out of school, or otherwise at-risk students.
- g. High-quality training for suicide prevention, trauma-informed practices, crisis management, conflict resolution, human trafficking, violence-prevention, substance abuse prevention, bullying and harassment prevention.

- h. School-wide positive behavior interventions and supports.

The term “effective use of technology” refers to activities which may include:

- a. Providing educators, school leaders, and administrators with professional learning tools, devices, content, and resources to personalize learning to improve academic achievement, adapt high-quality educational resources, use technology effectively in the classroom and blended learning strategies.
- b. Building technological capacity.
- c. Developing or using effective or innovative strategies for rigorous academic courses.
- d. Blending learning projects.
- e. Providing students in rural, remote, and underserved areas with resources for high-quality digital. learning experiences and access to online courses.

State-Level Activities

The USBE will use Title IV, Part A funds to provide a well-rounded education for all students with a specific focus on:

- Improving school conditions for student learning through professional learning experiences for teachers to assist with standards implementation and content integration.
- Improving access to early college coursework for underserved populations.

The USBE will leverage current personnel and existing programs to support LEAs in providing programs and activities that offer well-rounded educational experiences to all students as described in ESEA section 4107; foster safe, healthy, supportive, and drug free environments as described in ESEA section 4108; and increase access to personalized, rigorous learning experiences supported by technology.

- 2. [Awarding Subgrants \(ESEA section 4103\(c\)\(2\)\(B\)\)](#): Describe how the SEA will ensure that awards made to LEAs under Title IV, Part A, Subpart 1 are in amounts that are consistent with ESEA section 4105(a)(2).

The USBE will ensure that awards made to LEAs are consistent with ESEA section 4105(a)(2). In order to receive an award, LEAs will submit proposals through the Utah Grants Management System, which will include the following components:

- Comprehensive needs assessment as described in ESEA section 4106 (d)(I).
- Update the annual comprehensive needs assessment to ensure progress toward meeting the purpose of the grant.
- Evidence of consultation with stakeholders as described in ESEA section 4106 (c)(I).
- Description of activities and programming that the LEA will carry out as described in ESEA section 4106(e)(I).
- Description of how LEAs prioritize the distribution of funds to schools based on the most recent update to the comprehensive needs assessment.
- Assurances as described in ESEA section 4106(e)(2).

- Budget demonstrating that not less than 20 percent of funds received will be used to support activities authorized under ESEA section 4107; that not less than 20 percent of funds received will be used to support activities authorized under section 4108; and that a portion of funds will be used in ESEA section 4109(b) to meet the goals of this section.

G. Title IV, Part B: 21st Century Community Learning Centers

1. Use of Funds (ESEA section 4203(a)(2)): Describe how the SEA will use funds received under the 21st Century Community Learning Centers program, including funds reserved for State-level activities.

The 21st Century Community Learning Centers (CCLC) Program is a competitive Federal grant for LEAs and community- or faith-based organizations (CBOs) to serve students and their families attending schools with poverty levels of 40 percent or higher outside of regular school hours. Up to 95% of funds the USBE receives are provided to school and community programs (subgrantees). State-level activities (up to 5%) include quality improvement efforts with self-assessment and observation tools, technical assistance site visits, and professional learning opportunities provided to build the local capacity, improve school day alignment, and support grantees in achieving their project goals and outcomes.

The use of subgrantee funds under this program are specifically allocated to:

- provide opportunities for academic enrichment, including providing tutorial services to help students) meet State and local student performance standards in core academic subjects such as reading and mathematics;
- offer students a broad array of additional services, programs, and activities such as youth development activities, drug and violence prevention programs, counseling programs, art, music, and recreation programs, technology education programs, and character education programs, designed to reinforce and complement the regular academic program of participating students; and,
- offer families of students served by community learning centers opportunities for literacy and related educational development.

2. Awarding Subgrants (ESEA section 4203(a)(4)): Describe the procedures and criteria the SEA will use for reviewing applications and awarding 21st Century Community Learning Centers funds to eligible entities on a competitive basis, which shall include procedures and criteria that take into consideration the likelihood that a proposed community learning center will help participating students meet the challenging State academic standards and any local academic standards.

All 21st CCLC applicants must propose to serve students attending schools with at least 40% or higher poverty rate in order to be eligible for the grant funds. Applicants must demonstrate clear alignment with the academic standards of local school(s) to be served and how proposed activities support Utah 21st CCLC State goals and indicators (see table below for USBE 21st CCLC Grant State Goals and Performance Indicators). Subgrantees are regularly monitored based on their grant proposal and their progress towards supporting students in meeting State and local standards.

Each of the competitive priorities listed below address programming for students from preschool through grade twelve, as allowable with the 21st CCLC grant. Applicants receive additional point values during the application scoring process based on each of the competitive priorities.

- The proposed program will serve students attending school(s) identified by the USBE as CSI schools.
- The program serves middle or junior high school students from schools eligible under the absolute priority.
- The proposed program services high school students from schools eligible under the absolute priority.
- The proposed program serves pre-kindergarten and/or kindergarten students from schools eligible under the absolute priority.
- The applicant proposing a program for 21st CCLC funds has not received 21st CCLC funds in the last five years.
- The applicant proposing a program for 21st CCLC funds has not received 21st CCLC funds in the history of the State program.

Additional priorities are determined as needed, in consultation with the agency advisory committee, the USBE committee of practitioners and ongoing feedback sessions with the afterschool community. Staff ensure alignment with governor's office education goals by seeking annual input from the governor's education advisor regarding the 21st CCLC grant application.

Once the applications are completed and submitted into the Utah Grants Management System by the deadline, the USBE arranges for a team of independent peer reviewers to read and score the application and make official funding recommendations. The USBE recruits peer reviewers who are familiar with the 21st CCLC grant. Potential reviewers may include the following:

- 1) Grant directors not applying for a new 21st CCLC grant.
- 2) Principals from schools serving as existing 21st CCLC sites.
- 3) LEA Title I directors.
- 4) Charter school leaders.
- 5) Site coordinators from existing 21st CCLC sites.
- 6) Other qualified individuals with youth development or grant management experience.

All approved peer reviewers will sign a Conflict-of-Interest Agreement, indicating that there is no opportunity for personal or financial gain. Technical assistance is provided to all grant reviewers in the form of a workshop during which sample grants are read and scored to ensure calibration to the scoring rubric. Participation in a technical assistance workshop and a post-scoring reviewers' meeting is mandatory for all grant reviewers. The detailed scoring rubric is designed to ensure that applicants that are recommended for funding demonstrate a likelihood that a proposed center will meet challenging State and local academic standards. In the event of a tie score among 21st CCLC grant applicants, the peer review team will consider the poverty levels of the program sites proposed in each of the applications. The applicant proposing to serve the sites with the highest poverty levels will be awarded the grant. If the applicants are proposing to serve sites with the same poverty level, the applicant from the State's region with fewer 21st CCLC awards will be awarded the grant.

The USBE will assemble a peer review team for continuation applications in grant years two through five based on the same guidelines listed above to review continuation applications with regard to the following information:

- 1) Local program evaluation.
- 2) Efforts to align program activities based on changing community needs and student achievement.
- 3) History of fiscal compliance.

After reviewing the above information, the continuation application peer review team will provide recommendations to the USBE to determine the appropriateness of a continuation award. This will be an annual process to ensure program operations, participant outcomes, and fiscal management are benchmarked and measured for consideration of a continuation award.

Grantees are encouraged to begin planning for reductions in funding as soon as the grant is awarded. Applicant overview sessions also include discussions of essential components of high-quality programs designed to help participating students meet State and local academic achievement standards. The USBE's measurement of high-quality 21st CCLC programs includes the tools and components of the monitoring process described below.

The USBE utilizes all components of the grant process for monitoring subgrantees with the goal of supporting subgrantees in providing supplemental activities aligned to State and local academic standards. The USBE utilizes the formal compliance monitoring plan to address the following components:

- The applications include detailed goals and objectives determined by the grant applicants. These applications will be reviewed each year as the USBE works with the grantees to determine progress made towards the achievement of the project goals.
- 21st CCLC Federal database (21APR) data will be submitted each year. Prior to onsite monitoring visits, the 21APR data will be reviewed in more detail and discussed with program staff during onsite monitoring visits.
- Utah Afterschool Program Quality Assessment and Improvement Tool site visits and observations with a nationally validated tool will be conducted.
- Grantee meetings provide technical assistance on compliance issues, the monitoring process, and other topics that are deemed helpful and/or necessary based on feedback from the grantees and trends observed during onsite monitoring visits including feedback received from stakeholders.
- Utah 21st CCLC grantees receive ongoing onsite and virtual compliance monitoring visits based on annual risk assessment data. Grantees also complete mid-year and annual progress reports and complete an annual self-evaluation to help determine their progress towards reaching their goals and outcomes.
- The Utah 21st CCLC Compliance Monitoring Tool will be utilized to ensure the sub grantees are in compliance meeting the statutory requirements.

The USBE convened an advisory committee to establish goals and indicators for the State 21st CCLC evaluation. The committee agreed upon the following goals and performance indicators that are discussed in the Bidders Workshop with the potential applicants as well as reviewed with all subgrantees during monitoring visits. Goals and indicators will be reviewed as needed with the advisory committee for any updates or adjustments.

Exhibit 26: USBE 21st CCLC Grant State Goals and Performance Indicators

State Goals	Performance Indicators
Goal 1: Participants in Utah 21st CCLC programs will demonstrate educational and social benefits and exhibit positive behavioral change.	1.1 Academic Achievement Outcomes: Regular program participants will demonstrate growth towards meeting State and local academic achievement standards in reading and mathematics.
	1.2 Behavior Outcomes: Regular program participants will demonstrate improvements on measures such as school attendance, classroom performance, and decreased disciplinary actions.
Goal 2: Utah 21st CCLC programs will offer a broad array of additional services designed to complement the regular academic program based on the needs and interests of program participants.	2.1 Core Educational Services: All centers will offer high quality services in at least one core academic area, e.g., reading and literacy, mathematics, and science.
	2.2 Enrichment and Support Activities: All centers will offer enrichment and support activities such as nutrition and health, art, music, technology, and recreation.
	2.3 Community Involvement: All centers will establish and maintain partnerships within the community to enhance program success.
	2.4 Implementation of Program Design: All centers provide educational, enrichment, and support services in accordance with the approved plan.

Goal 3: Utah 21st CCLC programs will offer families of participating students opportunities for educational development in high need communities.	3.1 Services to Families of Participating Students: All centers will offer educational and related services to families of participating students.
	3.2 Services to Families in Need: All centers serve students and families from school attendance areas with at least 40% poverty.

H. Title V, Part B, Subpart 2: Rural and Low-Income School Program

1. Outcomes and Objectives (ESEA section 5223(b)(1)): Provide information on program objectives and outcomes for activities under Title V, Part B, Subpart 2, including how the SEA will use funds to help all students meet the challenging State academic standards.

The Department identifies LEAs in the State that are eligible to receive Rural and Low-Income School Program (RLISP) funds. The Department awards funds to Utah each year, which are sub-granted to LEAs identified on a formula basis. Utah has a limited number of rural districts that qualify in this category. The Federal eligibility criteria: (1) 20 percent or more of children ages 5–17 served by the LEA are from families with incomes below the poverty line, and (2) all schools served by the LEA are designated by the Department with rural designation codes.

Funds awarded to LEAs for RLISP must carry out initiatives designed to improve student achievement on the State's rigorous grade-level academic standards. LEAs that receive these funds may use the funds to carry out a variety of allowable activities in Title I-A, Title II-A, Title III-A, or Title IV-A, based on specific local needs. Activities may include but are not limited to: teacher recruitment and retention through the use of signing bonuses or incentives for teaching in schools in remote areas or in very high-poverty schools; teacher professional learning and mentoring; instructional coaching; afterschool enrichment programs; additional support for students who are ELs, immigrants, refugees, or other students in need of English language acquisition; bullying prevention; and parent and family engagement. Monitoring is based on use of the funds to provide additional services to help students improve academic proficiency and growth as measured by the State's accountability system. State assessment data is reviewed to show educational gains made at schools served with RLISP funds. Data from LEAs that receive RLISP funds is reported to the Department annually as part of the Consolidated State Performance Report.

If an LEA (information on eligibility is on the Department Rural Education Achievement Program (REAP) is eligible for both the Small, Rural, School Achievement (SRSA) funds (LEAs must apply directly to the Department for SRSA funds), and the RLIS funds. The LEA can apply for only one of the two grants. If the LEA applies for and receives SRSA funding from the Department, the LEA is ineligible to receive RLISP funds from the State's award.

2. Technical Assistance (ESEA section 5223(b)(3)): Describe how the SEA will provide technical assistance to eligible LEAs to help such agencies implement the activities described in ESEA section 5222.

LEAs that are eligible to receive RLISP funds will be required to complete a section in their annual consolidated program plans based on current needs. The LEA consolidated plan (which contains a needs assessment and goals) identifies which specific goals and other program funds the LEA is supplementing with its RLISP funds. LEA needs assessments, goals, and spending plans are part of the submission to the Utah Grants Management System. The USBE program staff review program plans and budgets annually to approve their yearly plan.

The USBE provides annual technical assistance sessions on the use of the Utah Grants Management System. These trainings are provided at multiple sites across the State. In addition, training modules are available online. Program staff are available to LEAs on a continuous basis in person, by phone, and through email. USBE maintains a Help Desk to respond to LEAs questions and concerns.

The USBE technical assistance and monitoring of the LEAs that receive RLISP funding has been adjusted in response to stakeholder feedback. Monitoring will more closely look at the academic achievements of the students served with these funds in addition to fiscal compliance. The USBE Title I Fiscal Compliance specialist regularly monitors and audits RLIS reimbursement requests received from LEAs to ensure expenditures are allowable and supplanting has not occurred. Both desktop and onsite monitoring and technical assistance is provided throughout the year.

I. Education for Homeless Children and Youth program, McKinney-Vento Homeless Assistance Act, Title VII, Subtitle B

1. Student Identification (722(g)(1)(B) of the McKinney-Vento Act): Describe the procedures the SEA will use to identify homeless children and youth in the State and to assess their needs.

The USBE's Strategic Plan outlines a commitment to educational equity for each student. Essential to this commitment is the ability to identify, quickly assess and provide support for Utah's students experiencing homelessness. The guidelines for the identification of homeless youth under McKinney-Vento recognizes a student as being homeless if they "lack a fixed, regular, and adequate nighttime residence" (McKinney-Vento Act). The USBE is committed to providing school entrance and supports for our students who experience homelessness.

Multiple procedures are used to identify students experiencing homelessness in order to ensure that students are not missed. Homelessness can happen at any time throughout the year; therefore, multiple attempts in the identification process need to be conducted. The most common forms of identification are as follows: 1) enrollment forms during the registration process, 2) informal identification such as information from a peer, 3) self-identification, and 4) community partner referrals (State housing, social services, faith-based organizations, etc.). LEAs also place posters, additional information about homelessness and available services at schools to ensure access to pertinent information.

Once a student has been identified, the local homeless liaison meets with the student/parent/guardian in order to let them know their rights (in written form) as McKinney-Vento-identified students. The liaison also identifies themselves as the student's advocate in case of any issues to immediate enrollment, full participation in school sponsored events, and/or to support the student with further services that may be required for that students' success.

Once a student has been identified, State law requires immediate enrollment and the ability to fully participate in all school sponsored events. There are times when students meet barriers to their participation. The liaison becomes the student advocate and helps them by addressing those barriers in order to support the students' success. These may include, but are not limited to, credit recovery, fees, uniforms, tracking down and obtaining past school records, and finding support for academic needs (including transportation when needed).

2. Dispute Resolution (722(g)(1)I of the McKinney-Vento Act): Describe procedures for the prompt resolution of disputes regarding the educational placement of homeless children and youth.

The USBE supports the established procedure for the prompt resolution of disputes regarding the educational placement of homeless children and youth. If a dispute arises over school selection or enrollment in a school, the following will apply:

- 1) The child or youth shall be immediately admitted to the school in which enrollment is sought, pending resolution of the dispute (SEC 722(g)(3)(i)). The school placement choice is made

regardless of whether the child or youth lives with the homeless parents or has been temporarily placed elsewhere.

- 2) The parent or guardian of the child or youth shall be provided with a written explanation of the school's decision regarding school selection or enrollment, including the rights of the parent, guardian, or youth to appeal the decision (SEC 722(g)(3)(ii)).
- 3) The child, youth, parent, or guardian shall be referred to the LEA liaison designated under paragraph (SEC 722(1)(J)(ii)), who shall carry out the dispute resolution process as described in paragraph (1)(i) as expeditiously as possible after receiving notice of the dispute (SEC 722(g)(3)(iii)).
- 4) In the case of an unaccompanied youth, the homeless liaison shall ensure that the youth is immediately enrolled in school pending resolution of the dispute (SEC 722(g)(3)(iv)).
- 5) The determination made by the USBE McKinney-Vento specialist is the final decision on such matters and documentation regarding all sides of the dispute will be documented in a report (SEC 722(g)(3)(v)). Copies of the report shall be distributed to all parties and shall include findings of fact, conclusion of the law, the remedy or relief of the dispute.
- 6) Prompt resolution shall be sought to minimize the time a student awaits resolution. However, when extended time is required, the dispute shall be resolved within 30 days of the initial report to the USBE.

3. Support for School Personnel (722(g)(1)(D) of the McKinney-Vento Act): Describe programs for school personnel (including the LEA liaisons for homeless children and youth, principals and other school leaders, attendance officers, teachers, enrollment personnel, and specialized instructional support personnel) to heighten the awareness of such school personnel of the specific needs of homeless children and youth, including runaway and homeless children and youth.

Professional learning and growth for McKinney-Vento LEA liaisons happens at meetings held each fall and spring. Materials regarding best practice, practical implementation, services available, identification of homeless students, identification of runaway homeless children and youth, and updates on legislation and requirements are presented to the liaisons. Participants are instructed on how to disseminate knowledge to principals, LEA staff (e.g., special education staff, EL staff, Title I staff, Head Start staff), school staff including school registration staff, attendance officers, teachers, and specialized instructional staff. The USBE provides these materials on the USBE website and coordinates with other departments to ensure that the presentation of materials is disseminated and professional learning is provided to various stakeholders throughout the State (see I.1 for the list of stakeholders). This communication is ongoing and allows for better services and consistent identification of homeless students, runaway and unaccompanied homeless youth and their needs.

The USBE also offers technical assistance to better meet the immediate training needs of school principals, teachers, enrollment personnel and support staff in identifying possible homeless students for referral to liaisons. These individual consultation sessions are available to all who wish to be trained at any given time without necessitating the travel to and awaiting in-person formal training.

4. Access to Services (722(g)(1)(F) of the McKinney-Vento Act): Describe procedures that ensure that:

- i. Homeless children have access to public preschool programs, administered by the SEA or LEA, as provided to other children in the State;

The procedure the USBE uses to ensure access of homeless children to preschool is as follows: the USBE works with Early Childhood Education partners, both LEA- and community-based, to ensure that families with pre-kindergarten students are aware of their rights under the McKinney-Vento Act and ESSA requirements for early education to ensure that space is available to children in homeless situations within those programs. The USBE McKinney-Vento specialist also ensures that appropriate collaboration and coordination happens within the USBE and the Department of Workforce Services Office of Child Care and Utah Department of Health and Human Services to ensure that Head Start, and all other community-based organizations and agencies and USBE section including Teaching and Learning, Special Education, Title I, and Title III, are not only aware of the requirements under the law, but that they are also training and discussing this with their stakeholders. This is an ongoing collaboration across departments and agencies. The USBE will make available public notice of such opportunities on their website and enable access by providing links to partner pre-school collaborations, providing information and services that may not be available to the public otherwise.

- ii. Homeless youth and youth separated from public schools are identified and accorded equal access to appropriate secondary education and support services, including by identifying and removing barriers that prevent youth described in this clause from receiving appropriate credit for full or partial coursework satisfactorily completed while attending a prior school, in accordance with State, local, and school policies; and

LEA liaisons have a vital role in helping students be identified as homeless and ensuring that barriers are removed from their immediate enrollment. There are various forms of this taking place. For students who are starting the year as homeless, registration staff are trained to look for specific signs of homelessness on their enrollment forms. Addresses being left blank, as an example, serves as a red flag for LEA personnel to dig deeper into the homeless status of a student. Once the student is determined as meeting the definition of McKinney-Vento, then immediate enrollment without barriers is expected and appropriate follow-up services will be considered to help support the student. These additional services may include special education services, mental health services, English language development services, academic supports, etc.

As part of the liaison's expected duties, they must ensure that students are given appropriate credit for completed coursework, partial credit completed coursework, or in helping match different LEA's course requirements (interstate when necessary), in order to grant homeless students the maximum amounts of credits that they have worked towards. This includes gathering old records, assessing students' skills when records are not available and ensuring

that no barriers are keeping the student from achieving their highest potential. These procedures and protocols are reviewed as part of the McKinney-Vento monitoring of each LEA.

- iii. Homeless children and youth who meet the relevant eligibility criteria do not face barriers to accessing academic and extracurricular activities, including magnet school, summer school, career and technical education, advanced placement, online learning, and charter school programs, if such programs are available at the State and local levels.

Students experiencing homelessness, runaway youth, and unaccompanied youth who meet eligibility criteria are able to fully participate in academic and extracurricular activities, including, summer schools, CTE, AP, online learning and charter programs, without facing additional barriers because of their homeless situation. LEAs include in their McKinney-Vento plans, the removal of such barriers as they may come up in hindering full student participation. Records of these barriers are kept ensuring the SEA is made aware of policies and procedures that hinder access for homeless students. The USBE then provides targeted professional learning and technical assistance as needed, while ensuring support for the removal of such barriers, policies and practices both in the LEAs and the USBE. As recipients of Federal financial assistance and as public entities, LEAs must not discriminate against students experiencing homelessness in their educational programs, extracurricular activities, summer school, pre-school, CTE, AP, online learning, magnet and charter school programs based on race, color, national origin, sex, age, or disability. The U. S. Department of Education's Office for Civil Rights enforces Federal laws that prohibit discrimination based on:

- Race, color, or national origin, including discrimination based on a person's limited ELP or EL status or discrimination based on a person's actual or perceived shared ancestry or ethnic characteristics (Title VI of the Civil Rights Act of 1964).
- Sex, including discrimination based on pregnancy or parental status, sex stereotypes (such as treating persons differently because they do not conform to sex-role expectations or because they are attracted to or are in relationships with persons of the same sex), and gender identity or transgender status (Title IX of the Education Amendments of 1972).
- Age (Age Discrimination Act of 1975).
- Disability (section 504 of the Rehabilitation Act of 1973, as applied to recipients of Federal financial assistance, and Title II of the Americans With Disabilities Act of 1990, as applied to public educational entities, regardless of Federal funds).

LEA liaisons facilitate support for students experiencing homelessness, including runaways and unaccompanied youth, to ensure that they are given access to and supports for successful completion of coursework and for continuing at the appropriate educational level. This includes that students receive support in accessing advanced coursework, remediation (when necessary), course completion, credit recovery, and high school graduation. Where necessary, students will be helped and supported in completing their GED in order to ensure access to CTE as well as be supported in Free Application for Federal Student Aid completion for entering higher education.

5. Strategies to Address Other Problems (722(g)(1)(H) of the McKinney-Vento Act): Provide strategies to address other problems with respect to the education of homeless children and youth, including problems resulting from enrollment delays that are caused by—
- i. requirements of immunization and other required health records;
 - ii. residency requirements;
 - iii. lack of birth certificates, school records, or other documentation;
 - iv. guardianship issues; or
 - v. uniform or dress code requirements.

LEA liaisons are provided ongoing professional learning to ensure that once a student is identified as homeless, then all barriers regarding (i) requirements of immunization and other required health records; (ii) residency requirements; (iii) lack of birth certificates, school records, or other documentation; (iv) guardianship issues; or (v) uniform or dress code requirements are minimized. The following strategies may be used: identifying and collaborating with the agency that can provide the needed documentation to obtain the necessary documents; ensuring LEA staff are informed of the rights of homeless students without a guardian (see March 2017 Guidance on Education of Homeless children and Youth), instruct liaisons on appropriate use of McKinney-Vento funds (e.g., fee waivers, purchasing uniforms for students). The LEA liaison is the student advocate within the LEA who will remain with the student during the process of enrollment until all enrollment issues are addressed to ensure barriers do not exist. McKinney-Vento LEA liaisons work with trained school staff to participate in the enrollment process for students experiencing homelessness to resolve issues that may arise during the enrollment process. The USBE provides annual in-person professional learning twice a year, technical assistance as needed, and online support as needed to minimize enrollment questions. Through desktop monitoring (annually), site monitoring (every three years for McKinney-Vento sub-grant recipients) and over the course of regular monitoring of LEAs statewide, the USBE ensures proper enrollment procedures are a part of each LEA's McKinney-Vento plan.

6. Policies to Remove Barriers (722(g)(1)(I) of the McKinney-Vento Act): Demonstrate that the SEA and LEAs in the State have developed, and shall review and revise, policies to remove barriers to the identification of homeless children and youth, and the enrollment and retention due to outstanding fees or fines, or absences.

The USBE and LEAs have procedures in place for the identification of barriers encountered by students experiencing homeless, runaway, and unaccompanied circumstances. These procedures are continually reviewed and revised to improve enrollment and retention practices. While the USBE understands that outstanding fees, fines and/or absences can be among these barriers, the goal of further collaboration with LEAs is to ensure there are no barriers to identification, enrollment, and retention beyond these recognized issues for students experiencing homelessness. This continued collaboration helps to ensure full access to education for students who find themselves having to move from one location to another during a given school year. The USBE also conducts annual monitoring with LEAs. This monitoring will identify these barriers within the LEA. In turn, this also allows for a review of

USBE practices to ensure that all parties minimize these types of issues for students. Identified barriers we continually monitor for include, but will not be limited to the following:

- Ensuring proper identification of students experiencing homelessness;
- Ensuring appropriate access to academic, co-curricular and extra-curricular activities for students experiencing homelessness, including summer school, preschool and other appropriate services;
- Identifying the needs of students experiencing homeless, runaway and unaccompanied circumstances (e.g., EL needs, Special Education needs, mental health needs, etc.);
- Ensuring students experiencing homelessness receive appropriate services to their needs;
- Ensuring the proper procedures for an immediate enrollment without barriers to school;
- Ensuring the proper way to refer students experiencing homelessness to appropriate community services;
- Supporting procedures for removing policies and practices that create barriers for students experiencing homeless, runaway and unaccompanied circumstances, including fees, fines, and attendance issues for full academic and extracurricular participation;
- Ensuring smooth and efficient transitions for students between schools in the same academic year as well as: from elementary to secondary, junior high to high school, and high school to post-secondary studies and career paths.

The USBE provides professional learning and technical support to ensure that LEAs address these elements in their local plans and procedures as well as including it in their McKinney-Vento LEA plans. These are reviewed every grant cycle as part of USBE monitoring of LEAs (in-person and remotely), creating a way for the USBE to continually be made aware of issues that LEAs may face, thereby helping facilitate barrier removal.

7. Assistance from Counselors (722)(g)(1)(K): A description of how youths described in section 752(2) will receive assistance from counselors to advise such youths and prepare and improve the readiness of such youths for college.

The USBE works with school counselors to ensure support that connects homeless students with appropriate services. They also assist in coordinating services with other community resources in order to access funding and additional developmental supports students will need that are preparatory for college and careers.

The USBE College and Career Readiness School Counseling Program Model (2017) structures a school counseling program to support college and career readiness. The school counselor is an essential member of the school leadership team and works with the administration, faculty members, and other stakeholders to establish rigorous, academic standards and develop long and short-range goals to improve student learning for each student in the school population.

This is not limited to closing achievement gaps, but reveals disparities in outcomes in student groups, and guaranteeing equitable access through the removal of barriers for underserved populations by

using data to effect desired changes. School counselors provide the leadership to assess school learning using disaggregated data, identify student needs (Systemic Needs Assessment), and collaborate with others to develop priority interventions (Data Projects) to help achieve desired student outcomes (Mindsets & Competencies). School counselors use data to identify academic and social needs of students through examination of access, attainment, and achievement data.

A systemic approach allows school counselors to examine each level of support in identifying existing barriers impeding student success. Such barriers could exist within school systems and at home. The removal of organizational barriers provides a system wide structure that promotes student engagement, which is vital to dropout prevention. The use of data allows school counselors to create equitable services and provide social justice to every student.

The Plan for College and Career Readiness process is a systemic approach to individual student planning in which school counselors coordinate ongoing activities to help students establish personal goals and develop future plans, including selecting college and career pathways and establishing career literacy. By gathering information on student interests, identifying strengths, and helping students overcome barriers, school counselors help students plan for their future goals. USBE Rule 277-462 outlines school counseling programs.

During the individual or group planning meetings students, parents, and counselors work to create the student's individualized four-year plan, to begin in eighth grade and support their educational experience through college.

Homeless youth and youth separated from public schools are identified and accorded equal access to appropriate secondary education and support services. This includes identifying and removing barriers that prevent youth from immediate enrollment and appropriate access to academic opportunities and growth.

Appendix A: Measurements of interim progress

Instructions: Each SEA must include the measurements of interim progress toward meeting the long-term goals for academic achievement, graduation rates, and English language proficiency, set forth in the State’s response to Title I, Part A question 4.iii, for all students and separately for each subgroup of students, including those listed in response to question 4.i.a. of this document. For academic achievement and graduation rates, the State’s measurements of interim progress must take into account the improvement necessary on such measures to make significant progress in closing statewide proficiency and graduation rate gaps.

All numbers in the following tables represent percentages.

A. Academic Achievement Exhibit 27: English Language Arts

Student Group	Baseline 2016	Interim Goals 2017	Interim Goals 2018	Interim Goals 2019	Interim Goals 2020	Interim Goals 2021	Long-Term Goal 2024
All students	45.7	48.7	51.7	54.7	57.7	60.8	63.8
Economically disadvantaged students	30.2	34.0	37.9	41.8	45.7	49.6	53.4
Children with disabilities	12.3	17.2	22.1	26.9	31.8	36.7	41.6
English learners	11.4	16.4	21.3	26.2	31.1	36.0	41.0
African American/Black	23.7	27.9	32.1	36.4	40.6	44.9	49.1
Asian	52.9	55.5	58.1	60.7	63.3	66.0	68.6
Hispanic/Latino	24.8	28.9	33.1	37.3	41.5	45.7	49.8
American Indian/Alaska Native	19.8	24.2	28.7	33.2	37.6	42.1	46.5
Multi-race, Non-Hispanic	48.3	51.1	54.0	56.9	59.8	62.6	65.5
Native Hawaiian/Pacific Islander	27.2	31.3	35.3	39.3	43.4	47.4	51.5
White	51.1	53.8	56.5	59.2	62.0	64.7	67.4

Academic Achievement Exhibit 28: Mathematics

Student Group	Baseline 2016	Interim Goals 2017	Interim Goals 2018	Interim Goals 2019	Interim Goals 2020	Interim Goals 2021	Long-Term Goal 2024
All students	48.2	51.1	53.9	56.8	59.7	62.6	65.4
Economically disadvantaged students	32.3	36.1	39.8	43.6	47.4	51.1	54.9
Children with disabilities	16.9	21.5	26.1	30.7	35.4	40.0	44.6
English learners	15.1	19.8	24.5	29.2	33.9	38.7	43.4
African American/Black	22.6	26.9	31.2	35.5	39.8	44.1	48.4
Asian	56.7	59.1	61.5	63.9	66.3	68.7	71.1
Hispanic/Latino	24.7	28.9	33.1	37.3	41.4	45.6	49.8
American Indian/Alaska Native	20.1	24.5	29.0	33.4	37.8	42.3	46.7
Multi-race, Non-Hispanic	48.4	51.3	54.1	57.0	59.9	62.7	65.6
Native Hawaiian/Pacific Islander	27.9	31.9	35.9	39.9	43.9	48.0	52.0
White	54.3	56.8	59.4	61.9	64.4	67.0	69.5

B. Graduation Rates Exhibit 29

Student Group	Baseline 2016	Interim Goals 2017	Interim Goals 2018	Interim Goals 2019	Interim Goals 2020	Interim Goals 2021	Long Term Goals 2024
All students	85.2	86.0	86.8	87.7	88.5	89.3	90.1
Economically disadvantaged students	75.6	77.0	78.3	79.7	81.0	82.4	83.7
Children with disabilities	70.2	71.9	73.5	75.2	76.8	78.5	80.1
English learners	65.7	67.6	69.5	71.4	73.3	75.2	77.1
African American/Black	74.1	75.5	77.0	78.4	79.9	81.3	82.7
Asian	89.7	90.3	90.8	91.4	92.0	92.6	93.1
Hispanic/Latino	75.1	76.5	77.9	79.3	80.6	82.0	83.4
American Indian/Alaska Native	71.4	73.0	74.6	76.2	77.8	79.3	80.9
Multi-race, Non- Hispanic	81.5	82.5	83.6	84.6	85.6	86.6	87.7
Native Hawaiian/Pacific Islander	84.6	85.5	86.3	87.2	88.0	88.9	89.7
White	87.9	88.6	89.2	89.9	90.6	91.3	91.9

C. Progress in Achieving English Language Proficiency

Exhibit 30: English Language Proficiency—Percentage of ELs Reaching Proficiency

Student Group	Baseline 2016	Interim Goals 2017	Interim Goals 2018	Interim Goals 2019	Interim Goals 2020	Interim Goals 2021	Long-Term Goal 2024
K-3	26.5	29.3	32.0	37.5	46.9	56.3	75.0
4-7	16.1	17.7	19.3	22.5	28.1	33.8	45.0
8-12	5.7	6.2	6.6	7.5	9.4	11.3	15.0

Appendix B: Notice to Applicants

OMB Control No. 1894-0005 (Exp. 03/31/2017)

NOTICE TO ALL APPLICANTS

The purpose of this enclosure is to inform you about a new provision in the Department of Education's General Education Provisions Act (GEPA) that applies to applicants for new grant awards under Department programs. This provision is Section 427 of GEPA, enacted as part of the Improving America's Schools Act of 1994 (Public Law (P.L.) 103-382).

To Whom Does This Provision Apply?

Section 427 of GEPA affects applicants for new grant awards under this program. **ALL APPLICANTS FOR NEW AWARDS MUST INCLUDE INFORMATION IN THEIR APPLICATIONS TO ADDRESS THIS NEW PROVISION IN ORDER TO RECEIVE FUNDING UNDER THIS PROGRAM.**

(If this program is a State-formula grant program, a State needs to provide this description only for projects or activities that it carries out with funds reserved for State-level uses. In addition, local school districts or other eligible applicants that apply to the State for funding need to provide this description in their applications to the State for funding. The State would be responsible for ensuring that the school district or other local entity has submitted a sufficient section 427 statement as described below.)

What Does This Provision Require?

Section 427 requires each applicant for funds (other than an individual person) to include in its application a description of the steps the applicant proposes to take to ensure equitable access to, and participation in, its Federally-assisted program for students, teachers, and

other program beneficiaries with special needs. This provision allows applicants discretion in developing the required description. The statute highlights six types of barriers that can impede equitable access or participation: gender, race, national origin, color, disability, or age. Based on local circumstances, you should determine whether these or other barriers may prevent your students, teachers, etc. from such access or participation in, the Federally-funded project or activity. The description in your application of steps to be taken to overcome these barriers need not be lengthy; you may provide a clear and succinct description of how you plan to address those barriers that are applicable to your circumstances. In addition, the information may be provided in a single narrative, or, if appropriate, may be discussed in connection with related topics in the application.

Section 427 is not intended to duplicate the requirements of civil rights statutes, but rather to ensure that, in designing their projects, applicants for Federal funds address equity concerns that may affect the ability of certain potential beneficiaries to fully participate in the project and to achieve high standards. Consistent with program requirements and its approved application, an applicant may use their awarded Federal funds to eliminate their identified barriers.

What are Examples of How an Applicant Might Satisfy the Requirement of This Provision?

The following examples may help illustrate how an applicant may comply with Section 427.

An applicant that proposes to carry out an adult literacy project serving, among others, adults with limited English proficiency, might describe in its application how it intends to distribute a brochure about the proposed project to such potential participants in their native language.

An applicant that proposes to develop instructional materials for classroom use might describe how it will make the materials available on audio tape or in braille for students who are blind.

An applicant that proposes to carry out a model science program for secondary students and is concerned that girls may be less likely than boys to enroll in the course, might indicate how it intends to conduct “outreach” efforts to girls, to encourage their enrollment.

An applicant that proposes a project to increase school safety might describe the special efforts it will take to address concern of lesbian, gay, bisexual, and transgender students, and efforts to reach out to and involve the families of LGBT students.

We recognize that many applicants may already be implementing effective steps to ensure equity of access and participation in their grant programs, and we appreciate your cooperation in responding to the requirements of this provision.

Response:

Utah is committed to ensuring equitable access to, and participation in, its Federally-assisted program for students, teachers, and other program beneficiaries with special needs through the implementation of several laws and regulations. The USBE does not discriminate based on age, color, religion, creed, disability, marital status, veteran status, national origin, race, gender, genetic predisposition or carrier status, or sexual orientation in its educational programs, services and activities. In Utah, all LEAs must comply with Rule R277-517 which prohibits discrimination because of sex, race, religion, or any other prohibited class. Utah schools comply with 34 Code of Federal Regulations (CFR) § BI 100 2000, which prohibits discrimination because of race, color, or national origin, 34 CFR § BI 104 1980, which prohibits discrimination because of handicap, 34 CFR § BI 110 1993, which prohibits discrimination because of age, and 34 CFR § BI 106 1980, which prohibits discrimination because of sex.

USBE has consistently affirmed its commitment to this goal in recent years, including through its Strategic Plan, and Utah Portrait of a Graduate. USBE partnered with the Utah Legislature to narrow the digital divide by opening more technology education opportunities for students through the Digital Teaching and Learning Grant Program, which began in 2016. Utah is buoying equity in mathematics achievement by eliminating mathematics tracking in middle schools through the use of integrated mathematics standards and curriculum.

USBE is committed to using its ESSA plan to increase equity of outcomes in Utah schools. Utah envisions its ESSA plan will promote educational equity via the following strategies:

- 1) Explicitly stating a long-term goal of reducing gaps in student mathematics and English language arts achievement in grades 3 – 8 by one-third by 2022 and annually publishing data on its progress.
- 2) Explicitly stating a long-term goal of increasing the number of students who score at least an 18 on their ACT college entrance exam to 77 percent by 2022. This represents an increase of 12 percent over 2016 rates.
- 3) Explicitly stating a long-term goal of increasing high school graduation to 90 percent by 2022. This represents an increase of 5 percent over 2016 rates.
- 4) Direct additional comprehensive support and assistance to low-performing schools based on school results and a systemic needs-based assessment.
- 5) Focus on fairness and inclusion of all Utah students in State assessments through involvement of educators and parents in test item and test development.

- 6) Focus on fairness and inclusion of all Utah students in standards setting through involvement of educators and parents in the ongoing standards revision process.
- 7) Leverage the creation of P-20 partnerships that explicitly recognize the importance of institutions of post-secondary education and other preparatory programs to improve the quality and diversity of the State's workforce.
- 8) Assisting LEAs in disaggregating their unique data to examine distribution of their most effective educators to better serve students in need of additional support.
- 9) Assisting LEAs in improving discipline policies and educator training on intervention both to improve school climate and reduce or eliminate the school-to-prison pipeline.
- 10) Creation of the Utah Grants Management System to assist LEAs in identifying and applying for grants to assist targeted student populations.
- 11) Contacting Education Transition and Career Advocates to assist LEAs to better meet the needs of students in care/custody.

Specific to the activities described in the Title II, Part A section of this application, the initiatives related to teacher preparation and ongoing professional learning are designed to ensure that all aspiring and practicing teachers and school leaders have equitable access to professional learning and differentiated support that will ensure that they have the knowledge, skills, and abilities to meet the needs of all students. Further, the provisions in Title I of this application related to ensuring that all students have equitable access to experienced, effective, and qualified educators are designed to ensure that all students, including our highest need students, have access to educators that can provide them with the support needed for personal academic success. Our plan provides strategies that are designed to close gaps in access to great teachers and leaders for students across Utah, including students with disabilities, ELs, and students experiencing poverty.

These sets of goals reflect the State's commitment to improving student learning results by creating well-developed systems of support for achieving dramatic gains in student outcomes.